

Loan Agreement

among

KAZYON RETAIL SARLAU

and

TAWFEER FOR FOOD PRODUCTS (KAZYON)

and

KAZYON LIMITED

and

TAWFEER VENTURES LIMITED

and

FAVORRIXX FOOD INDUSTRIAL

and

FAVORIXX LIMITED

and

INTERNATIONAL FINANCE CORPORATION

Dated 24 December, 2024

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LOAN AGREEMENT

LOAN AGREEMENT (the "Agreement") dated 24 December, 2024, among **KAZYON RETAIL SARLAU**, a company organized and existing under the laws of the Kingdom of Morocco, company number 35089, with an address at Mohammedia - Zone Industrielle Parc Logistique Afrilogistique Bâtiment C cellules 2 à 7, Kingdom of Morocco (the "**Kazyon Morocco**"), **TAWFEER FOR FOOD PRODUCTS (KAZYON)**, a joint stock company organized and existing under the laws of the Arab Republic of Egypt, company number 36336, with an address at plot no. 136, warehouses area, 6th of October city, Giza, Egypt (the "**Kazyon Egypt**"), **KAZYON LIMITED**, a company organized and existing under the law of England and Wales company number 14003556 and registered office at 1 Bartholomew Lane, London, United Kingdom, EC2N 2AX ("**Kazyon UK**"); **TAWFEER VENTURES LIMITED**, a business company incorporated and existing under the laws of the British Virgin Islands, company number 1823880 and registered office at Commerce House, Wickhams Cay 1, P.O. Box 3140, Road Town, Tortola, British Virgin Islands VG1110 ("**Kazyon BVI**"), **FAVORRIX FOOD INDUSTRIAL**; a joint stock company organized and existing under the laws of the Arab Republic of Egypt, with an address at plot no. 136, warehouses area, 6th of October second division, 6th of October city, Giza, Egypt (the "**Favorixx**"), Favorixx Limited, a company organized and existing under the law of the Cayman Islands, company number 414476 and registered office at the offices of Walkers Corporate Limited, 190 Elgin Avenue, George Town, Grand Cayman KY1-9008 ("**Kazyon Cayman Islands**"), (Kazyon Morocco, Kazyon Egypt, Kazyon UK, Kazyon BVI, and Kazyon Cayman Islands, each a "**Co-Borrower**" and together the "**Co-Borrowers**"), and the persons listed in Annex J, each a "**Guarantor**" and together the "**Guarantors**"), and **INTERNATIONAL FINANCE CORPORATION**, an international organization established by Articles of Agreement among its member countries including the Kingdom of Morocco, the Arab Republic of Egypt, the United Kingdom, ("**IFC**").

RECITAL

- (A) Kazyon Morocco is undertaking the Transaction (as defined below);
- (B) The Co-Borrowers have requested IFC to provide the loans described in this Agreement in connection with the Transaction (as defined below); and
- (C) IFC is willing to provide those loans upon the terms and conditions set forth in this Agreement.

ARTICLE I

Definitions and Interpretation

Section 1.01. Definitions. Wherever used in this Agreement, the following terms have the following meanings:

"**Account Bank**" has the meaning given to it in the Debt Service Account Agreement;

"**Accounting Standards**" means International Financial Reporting Standards (IFRS) promulgated by the International Accounting Standards Board ("IASB") (which include standards and interpretations approved by the IASB and International Accounting Standards issued under previous constitutions), together with its pronouncements thereon from time to time, and applied on a consistent basis;

"**Action Plan**" means the plan attached hereto as Annex K developed by Kazyon Morocco setting out specific environmental and social measures to be undertaken by it, to enable its Operations to comply with the Performance Standards, as such may be amended or supplemented from time to time in accordance with the terms hereof;

"**Additional Favorixx Share Pledge**" means any sole pledge over all the shares of Favorixx held by any shareholder of Favorixx (other than Kazyon Egypt) governed by Egyptian law to be granted by the relevant shareholder;

"**Additional Kazyon Egypt Share Pledge**" means any sole pledge over all the shares of Kazyon Egypt held by any shareholder of Kazyon Egypt (other than Kazyon BVI) governed by Egyptian law to be granted by the relevant shareholder;

"Adjusted EBITDA" means the aggregate of (A) EBITDA less (B) the aggregate amount of all rental expenses during such Calculation Period;

"Adjusted Financial Debt" means the aggregate of (A) any Financial Debt, and (B) the Loan;

"Adjusted Financial Debt to Adjusted EBITDA Ratio" means with respect to any Person, the ratio obtained by dividing the Adjusted Financial Debt of such Person by the Adjusted EBITDA of such Person;

"ADP III" means ADP III Holding 5 L.P, a fund established and existing under the laws of Guernsey with registration number 3931 and managed by DPI;

"ADP III Affiliate" means, in relation the ADP III,

- (a) each member of the ADP III Group;
- (b) any general partner or limited partner or other partner of, or manager of, or investment adviser to, the ADP III or any member of ADP III Group, or any group undertaking of any such person;
- (c) any Fund or Co-Investment Scheme which has the same general partner, manager, or investment adviser as ADP III or any member of the ADP III Group
- (d) any Fund which is advised, or the assets of which (or some material part thereof) are managed (whether solely or jointly with others), by the ADP III or any member of the ADP III Group; or
- (e) any Fund in respect of which the ADP III or any member of the ADP III Group is a general partner, manager or investment adviser;

"ADP III Group" means ADP III and its Subsidiary undertakings and/or parent undertakings, and any other Subsidiary undertaking of any such parent undertaking (in each case whether direct or indirect) from time to time (in each case excluding any portfolio company thereof);

"Affiliate" means with respect to any Person, shall mean any other Person directly or indirectly controlling, controlled by or under common control with, such person (for purposes of this definition, "control" means the power to direct the management or policies of a person, directly or indirectly, whether through the ownership of shares or other securities, by contract or otherwise, provided that the direct or indirect ownership of 26% or more of the voting share capital of a person is deemed to constitute control of that person, and "controlling" and "controlled" have corresponding meanings;

"Al Dukan" means Al Dukan Limited, a company established and existing under the laws of Kingdom of Saudi Arabia with registration number 4030259218;

"Annual Monitoring Report" means the annual monitoring report substantially in the form attached as Schedule 9 hereto setting out the specific environmental, social requirements of Kazyon Morocco in respect of its and its Subsidiaries' Operations, as such may be amended or supplemented from time to time in accordance with the terms hereof;

"Applicable E&S Law" means all applicable statutes, laws, ordinances, rules and regulations of the Kingdom of Morocco, including but not limited to any license, permit or other governmental Authorization, imposing liability or setting standards of conduct concerning any environmental, social, labor, health and safety or security risks of the type contemplated by the Performance Standards;

"Auditors" means in respect of Kazyon Morocco, Baker Tilly Morocco, in respect of Kazyon Egypt, Baker Tilly Egypt, in respect of Kazyon UK, Baker Tilly UK, in respect of Kazyon BVI, Baker Tilly British Virgin Islands, in respect of Favorixx, Baker Tilly Egypt, and in respect of Kazyon Cayman Islands, Baker Tilly Cayman Islands, or such other firm that each Obligor appoints from time to time as its auditors pursuant to Section 5.01(e) (*Affirmative Covenants*);

"Authority" means any national, supranational, regional or local government or governmental, administrative, fiscal, judicial, or government-owned body, department, commission, authority, tribunal, agency or entity, or central bank (or any Person, whether or not government owned and howsoever constituted or called, that exercises the functions of a central bank);

"Authorization" means any consent, registration, filing, agreement, notarization, certificate, license, approval, permit, authority or exemption from, by or with any Authority, whether given by express action or deemed given by failure to act within any specified time period and all corporate, creditors' and shareholders' approvals or consents;

"Authorized Representative" means any natural person who is duly authorized by an Obligor, to act on its behalf for the purposes specified in, and whose name and a specimen of whose signature appear on, the Certificate of Incumbency and Authority most recently delivered by such Person to IFC;

"Business Day" means

(a) for the purpose of determining the Interest Rate, a SOFR Banking Day; and

(b) for all other purposes, a day that is a SOFR Banking Day and on which banks are open for business in New York, New York and each Country;

"BVI Share Pledge" means a first ranking charge over all the shares of Kazyon BVI governed by the laws of British Virgin Islands to be granted by Kazyon UK;

"Calculation Period" means for any calculation, a period of four consecutive quarters most recently ended prior to the event requiring the calculation for which financial statements should have been delivered to IFC pursuant to the terms and conditions hereof;

"CAO" means Compliance Advisor Ombudsman, the independent accountability mechanism for IFC for environmental and social concerns, which is governed by the CAO Policy;

"CAO Policy" means the IFC/MIGA Independent Accountability Mechanism (CAO) Policy dated June 28, 2021 outlining CAO's purpose, mandate and functions, core principles, governance, and operating procedures, as the same may be amended, updated or supplemented at any time and from time to time;

"Cayman Islands Share Pledge" means a first ranking charge over all the shares of Kazyon Cayman Islands governed by the laws of the Cayman Islands to be granted by the shareholder(s) of Kazyon Cayman Islands, being Kazyon UK as at the date of this Agreement;

"Certificate of Incumbency and Authority" means a certificate provided to IFC in the form of Schedule 1;

"Change of Control" means the occurrence of any of the following:

(a) the Sponsor Group, at any time and for any reason, does not directly or indirectly own at least fifty-one per cent (51%) of both the economic and voting interests in each Co-Borrower's share capital (determined on a fully diluted basis);

(b) any Person or group, other than the Sponsor Group, obtaining the power (whether or not exercised) to elect a majority of the board of directors of any of the Co-Borrowers;

(c) the board of directors of any of the Co-Borrowers, at any time and for any reason, ceases to contain a majority of its board of directors elected by the Sponsor Group; or

(d) a "change of control" or similar event occurs as provided in any other loan or preferred stock documentation relating to any Co-Borrower;

"**Charter**" means with respect to any Person, the memorandum and articles of association and/or such other constitutive document, howsoever called, of such Person;

"**Coercive Practice**" has the meaning assigned to it in Annex J;

"**Co-Investment Scheme**" means any scheme under which certain officers, employees, members or partners of the ADP III or its investment adviser, general partner, manager, operator, nominee or any member of the ADP III Group are entitled or required (as individuals or through a fund or any other vehicle) to acquire shares in any of the Obligors or share equivalents issued by any member of Obligors;

"**Collusive Practice**" has the meaning assigned to it in Annex J;

"**Condemnation Event**" means any of the events described in Section 6.02(e)(*Expropriation; Nationalization, Etc.*);

"**Consolidated**" or "**Consolidated Basis**" means (with respect to any financial statements to be provided, or any financial calculation to be made, under or for the purposes of this Agreement and any other IFC Financing Document) the method referred to in Section 1.02(c) (*Financial Calculations*); and the entities whose accounts are to be consolidated with the accounts of any Obligor are all the Subsidiaries of that Obligor;

"**Corrupt Practice**" has the meaning assigned to it in Annex J;

"**Country**" means the Kingdom of Morocco, the Arab Republic Egypt, the United Kingdom and the British Virgin Islands, and where the context requires, shall mean the Kingdom of Morocco in relation to Kazyon Morocco, the Arab Republic of Egypt in relation to any of Kazyon Egypt or Favorixx, the United Kingdom in relation to Kazyon UK, the British Virgin Islands in relation to Kazyon BVI and the Cayman Islands in relation to Kazyon Cayman Islands;

"**CUL**" means Challenger Universal Limited, a company established and existing under the laws of British Virgin Islands, with registration number 1486871;

"**Debt Service Reserve Account**" or "**DSRA**" means the Dollar denominated bank account held in the name of Kazyon UK with the Account Bank and called the "Debt Service Reserve Account";

"**Debt Service Reserve Account Agreement**" means the agreement dated on or about the date of this Agreement between Kazyon UK, the Account Bank and IFC in respect of the DSRA;

"**Derivative Transaction**" means any swap agreement, cap agreement, collar agreement, futures contract, forward contract or similar arrangement with respect to interest rates, currencies or commodity prices;

"**Disbursement**" means any or all disbursement of the Loan;

"**Dispute**" has the meaning assigned to it under Section 7.05 (*Applicable law, Arbitration and Jurisdiction*).

"**Distribution Centre**" means the three warehouses' plots allocated in favor of Kazyon Egypt from the NUCA, as follows:

(a) New Assiut Warehouse: a warehouse allocated by NUCA to Kazyon Egypt by virtue of the approval of the main real estate committee in its session No. 33 dated 5 June 2022, with a total area of 25,068.14 m², located at Land Plots Nos. (155-156-157-158-159-160), Industrial Area Extension, New Assiut City;

(b) New October Warehouse: a warehouse allocated by NUCA to Kazyon Egypt by virtue of the approval of the land and buildings allocation committee No. 132 dated 24 November 2019, with a total area of 18,229.27 m², located at Land Plot No. 136, Industrial Zone, warehouses area, 6th of October City, Giza; and

(c) 10th of Ramadan Warehouse: a warehouse allocated by NUCA to Kazyon Egypt by virtue of the decision of the main real estate committee in its session No. 77 dated 29 December 2022, with a total area of 24,934.32 m², located at Land Plots Nos. (1, 2, 3, 4, 5, 17, 18, 19, 20), East B4 Area, 10th of Ramadan City;

"Dollars" and "\$" means the lawful currency of the United States of America;

"DSR Required Balance" means, at any time within three months before an Interest Payment Date, an amount in Dollars equal to the scheduled principal, interest and fees payable by the Co-Borrowers on the next Interest Payment Date immediately following such time;

"DSRA Security" means a first ranking security governed by English or Swiss law over the Debt Service Reserve Account to be granted by Kazyon UK;

"EAS 49" means Egyptian Accounting Standard 49 as set out in Egyptian Accounting Standard 49 applicable in the Arab Republic of Egypt in accordance with Minister of Investment Decree No. 110 of 2015 and its amendments;

"E&SA" means the environmental and social assessment, dated 23 October 2024, prepared by Kazyon Morocco in accordance with the Performance Standards;

"E&S Management System" means Kazyon Morocco's environmental and social management system enabling it to identify, assess and manage its Operations risks on an ongoing basis;

"EBITDA" means for the relevant Calculation Period for any Person or specified group of Persons, Net Income for such period (without giving effect to (x) any extraordinary gains, (y) any non-cash income, and (z) any gains or losses from sales of assets other than inventory sold in the ordinary course of business) adjusted by adding thereto (in each case to the extent deducted in determining Net Income for such period), without duplication, the amount of (i) total Interest Expense (inclusive of interest on lease liability related to warehouses and stores leases recorded as per EAS 49) and amortization of deferred financing fees and other original issue discount and banking fees, charges and commissions (e.g., letter of credit fees and commitment fees) of such Person or specified group of Persons determined on a Consolidated Basis for such period, (ii) tax expense based on income and foreign withholding taxes for such Person or specified group of Persons determined on a Consolidated Basis for such period, and (iii) all depreciation and amortization expense of such Person or specified group of Persons determined on a Consolidated Basis for such period;

"EGP" means Egyptian Pound;

"Excluded Subsidiary" means any of Al Dukan or UEFCON;

"Excluded Intercompany Transactions" means:

(a) any Financial Debt from any of Kazyon UK and/or Kazyon Egypt or any of their respective Subsidiaries to Kazyon Morocco or any of its Subsidiaries for an amount exceeding \$100,000 per annum, unless such Financial Debt in excess of \$100,000 to Kazyon Morocco or any of its Subsidiaries is financed by way of new equivalent equity injection in Kazyon UK by the existing shareholders of Kazyon UK or by a third-party investor;

(b) any Financial Debt from Kazyon Egypt or any of its Subsidiaries to any Co-Borrower (other than Kazyon Morocco and Kazyon UK) or any of their Subsidiaries provided that Kazyon Egypt or any of its Subsidiaries may advance Financial Debt to Kazyon Cayman Islands, such amount to be denominated in EGP, for purposes of (A) the acquisition of UEFCON, and/or (B) investments in Favorixx, in each case, if Kazyon Egypt had received in cash the Dollar equivalent of such EGP amount from Kazyon UK;

(c) any Financial Debt from Kazyon Egypt or any of its Subsidiaries to Kazyon UK where the aggregate amounts accruing to and payable to Kazyon Egypt or any of its Subsidiaries in connection with all Financial Debts advanced by Kazyon Egypt to Kazyon UK exceed in aggregate the total amounts owed to IFC in connection with the IFC Financing Documents at any time; and

(d) any other intercompany transaction which if it were a Financial Debt would fall under any of paragraphs (a) to (c) above;

"Event of Default" means any one of the events specified in Section 6.02 (*Events of Default*);

"Favorixx Mortgage" means a first ranking security governed by Egyptian law to be granted by Favorixx by way of real estate collateral mortgage over its real estate property asset located in plot number 7171, 7th Industrial Area, Sadat City, Al Menoufia Governorate (including lands and buildings), which shall have an appraisal value (as per the most recent Valuation Report) of no less than EGP180,070,000;

"Favorixx (Kazyon Egypt) Share Pledge" means a sole pledge governed by Egyptian law to be granted by Kazyon Egypt over all the shares of Favorixx owned by Kazyon Egypt;

"Favorixx Share Acquisition" means the date on which Kazyon Cayman Islands becomes a shareholder in Favorixx;

"Favorixx Share Increase" means the date on which share increase in Favorixx has been completed and Kazyon Cayman Islands has acquired an aggregate of approximately 90%, with a variance of $\pm 1\%$ shareholding in Favorixx;

"Financial Debt" means as to any Person:

(a) any indebtedness of such Person for or in respect of borrowed money;

(b) the outstanding principal amount of any bonds, debentures, notes, loan stock, commercial paper, acceptance credits, bills or promissory notes drawn, accepted, endorsed or issued by such Person;

(c) any indebtedness of such Person for or in respect of the deferred purchase price of assets or services (except trade accounts incurred and payable in the ordinary course of business to trade creditors of such Person within 180 days of the date they are incurred and which are not overdue);

(d) non-contingent obligations of such Person to reimburse any other Person for amounts payable by that Person under a letter of credit or similar instrument (excluding any letter of credit or similar instrument issued for the account of such Person with respect to trade accounts incurred and payable in the ordinary course of business to trade creditors of such Person within 180 days of the date they are incurred and which are not overdue);

(e) the amount of any obligation of such Person in respect of any Financial Lease;

(f) amounts raised by such Person under any other transaction having the financial effect of a borrowing and which would be classified as a borrowing (and not as an off-balance sheet financing) under the Accounting Standards;

(g) the amount of the obligations of such Person under Derivative Transactions entered into in connection with the protection against or benefit from fluctuation in any rate or price (but only the net amount owing by such Person after marking the relevant Derivative Transactions to market);

(h) all indebtedness of the types described in the foregoing items secured by a Lien on any property owned by such Person, whether or not such indebtedness has been assumed by such Person;

(i) all obligations of such Person to pay a specified purchase price for goods and services, whether or not delivered or accepted (i.e., take or pay or similar obligations) (except trade accounts incurred and payable in the ordinary course of business to trade creditors of such Person within 180 days of the date they are incurred and which are not overdue);

(j) any repurchase obligation or liability of such Person with respect to accounts or notes receivable sold by such Person, any liability of such Person under any sale and leaseback transactions that do not create a liability on the balance sheet of such Person, any obligation under a "synthetic lease" or any obligation arising with respect to any other transaction which is the functional equivalent of or takes the place of borrowing but which does not constitute a liability on the balance sheet of such Person;

(k) the amount of any obligation in respect of any guarantee or indemnity given by such Person for any of the foregoing items incurred by any other Person; and

(l) any premium payable by such Person on a mandatory redemption or replacement of any of the foregoing items;

"Financial Lease" means any lease or hire purchase contract which would, under the Accounting Standards, be treated as a finance or capital lease;

"Financial Plan" means the proposed sources of financing for the Transaction as set out in Annex A;

"Financial Year" means with respect to each Obligor and each of its Restricted Subsidiaries, the accounting year commencing each year on the 1st of January and ending on the 31st of December of the same year, or such other period as such Person, with IFC's consent, from time to time designates as its accounting year;

"Fraudulent Practice" has the meaning assigned to it in Annex J;

"Fund" means any fund, bank, company, unit trust, investment trust, investment company, limited, general or other partnership, industrial provident or friendly society, any collective investment scheme (as defined by the Financial Services and Markets Act 2000), any investment professional (as defined in article 19(5) of the Financial Services and Markets Act 2000 (Financial Promotion Order) 2005 (the **"FPO"**)), any high net worth company, unincorporated association or partnership (as defined in article 49(2)(a) and (b) of the FPO) or any high value trust (as defined in article 49(6) of the FPO), any pension fund or insurance company or any person who is an authorized person under the Financial Services and Markets Act 2000;

"Guarantee" means the guarantee of the Guaranteed Obligations by the Guarantors pursuant to this Agreement;

"Guaranteed Obligations" means, in relation to a Guarantor, all debts and monetary liabilities of the Obligors (other than such Guarantor) owed to IFC under or in relation to this Agreement or any other IFC Financing Document, and in any capacity irrespective of whether the debts or liabilities:

(a) are present or future;

(b) are actual, contingent or otherwise;

(c) are at any time ascertained or unascertained;

(d) are owed or incurred by or on account of the Obligors (other than such Guarantor) alone, or severally or jointly with any other person;

(e) are owed or incurred to or for the account of IFC alone, or severally or jointly with any other person;

(f) are owed or incurred as principal, interest, fees, charges, taxes, duties or other imposts, damages (whether for breach of contract or tort or incurred on any other ground), losses, costs or expenses, or on any other account; or

(g) comprise any combination of the above;

"IFC Financing Documents" means, collectively, this Agreement, the Debt Service Reserve Account Agreement, the Security Documents; and such other document from time to time designated as a "IFC Financing Document" as agreed in writing mutually by IFC and any Co-Borrower;

"IFC Security" means the security created by or pursuant to the Security Documents to secure all amounts owing to IFC under the IFC Financing Documents;

"Increased Costs" means the amount certified in an Increased Costs Certificate to be the net incremental costs of, or reduction in return to, IFC or any Participant in connection with the making or maintaining of the Loan or its Participation that result from:

- (a) any change in any applicable law or regulation or directive (whether or not having the force of law) or in its interpretation or application by any Authority charged with its administration; or
- (b) compliance with any request from, or requirement of, any central bank or other monetary or other Authority;

which, in either case, after the date of this Agreement:

- (i) imposes, modifies or makes applicable any reserve, special deposit or similar requirements against assets held by, or deposits with or for the account of, or loans made by, IFC or that Participant;
- (ii) imposes a cost on IFC as a result of IFC having made the Loan or on that Participant as a result of that Participant having acquired its Participation or reduces the rate of return on the overall capital of IFC or that Participant that it would have achieved, had IFC not made the Loan or that Participant not acquired its Participation, as the case may be;
- (iii) changes the basis of taxation on payments received by IFC in respect of the Loan or by that Participant with respect to its Participation (otherwise than by a change in taxation of the overall net income of IFC or that Participant imposed by the jurisdiction of its incorporation or in which it books its Participation or in any political subdivision of any such jurisdiction); or
- (iv) imposes on IFC or that Participant any other condition regarding the making or maintaining of the Loan or its Participation;

but excluding any incremental costs of making or maintaining a Participation that are a direct result of that Participant having its principal office in either Country or having or maintaining a permanent office or establishment in either Country, if and to the extent that permanent office or establishment acquires that Participation;

"Increased Costs Certificate" means a certificate provided from time to time by IFC (based on a certificate to IFC from any Participant, if Increased Costs affect its Participation), certifying:

- (a) the circumstances giving rise to the Increased Costs;
- (b) that the costs of IFC or, as the case may be, that Participant, have increased or the rate of return of either of them has been reduced;
- (c) that, IFC or, as the case may be, that Participant, has, in its opinion, exercised reasonable efforts to minimize or eliminate the relevant increase or reduction, as the case may be; and
- (d) the amount of Increased Costs;

"Individual Shareholder" means each of Mr. Hassan Heikal, a citizen of Egypt, whose address is at Apartment 14.C.1 Limestone House, Dubai International Financial Center, United Arab Emirates; Mr. Ali Heikal, a citizen of Egypt,

whose address is at Apartment 14.C.1 Limestone House, Dubai International Financial Center, United Arab Emirates; and Mr. Rashid Heikal, a citizen of Egypt, whose address is at Apartment 14.C.1 Limestone House, Dubai International Financial Center, United Arab Emirates;

"Insurance Proceeds" means the proceeds of any insurance claim (other than proceeds which are required to meet a third party claim that are applied to meet such claim) under any insurance maintained by any of the Co-Borrowers or their respective Subsidiaries after deducting:

(a) any reasonable, fees, costs and/or expenses incurred by any of the Co-Borrowers or its Subsidiaries in relation to that claim to Persons who are the Co-Borrowers or its Subsidiaries; and

(b) any Taxes required to be paid by any of the Co-Borrowers or its Subsidiaries in connection with that claim;

"Interest Determination Date" means the second Business Day before the beginning of each Interest Period; provided, however, in the event any of the provisions of Section 2.03(d) (*Interest*) apply, such date shall be determined by IFC pursuant to the benchmark methodology provided by the relevant administrator for the relevant rate;

"Interest Expense" means for any period, (i) the total Consolidated cash interest expense of any Person or specified group of Persons (including, without limitation, all commissions, discounts and other commitment and banking fees and charges (e.g., fees with respect to letters of credit, interest rate hedging agreements and other derivative agreements) for such period (calculated without regard to any limitations on payment thereof), adjusted to exclude (to the extent same would otherwise be included in the calculation above in this clause (i)) the amortization of any deferred financing costs for such period plus (ii) without duplication, (x) that portion of Financial Lease obligations of such Person or specified group of Persons on a Consolidated Basis representing the interest factor for such period and (y) the "deemed interest expense" (*i.e.*, the interest expense which would have been applicable if the respective obligations were structured as on-balance sheet financing arrangements) with respect to all Financial Debt of such Person or specified group of Persons of the type described in clause (x) of the definition of Financial Debt contained herein (to the extent same does not arise from a financing arrangement constituting an operating lease) for such period;

"Interest Payment Date" means June 15 and December 15 in each year in any year;

"Interest Period" means each period of 6 months in each case beginning on an Interest Payment Date and ending on the day immediately before the next following Interest Payment Date, except in the case of the first period applicable to each Disbursement when it means the period beginning on the date on which that Disbursement is made and ending on the day immediately before the next following Interest Payment Date;

"Interest Rate" means for any Interest Period, the rate at which interest is payable during that Interest Period, determined in accordance with Section 2.03 (*Interest*);

"International Legal Advisor" means Pinsent Masons Africa LLP;

"Investment" has the meaning specified in Section 5.02(h);

"Kazyon Egypt Mortgages" means first ranking securities governed by Egyptian law to be granted by Kazyon Egypt by way of real estate collateral mortgage over the Distribution Centers land and buildings owned by Kazyon Egypt, which shall have an appraisal value (as per the most recent Valuation Report) of no less than EGP1,014,000,000;

"Kazyon Egypt Share Pledge" means a sole pledge governed by Egyptian law to be granted by Kazyon BVI over all the shares of Kazyon Egypt owned by Kazyon BVI;

"Kazyon Morocco Share Pledge" means a first ranking pledge over all the shares of Kazyon Morocco governed by Moroccan law to be granted by Kazyon UK;

"Liabilities" means the aggregate of all obligations (actual or contingent) of any Person to pay or repay money, including, without limitation:

- (a) Financial Debt of such Person;
- (b) the amount of all liabilities of such Person under any conditional sale or a transfer with recourse or obligation to repurchase, including, without limitation, by way of discount or factoring of book debts or receivables;
- (c) taxes (including deferred taxes) of such Person;
- (d) [RESERVED];
- (e) accrued expenses of such Person, including wages and other amounts due to employees and other services providers;
- (f) the amount of all liabilities of such Person howsoever arising to redeem any of its shares; and
- (g) to the extent (if any) not included in the definition of Financial Debt, the amount of all liabilities of any other Person to the extent such Person guarantees them or otherwise obligates itself to pay them;

"Lien" means any mortgage, pledge, charge, assignment, hypothecation, security interest, title retention, preferential right, trust arrangement, right of set-off, counterclaim or banker's lien, privilege or priority of any kind having the effect of security, any designation of loss payees or beneficiaries or any similar arrangement under or with respect to any insurance policy or any preference of one creditor over another arising by operation of law;

"Loan" means the loan specified in Section 2.01 (*The Loan*) or, as the context requires, its principal amount from time to time outstanding;

"Loan Currency" means Dollar;

"Local Legal Advisor" means (i) in relation to the Kingdom of Morocco, ADNA Law, (ii) in relation to the Arab Republic of Egypt, Sharkawy & Sarhan, (ii) in relation to the British Virgin Islands and Cayman Islands, Carey Olsen;

"Long-Term Debt" means Financial Debt whose final maturity falls due more than one year after the date it is incurred (including the current maturities thereof);

"Material Adverse Effect" means a material adverse effect on:

- (a) the Obligors and their Subsidiaries' business, operations, property, liabilities, condition (financial or otherwise), prospects or the carrying on of the Obligors and their respective Subsidiaries' business or operations;
- (b) the implementation of the Transaction or the Financial Plan; or
- (c) the ability of the Obligors and their respective Subsidiaries to comply with their respective obligations under this Agreement or under any other IFC Financing Document to which any of them is a party;

"Market Disruption Event" means that, before the close of business in New York on the Interest Determination Date for the relevant Interest Period, the cost to IFC or Participants whose Participations in the Loan represent in the aggregate 30% or more of the outstanding principal amount of the Loan (as notified to IFC by such Participants) of funding the Loan or such Participations (as applicable) would be in excess of the Market Disruption Rate;

"Market Disruption Rate" means the percentage rate per annum which is the aggregate of the Reference Rate and 0.50% (50 basis points);

"Net Income" means for any period, the excess (if any) of gross income over total expenses (provided that income taxes shall be treated as part of total expenses) during such period for any Person or specified group of Persons;

"Net Sale Proceeds" means for any sale or other disposition of assets by any Obligor or any of its Subsidiaries (other than the sale of inventory sold in the ordinary course of business), the gross cash proceeds received from such sale or other disposition of assets, net of (i) reasonable transaction costs (including, without limitation, any underwriting, brokerage or other customary selling commissions, reasonable legal, advisory and other fees and expenses (including title and recording expenses) associated therewith and sales, VAT and transfer taxes arising therefrom), (ii) payments of unassumed liabilities relating to the assets sold or otherwise disposed of at the time of, or within 30 days after, the date of such sale or other disposition, (iii) the amount of such gross cash proceeds required to be used to permanently repay any Financial Debt (other than the Loan) which is secured by the respective assets which were sold or otherwise disposed of, and (iv) the estimated net marginal increase in income taxes which will be payable by the Obligors' Consolidated group or any Subsidiary thereof with respect to the Financial Year of the Obligors in which the sale or other disposition occurs as a result of such sale or other disposition; provided, however, that such gross proceeds shall not include any portion of such gross cash proceeds which the Obligors determine in good faith should be reserved for post-closing adjustments (to the extent the Obligors deliver to IFC a certificate signed by an Authorized Representative as to such determination), it being understood and agreed that on the day that all such post-closing adjustments have been determined (which shall not be later than six months following the date of the respective asset sale), the amount (if any) by which the reserved amount in respect of such sale or disposition exceeds the actual post-closing adjustments payable by the Obligors or any of their Subsidiaries shall be taken into account for purposes of determining Net Sale Proceeds;

"Non-Cash Items" means for any period, the net aggregate amount (which may be a positive or negative number) of all non-cash "income" (as a negative item) and non-cash "expense" (as a positive item) items which (under accrual accounting) were added or subtracted in determining Net Income for any Person or specified group of Persons for such period, including, without limitation, equity earnings in Subsidiaries, asset revaluations, depreciation, amortization, deferred taxes, and provisions for severance pay of staff and workers;

"NUCA" means the New Urban Community Authority in Egypt;

"Obligors" means the Co-Borrowers and the Guarantors, and **"Obligor"** means any of them;

"Obstructive Practice" has the meaning assigned to it in Annex J;

"Operations" means the operations, activities and facilities of Kazyon Morocco or its Subsidiaries (including the design, construction, operation, maintenance, management and monitoring thereof, as applicable) in the Country;

"Participant" means any Person (other than a corporation, company, partnership, firm, voluntary association, joint venture, or trust incorporated in Egypt unless with the prior written consent of Kazyon UK) who acquires a Participation;

"Participation" means the interest of any Participant in the Loan, or as the context requires, in any Disbursement;

"Performance Standards" means IFC's Performance Standards on Environmental & Social Sustainability, dated January 1, 2012 a copy of which has been delivered to and receipt of which has been acknowledged by Kazyon Morocco;

"Permitted Intercompany Financial Debt" means any intercompany Financial Debt between or among any Co-Borrower and any of its Restricted Subsidiaries listed in Annex F other than the Excluded Intercompany Transactions;

"Permitted Lien" has the meaning specified in Section 5.02(f);

"Permitted Transferee" means (a) in respect of ADP III, an ADP III Affiliate, and (b) in respect of each other member of the Sponsor Group (other than ADP III), a Subsidiary of such member of the Sponsor Group;

"Person" means any natural person, corporation, company, partnership, firm, voluntary association, joint venture, trust, unincorporated organization, Authority or any other entity whether acting in an individual, fiduciary or other capacity;

"Policy on Disclosure of Information" means IFC's Access to Information Policy, dated January 1, 2012, which is available at <https://disclosures.ifc.org/#/accessInfoPolicy>;

"Potential Event of Default" means any event or circumstance which would, with notice, lapse of time, the making of a determination or any combination thereof, become an Event of Default;

"Proceeding" has the meaning assigned to it under Section 7.07 (*Indemnification; No Consequential Damages*).

"Pro Forma Basis" means, in connection with any calculation of compliance with any financial covenant or financial term, the calculation thereof after giving effect on a pro forma basis to (x) the incurrence of any Financial Debt, and (y) the permanent repayment of any Financial Debt after the first day of the relevant Calculation Period, with the following rules to apply in connection therewith:

(a) all Financial Debt (x) incurred or issued after the first day of the relevant Calculation Period shall be deemed to have been incurred or issued (and the proceeds thereof applied) on the first day of such Calculation Period and remain outstanding through the date of determination and (y) permanently retired or redeemed after the first day of the relevant Calculation Period shall be deemed to have been retired or redeemed on the first day of such Calculation Period and remain retired through the date of determination; and

(b) all Financial Debt assumed to be outstanding pursuant to preceding clause (i) shall be deemed to have borne interest at (x) in the case of fixed rate Financial Debt, the rate applicable thereto, or (y) in the case of floating rate Financial Debt, the rates which would have been applicable thereto during the respective period when the same was deemed outstanding;

"Prohibited Activities" means the activities specified in Annex I;

"Prospective Debt Service Coverage Ratio" the ratio obtained by dividing for the relevant Calculation Period:

(a) the aggregate of (A) Net Income for such Calculation Period, (B) Non-Cash Items (including the amortization of right of use leased assets and the interest on lease liability related to warehouses and stores leases recorded as per EAS 49), (C) the amount of all payments that were due during such Calculation Period on account of interest and other charges on Financial Debt (to the extent deducted from Net Income), and (D) change in working capital less (E) the aggregate amount of all capital expenditures made during such Calculation Period (other than capital expenditures to the extent financed with equity proceeds, asset sale proceeds, insurance proceeds or Financial Debt permitted under the IFC Financing Documents), and (F) the aggregate amount of all rental expenses during such Calculation Period;

by

(b) the aggregate of (A) all scheduled payments (including balloon payments) that will fall due during the calculation period following the relevant Calculation Period (in which the relevant calculation date falls), on account of principal of Long-Term Debt and interest and other charges on all Financial Debt and the Loan and (B) without double counting any payment already counted in the preceding sub-clause (A), any payment made or required to be made to any debt service account under the terms of any agreement providing for Financial Debt and the Loan but excluding voluntary prepayments;

"Real Estate Mortgages" means the Kazyon Egypt Mortgages and the Favorixx Mortgage;

"Red Hawk" means Red Hawk Long Term Investments Limited, a company established and existing under the laws of Cayman Islands, with company registration number 00283954;

"Reference Rate" means, in relation to any Interest Period of any Loan:

(a) Term SOFR on the Interest Determination Date for that Interest Period for 6 months (or, in the case of the first Interest Period for any Disbursement, for 1 month, 3 months or 6 months, whichever period is closest to the duration of the relevant Interest Period (or, if two periods are equally close, the longer one)) rounded up to five decimal places; or

(b) any fallback or replacement rate for Term SOFR determined pursuant to section 2.03.(d) (*Unavailability of Term SOFR*),

and if, in either case, that rate is less than zero, the Reference Rate shall be deemed to be zero;

"Relevant Spread" means

(a) at any time prior to the Security Perfection Date, 4.3% per annum; and

(b) on and from the Security Perfection Date, 4.2% per annum;

"Restricted Payment" means, with respect to any Person, the (i) declaration or payment of a dividend, distribution or return of any equity capital to its stockholders, partners or members or authorization or making of any other distribution, payment or delivery of property (other than common stock of such person) or cash to its stockholders, partners or members in their capacity as such, or (ii) redemption, retirement, purchase or other acquisition of, or permitting of any Restricted Subsidiary to redeem, retire, purchase, or otherwise acquire, directly or indirectly, any shares of any class of its capital stock outstanding on or after the date of this Agreement (or any options or warrants issued by such person with respect to its capital stock), or setting aside of any funds for any of the foregoing purposes, or (iii) making of any payment of any kind on or in respect of subordinated Financial Debt held by any Affiliate of such person. Without limiting the foregoing, "Dividends" with respect to any person shall also include all payments made or required to be made by such person with respect to any stock appreciation rights, plans, equity incentive or achievement plans or any similar plans or setting aside of any funds for the foregoing purposes;

"Restricted Subsidiary" means a Subsidiary (other than an Excluded Subsidiary);

"Sanctionable Practice" means any Corrupt Practice, Fraudulent Practice, Coercive Practice, Collusive Practice, or Obstructive Practice, as those terms are defined herein and interpreted in accordance with the Anti-Corruption Guidelines attached to this Agreement as Annex J;

"Security Documents" means the documents providing for the IFC Security consisting of:

- (a) the Kazyon Egypt Mortgages;
- (b) the Favorixx Mortgage;
- (c) the Kazyon Morocco Share Pledge;
- (d) the Kazyon Egypt Share Pledge;
- (d) the BVI Share Pledge;
- (f) the Favorixx (Kazyon Egypt) Share Pledge;
- (h) the Cayman Islands Share Pledge;
- (i) the DSRA Security;

(j) each Additional Kayzon Egypt Share Pledge;

(k) each Additional Favorixx Share Pledge;

(l) each irrevocable and unconditional official notarized power of attorney issued by the relevant security provider in favor of IFC with full autonomy authorizations to effect and perfect each Real Estate Mortgage;

(m) an irrevocable and unconditional official notarized power of attorney issued by the relevant security provider in favor of IFC with full autonomy authorizations to sell the property to be covered under the Kazyon Egypt Mortgages; and

(n) such other document from time to time designated as a "Security Document" as agreed in writing by IFC and any Co-Borrower;

"Security Perfection Date" means the date on which, to the satisfaction of IFC, all security interests created or purported to be created under the Security Documents (including the Real Estate Mortgages) in accordance with this Agreement have been duly perfected, in each case, as first ranking security, for the benefit of IFC in accordance with applicable laws;

"Short-term Debt" means all Financial Debt other than Long-Term Debt;

"SOFR" means the secured overnight financing rate administered by the Federal Reserve Bank of New York (or any other person which takes over the administration of that rate) published by the Federal Reserve Bank of New York (or any other person which takes over the publication of that rate);

"SOFR Banking Day" means any day other than:

(a) a Saturday or Sunday; and

(b) a day on which the Securities Industry and Financial Markets Association (or any successor organization) recommends that the fixed income departments of its members be closed for the entire day for purposes of trading in US Government securities;

"Sponsor Group" means each of ADP III, CUL, SUH, and Red Hawk, (including any of their respective Permitted Transferees) and the Individual Shareholders;

"Subsidiary" means with respect to any Person, any Affiliate over 50% of whose capital is owned, directly or indirectly, by that Person;

"SUH" means Supreme Universal Holdings Limited, a company established and existing under the laws of Cayman Islands, with company registration number 273332;

"Taxes" means any present or future taxes, withholding obligations, duties and other charges of whatever nature levied by any Authority;

"Term SOFR" means for any day such rate may be required for purposes of this Agreement, the forward-looking term rate based on SOFR for the relevant maturity as provided by the Term SOFR Administrator to, and published by, authorized distributors of Term SOFR at 6:00 a.m., New York time (or any amended publication time for Term SOFR, as specified by the Term SOFR Administrator in the CME Term SOFR benchmark methodology;

"Term SOFR Administrator" means the CME Group Benchmark Administration Limited (CBA) (or a successor administrator);

"Term SOFR Index Cessation Effective Date" means, in respect of Term SOFR and a Term SOFR Index Cessation Event, the first date on which Term SOFR would ordinarily have been provided and is no longer provided;

"Term SOFR Index Cessation Event" means in respect of Term SOFR:

(a) a public statement or publication of information by or on behalf of the Term SOFR Administrator announcing that it has ceased or will cease to provide Term SOFR permanently or indefinitely, provided that, at the time of the statement or publication, there is no successor administrator that will continue to provide Term SOFR; or

(b) a public statement or publication of information by the regulatory supervisor for the Term SOFR Administrator, the Federal Reserve Bank of New York, an insolvency official with jurisdiction over the Term SOFR Administrator or a court or any entity with similar insolvency or resolution authority over the Term SOFR Administrator which states that the Term SOFR Administrator has ceased or will cease to provide Term SOFR permanently, provided that, at the time of the statement or publication, there is no successor administrator that will continue to provide Term SOFR;

"Term SOFR Recommended Fallback Rate" means the rate (inclusive of any spreads or adjustments) recommended as the replacement for Term SOFR by:

(a) the Term SOFR Administrator; or

(b) if the Term SOFR Administrator does not make a recommendation, a committee officially endorsed or convened by the Federal Reserve Board or the Federal Reserve Bank of New York or the supervisor for the Term SOFR Administrator for the purpose of recommending a replacement for Term SOFR (which rate may be produced by the Term SOFR Administrator or another administrator) and as provided by the administrator of that rate (or a successor administrator) or, if that rate is not provided by the administrator thereof (or a successor administrator), published by an authorized distributor;

"Term SOFR Recommended Fallback Rate Index Cessation Effective Date" means, in respect of the Term SOFR Recommended Fallback Rate and a Term SOFR Recommended Fallback Rate Index Cessation Event, the first date on which the Term SOFR Recommended Fallback Rate would ordinarily have been provided and is no longer provided;

"Term SOFR Recommended Fallback Rate Index Cessation Event" means in respect of Term SOFR Recommended Fallback Rate:

(a) a public statement or publication of information by or on behalf of the administrator of the Term SOFR Recommended Fallback Rate announcing that it has ceased or will cease to provide the Term SOFR Recommended Fallback Rate permanently or indefinitely, provided that, at the time of the statement or publication, there is no successor administrator that will continue to provide Term SOFR Recommended Fallback Rate; or

(b) a public statement or publication of information by the regulatory supervisor for the administrator of the Term SOFR Recommended Fallback Rate, the Federal Reserve Bank of New York, an insolvency official with jurisdiction over the administrator of the Term SOFR Recommended Fallback Rate or a court or any entity with similar insolvency or resolution authority over the administrator of the Term SOFR Recommended Fallback Rate which states that the administrator of the Term SOFR Recommended Fallback Rate has ceased or will cease to provide Term SOFR Recommended Fallback Rate permanently, provided that, at the time of the statement or publication, there is no successor administrator that will continue to provide a Term SOFR Recommended Fallback Rate;

"Transaction" means the expansion of Kazyon Morocco's business in the Kingdom of Morocco through the opening of up to 750 new stores and up to 2 Distribution Centers;

"UEFCON" means Upper Egypt Concentrates S.A.E (UEFCON). a company established and existing under the laws of the Arab Republic of Egypt with registration number 740;

"UEFCON SPA Guarantee" means the obligations of Kazyon Egypt and Kazyon UK in their capacities as "Guarantors" as set forth in the Share Purchase Agreement dated 17/10/2024 entered into between Kazyon Cayman Islands in its capacity as purchaser, Kazyon Egypt and Kazyon UK in their capacities as guarantors of Kazyon Cayman Islands and Banque Misr, in its capacity as seller, in relation to the sale and purchase of no less than 825,967 shares (representing approximately 96.64% and up to 854,688 shares (representing 100%) of the entire of the issued share capital of Upper Egypt Concentrates and Syrups SAE ("UEFCON") as at the date of this Agreement];

"Valuation Report" means the appraisal report dated 7 August 2024 prepared by Global Appraisal Tech Company, and any such valuation report to be delivered to IFC in accordance with Section 5.03(k) of this Agreement;

"World Bank" means the International Bank for Reconstruction and Development, an international organization established by Articles of Agreement among its member countries.

Section 1.02. *Financial Calculations.* (a) All financial calculations to be made under, or for the purposes of, this Agreement and any other IFC Financing Document shall be made in accordance with the Accounting Standards and, except as otherwise required in this Agreement or to conform to any provision of this Agreement, shall be calculated from the then most recently issued unaudited quarterly financial statements which the Co-Borrowers are obligated to furnish to IFC under Section 5.03(a) (*Reporting Requirements*).

(b) Where unaudited quarterly financial statements from the last quarter of a Financial Year are used for the purpose of making certain financial calculations then, at IFC's option, those calculations may instead be made from the audited financial statements for such Financial Year.

(c) If a financial calculation is to be made under or for the purposes of this Agreement or any other IFC Financing Document on a Consolidated Basis, that calculation shall be made by reference to the sum of all amounts of similar nature reported in the relevant financial statements of each of the entities whose accounts are to be consolidated with the accounts of the relevant Co-Borrower plus or minus the consolidation adjustments customarily applied to avoid double counting of transactions among any of those entities, including the relevant Co-Borrower.

Section 1.03. *Interpretation.* In this Agreement, unless the context otherwise requires:

- (a) headings are for convenience only and do not affect the interpretation of this Agreement;
- (b) words importing the singular include the plural and vice versa;
- (c) a reference to an Annex, Article, party, Schedule or Section is a reference to that Article or Section of, or that Annex, party or Schedule to, this Agreement;
- (d) a reference to a document includes an amendment or supplement to, or replacement or novation of, that document but disregarding any amendment, supplement, replacement or novation made in breach of this Agreement;
- (e) general words in this Agreement shall not be given a restrictive meaning by reason of their being preceded or followed by words indicating a particular class of acts, matters or things or by examples falling within the general words; and
- (f) a reference to a party to any document includes that party's successors and permitted assigns.

Section 1.04. *Joint and Several Obligations.* Each of the Guarantors' obligations under this Agreement are joint and several.

Section 1.05. *Business Day Adjustment.* (a) When an Interest Payment Date is not a Business Day, then such Interest Payment Date shall be automatically changed to the next Business Day in that calendar month (if there is one) or the preceding Business Day (if there is not).

(b) When the day on or by which a payment (other than a payment of principal or interest) is due to be made is not a Business Day, that payment shall be made on or by the next Business Day in that calendar month (if there is one) or the preceding Business Day (if there is not).

ARTICLE II

The Loan

Section 2.01. *The Loan*. Subject to the provisions of this Agreement, IFC agrees to lend, and the Co-Borrowers agree to borrow, the Loan consisting of a principal of amount of US\$30,000,000.

Section 2.02. *Disbursement Procedure*. (a) Any Co-Borrower may request Disbursements by delivering to IFC, at least 10 Business Days prior to the proposed date of disbursement, a Disbursement request substantially in the form of Schedule 2.

(b) Each Disbursement shall be made by IFC at a bank in New York, New York for further credit to the relevant Co-Borrower's account as specified by the relevant Co-Borrower in the relevant Disbursement request.

(c) Each Disbursement (other than the last one) shall be made in an amount of not less than US\$10,000,000.

(d) The relevant Co-Borrower shall deliver to IFC a receipt, substantially in the form of Schedule 3, within five Business Days following each Disbursement.

Section 2.03. *Interest*. Subject to the provisions of Section 2.04 (*Default Rate Interest*), the Co-Borrowers shall pay interest on the Loan in accordance with this Section 2.03:

(a) During each Interest Period, the Loan (or, with respect to the first Interest Period for each Disbursement, the amount of that Disbursement) shall bear interest at the applicable Interest Rate for that Interest Period.

(b) Interest on the Loan shall accrue from day to day, be prorated on the basis of a 360-day year for the actual number of days in the relevant Interest Period and be payable in arrears on the Interest Payment Date immediately following the end of that Interest Period; provided that with respect to any Disbursement made less than 15 days before an Interest Payment Date, interest on that Disbursement shall be payable commencing on the second Interest Payment Date following the date of that Disbursement.

(c) The Interest Rate for any Interest Period shall be the rate which is the sum of:

(i) the Relevant Spread; and

(ii) the Reference Rate.

(d) (i) *Temporary Non-Publication of Term SOFR*. For purposes of determining the Reference Rate, if (A) Term SOFR for the duration of the relevant Interest Period is not published by the Term SOFR Administrator or an authorized distributor on an Interest Determination Date and is not otherwise provided by the Term SOFR Administrator on such date and (B) a Term SOFR Index Cessation Event shall not have occurred, then the rate for that Interest Determination Date will be the last provided or published Term SOFR for the duration of the relevant Interest Period.

- (ii) *A Term SOFR Index Cessation Effective Date.* If a Term SOFR Index Cessation Event has occurred, the rate in respect of an Interest Determination Date occurring on or after the Term SOFR Index Cessation Effective Date will be, subject to subsections (iii) and (iv) below, the Term SOFR Recommended Fallback Rate for the duration of the relevant Interest Period.
- (iii) *Temporary Non-Publication of Term SOFR Recommended Fallback Rate.* Subject to subsection (iv) below, if there is a Term SOFR Recommended Fallback Rate before the end of the first SOFR Banking Day following the Term SOFR Index Cessation Effective Date but neither the Term SOFR Administrator nor authorized distributors provide or publish the Term SOFR Recommended Fallback Rate for the duration of the relevant Interest Period, then, in respect of an Interest Determination Date for which the Term SOFR Recommended Fallback Rate is required, references to the Term SOFR Recommended Fallback Rate for the duration of the relevant Interest Period will be deemed to be references to the last provided or published Term SOFR Recommended Fallback Rate for the duration of the relevant Interest Period; provided, however, if there is no last provided or published Term SOFR Recommended Fallback Rate for the duration of the relevant Interest Period, then in respect of an Interest Determination Date for which the Term SOFR Recommended Fallback Rate is required, references to the Term SOFR Recommended Fallback Rate for the duration of the relevant Interest Period will be deemed to be references to the last provided or published Term SOFR for such period.
- (iv) *No Term SOFR Recommended Fallback Rate or Term SOFR Recommended Fallback Rate Index Cessation Effective Date.* If:
 - (A) there is no Term SOFR Recommended Fallback Rate before the end of the first SOFR Banking Day following the Term SOFR Index Cessation Effective Date; or
 - (B) there is a Term SOFR Recommended Fallback Rate and a Term SOFR Recommended Fallback Rate Index Cessation Effective Date subsequently occurs,

then the rate for an Interest Determination Date occurring on or after the Term SOFR Index Cessation Effective Date or after the Term SOFR Recommended Fallback Rate Index Cessation Effective Date (as applicable) will be such rate as IFC may determine to be an appropriate successor or replacement for Term SOFR based on derivatives market practices then in effect or such other commercially reasonable alternative for Term SOFR as may be selected by IFC in its sole discretion as an appropriate benchmark for financing under this Agreement.

(e) Subject to any alternative rate of interest agreed as contemplated by Section 2.03(f) below, if a Market Disruption Event occurs in relation to all or any part of the Loan for any Interest Period, IFC shall promptly notify the Co-Borrowers of such event and the relevant Interest Rate for the relevant portion of the Loan for that Interest Period shall be the rate which is the sum of:

- (i) the Relevant Spread; and
 - (ii) either (A) the rate which expresses as a percentage rate per annum the cost (determined on an actual or notional basis) to IFC (or the relevant Participant, as the case may be) of funding its participation in the Loan from whatever source it may reasonably select (which may take into account derivatives market practices then in effect) or (B) at the option of IFC (or any such Participant, as the case may be), the Market Disruption Rate for the relevant period as determined in accordance with Section 2.03(c)(ii) above;
- (f) (i) If a Market Disruption Event occurs in relation to the Loan and the Co-Borrowers so requires, within five Business Days of the notification by IFC pursuant to Section 2.03(e) above, IFC and

the Co-Borrowers shall enter into good faith negotiations (for a period of not more than 30 days) with a view to agreeing a substitute basis for determining the rate of interest applicable to the Loan;

- (iii) Any alternative basis agreed pursuant to sub-paragraph (i) above shall take effect in accordance with its terms and be binding on each party hereto;

If agreement cannot be reached, the Co-Borrowers may prepay the relevant portion of the Loan in accordance with Section 2.06(a) but without any prepayment premium.

(g) On each Interest Determination Date for any Interest Period, IFC shall determine the Interest Rate applicable to that Interest Period and promptly notify the Co-Borrowers of that rate.

(h) The determination by IFC, from time to time, of the applicable Interest Rate shall be final and conclusive and bind the Co-Borrowers (unless the Co-Borrowers show to IFC's satisfaction that the determination involves manifest error).

Section 2.04. Default Rate Interest. (a) Without limiting the remedies available to IFC under this Agreement or otherwise (and to the maximum extent permitted by applicable law), if the Co-Borrowers fail to make any payment of principal or interest (including interest payable pursuant to this Section) or any other payment provided for in Section 2.07 (*Fees*) when due as specified in this Agreement (whether at stated maturity or upon acceleration), the Co-Borrowers shall pay interest on the amount of that payment due and unpaid at the rate which shall be the sum of 2% per annum and the Interest Rate (with respect to amounts relating to the Loan) provided, however, that in the case of any default with respect to amounts provided for in Section 2.07 (*Fees*), the Co-Borrowers shall pay interest on any such amount that is due and unpaid at the rate which shall be the sum of (i) the Relevant Spread; (ii) two per cent (2.0%) per annum; and (iii) Term SOFR for the date that is two (2) SOFR Banking Days prior to the commencement of the Interest Period in which such default occurs and reset on the second SOFR Banking Day preceding each succeeding Interest Period during which such amount remains unpaid; and provided, further, that if default in the payment of any such amount occurs prior to the first Interest Payment Date under this Agreement (whether or not a disbursement has occurred), the applicable Term SOFR rate used to calculate default interest during the period in which such amount remains unpaid extending up to but excluding such first Interest Payment Date shall be Term SOFR for the date that is two (2) SOFR Banking Days prior to the date of this Agreement;

(b) Interest at the rate referred to in Section 2.04(a) shall accrue from the date on which payment of the relevant overdue amount became due until the date of actual payment of that amount (as well after as before judgment), and shall be payable on demand or, if not demanded, on each Interest Payment Date falling after any such overdue amount became due.

Section 2.05. Repayment. (a) Subject to Section 1.05 (*Business Day Adjustment*), the Co-Borrowers shall repay the Loan on the following Interest Payment Dates and in the following amounts:

<u>Interest Payment Date</u>	<u>% of Principal Amount Due</u>
December 15, 2027	7.5%
June 15, 2028	7.5%
December 15, 2028	8.75%
June 15, 2029	8.75%
December 15, 2029	10.0%
June 15, 2030	10.0%
December 15, 2030	11.25%
June 15, 2031	11.25%
December 15, 2031	12.5%
June 15, 2032	12.5%

(b) Upon each Disbursement, the amount disbursed shall be allocated for repayment on each of the respective dates for repayment of principal set out in the table in Section 2.05(a) in amounts which are pro rata to the amounts of the respective installments shown opposite those dates in (that table with IFC adjusting those allocations as necessary so as to achieve whole numbers in each case).

(c) Any principal amount of the Loan repaid under this Agreement may not be re-borrowed.

Section 2.06. Prepayment. Without prejudice to Sections 2.03 (*Interest*), 2.06(c) (*Prepayment*), and Section 2.16 (*Illegality of Participation*):

(a) the Co-Borrowers may prepay on any Interest Payment Date all or any part of the Loan, on not less than thirty (30) days' prior notice to IFC, but only if:

- (i) the Co-Borrowers simultaneously pay all interest accrued in accordance with this Agreement and Increased Costs (if any) on the amount of the Loan to be prepaid, together with the prepayment premium specified in Section 2.06(b), and all other amounts then due and payable under this Agreement, including the amount payable under Section 2.11 (*Unwinding Costs*), if the prepayment is not made on an Interest Payment Date;
- (ii) for a partial prepayment, that prepayment is an amount not less than five million Dollars (USD5,000,000) and
- (iii) if requested by IFC, the Co-Borrowers deliver to IFC, prior to the date of prepayment, evidence satisfactory to IFC that all necessary Authorizations with respect to the prepayment have been obtained.

(b) On the date of any prepayment of the Loan in accordance with Section 2.06(a), the Co-Borrowers shall pay a prepayment premium consisting of an amount in the Loan Currency equal to 2% of the amount to be prepaid. The determination by IFC of the prepayment premium shall be final and conclusive and bind the Co-Borrowers (unless the Co-Borrowers show, to the satisfaction of IFC, that such determination involved manifest error).

(c) Unless otherwise agreed in writing by IFC, the Co-Borrowers shall prepay the outstanding principal amount of the Loan, together with interest accrued in accordance with this Agreement and Increased Costs (if any) thereon and all other amounts payable under this Agreement, including the amount payable under Section 2.11 (*Unwinding Costs*) if the prepayment is not made on an Interest Payment Date, within 180 days of sale thereof, from 100% of the Net Sale Proceeds in respect of a sale of assets permitted under Section 5.02(m)(ii), unless during such period any Co-Borrower and/or any of its Subsidiaries shall have reinvested such Net Sale Proceeds in properties and assets that will be used in existing businesses of such Co-Borrower and/or any of its Restricted Subsidiaries or other businesses approved by IFC, as certified by the Authorized Representatives of such Co-Borrower;

(d) Unless otherwise agreed in writing by IFC, if any Co-Borrower or any of its Restricted Subsidiaries receives:

- (ii) any proceeds of any Condemnation Event or
- (iii) in relation to insurance, any Insurance Proceeds that are not applied by such Co-Borrower or its Restricted Subsidiaries towards repair or reinstatement of any loss or damage of assets relating to its operations or business,

then the amount received or retained shall be applied by the Co-Borrowers in prepayment of the Loan (together with interest accrued in accordance with this Agreement and Increased Costs (if any) thereon and all other amounts payable under this Agreement, including the amount payable under Section 2.11 (*Unwinding Costs*) if the prepayment is not made on an Interest Payment Date) within thirty (30) days of receipt or retention thereof, (it being provided that no prepayment premium shall be due in connection with such prepayment) unless, in

relation to subsection (ii) above, the Co-Borrowers use such proceeds for the replacement, reinstatement and/or repair of assets relating to the affected operations or otherwise in amelioration of the loss in respect of which the relevant insurance claim was made within one hundred and eighty (180) days after receipt of such proceeds.

(e) Amounts of principal prepaid under this Section shall be applied to all the respective outstanding installments of principal of the Loan in inverse order of maturity.

(f) Upon delivery of a notice in accordance with Section 2.06(a), the Co-Borrowers shall make the prepayment in accordance with the terms of that notice.

(g) Any principal amount of the Loan prepaid under this Agreement may not be re-borrowed.

(h) Save for any amount prepaid pursuant to Section 2.06(a), any other amounts prepayable under this Agreement shall not be subject to any prepayment premium or prepayment fee.

Section 2.07. Fees. (a) The Co-Borrowers shall pay to IFC:

- (i) a commitment fee, at the rate of 1% per annum on that part of the Loan that from time to time has not been disbursed or cancelled, beginning to accrue on the date of this Agreement;
- (iii) prorated on the basis of a 360-day year for the actual number of days elapsed; and
- (iv) payable semi-annually, in arrears, on each Interest Payment Date, the first such payment to be due on 15 June 2025.

(b) The Co-Borrowers shall also pay to IFC:

- (i) a front-end fee on the Loan of 1% of the amount of the Loan, to be paid on the earlier of (x) the date which is thirty (30) days after the date of this Agreement and (y) the date immediately preceding the date of the first Disbursement;
- (ii) a portfolio supervision fee of \$15,000 per annum, payable upon receipt of a statement from IFC; and
- (vi) if the Co-Borrowers and IFC agree to restructure all or part of the Loan, the Co-Borrowers and IFC shall negotiate in good faith an appropriate amount to compensate IFC for the additional work of IFC staff required in connection with such restructuring.

Section 2.08. Currency and Place of Payments. (a) The Co-Borrowers shall make all payments of principal, interest, fees, and any other amount due to IFC under this Agreement in the Loan Currency, in same day funds, to the account of IFC at Citibank, N.A., New York, New York, U.S.A., ABA#021000089, for credit to IFC's account number 36085579, with reference to Investment No. 49989 or at such other bank or account in New York as IFC from time to time designates. Payments must be received in IFC's designated account no later than 1:00 p.m. New York time.

(b) The tender or payment of any amount payable under this Agreement (whether or not by recovery under a judgment) in any currency other than the Loan Currency shall not novate, discharge or satisfy the obligation of the Co-Borrowers to pay in the Loan Currency all amounts payable under this Agreement except to the extent that (and as of the date when) IFC actually receives funds in the Loan Currency in the account specified in, or pursuant to, Section 2.08(a).

(c) The Co-Borrowers shall indemnify IFC against any losses resulting from a payment being received or an order or judgment being given under this Agreement in any currency other than the Loan Currency or any place other than the account specified in, or pursuant to, Section 2.08(a). The Co-Borrowers shall, as a separate obligation, pay such additional amount as is necessary to enable IFC to receive, after conversion to the Loan Currency at a market rate and

transfer to that account, the full amount due to IFC under this Agreement in the Loan Currency and in the account specified in, or pursuant to, Section 2.08(a).

(d) Notwithstanding the provisions of Section 2.08(a) and Section 2.08(b), IFC may require the Co-Borrowers to pay (or reimburse IFC) for any Taxes, fees, costs, expenses and other amounts payable under Section 2.14(a) (*Taxes*) and Section 2.15 (*Expenses*) in the currency in which they are payable, if other than the Loan Currency.

Section 2.09. Allocation of Partial Payments. If at any time IFC receives less than the full amount then due and payable to it under this Agreement, IFC may allocate and apply the amount received in any way or manner and for such purpose or purposes under this Agreement as IFC in its sole discretion determines, notwithstanding any instruction that the Co-Borrowers may give to the contrary.

Section 2.10. Increased Costs. On each Interest Payment Date, the Co-Borrowers shall pay, in addition to interest accrued in accordance with this Agreement, the amount which IFC from time to time notifies to the Co-Borrowers in an Increased Costs Certificate as being the aggregate Increased Costs of IFC and each Participant accrued and unpaid prior to that Interest Payment Date.

Section 2.11. Unwinding Costs. (a) If IFC or any Participant incurs any cost, expense or loss as a result of the Co-Borrowers:

- (i) failing to borrow in accordance with a request for Disbursement made pursuant to Section 2.02 (*Disbursement Procedure*);
- (ii) failing to prepay in accordance with a notice of prepayment;
- (iii) prepaying all or any portion of the Loan on a date other than an Interest Payment Date; or
- (iv) after acceleration of the Loan, paying all or a portion of the Loan on a date other than an Interest Payment Date;

then the Co-Borrowers shall immediately pay to IFC the amount that IFC from time to time notifies to the Co-Borrowers as being the amount of those costs, expenses and losses incurred.

(b) For the purposes of this Section, "costs, expenses or losses" include any premium, penalty or expense incurred to liquidate or obtain third party deposits, borrowings, hedges or swaps in order to make, maintain, fund or hedge all or any part of any Disbursement or prepayment of the Loan, or any payment of all or part of the Loan upon acceleration.

Section 2.12. Suspension or Cancellation by IFC. (a) IFC may, by notice to the Co-Borrowers, suspend the right of the Co-Borrowers to Disbursements or cancel the undisbursed portion of the Loan in whole or in part:

- (i) if the first Disbursement has not been made by June 30, 2025, or such other date as the parties agree;
- (iii) if any Event of Default has occurred and is continuing or if the Event of Default specified in Section 6.02(e) (*Events of Default*) is, in the reasonable opinion of IFC, imminent;
- (iv) if any event or condition has occurred which has or can be reasonably expected to have a Material Adverse Effect; or
- (v) on or after June 30, 2026.

(b) Upon the giving of any such notice, the right of the Co-Borrowers to any further Disbursement shall be suspended or cancelled, as the case may be. The exercise by IFC of its right of suspension shall not preclude IFC from exercising its right of cancellation, either for the same or any other reason specified in Section 2.12(a) and shall not limit

any other provision of this Agreement. Upon any cancellation the Co-Borrowers shall, subject to paragraph (c) of this Section 2.12, pay to IFC all fees and other amounts accrued (whether or not then due and payable) under this Agreement up to the date of that cancellation. A suspension shall not limit any other provision of this Agreement.

(c) In the case of partial cancellation of the Loan pursuant to paragraph (a) of this Section 2.12, or Section 2.13(a), interest on the amount then outstanding of the Loan remains payable as provided in Section 2.03 (*Interest*).

Section 2.13. Cancellation by the Co-Borrowers. (a) The Co-Borrowers may, by notice to IFC, irrevocably request IFC to cancel the undisbursed portion of the Loan in whole or in part on the date specified in that notice (which shall be a date not earlier than 30 days after the date of that notice).

(b) IFC shall, by notice to the Co-Borrowers, cancel the undisbursed portion of the Loan effective as of that specified date if, subject to Section 2.12(c), IFC has received all fees and other amounts accrued (whether or not then due and payable) under this Agreement up to such specified date.

(c) Any portion of the Loan that is cancelled under this Section 2.13 may not be reinstated or disbursed.

Section 2.14. Taxes. (a) The Co-Borrowers shall pay or cause to be paid all Taxes (other than taxes, if any, payable on the overall income of IFC) on or in connection with the payment of any and all amounts due under this Agreement that are now or in the future levied or imposed by any Authority of the Countries or by any organization of which any of the Countries is a member or any jurisdiction through or out of which a payment is made.

(b) All payments of principal, interest, fees and other amounts due under this Agreement shall be made without deduction for or on account of any Taxes.

(c) If any Co-Borrower is prevented by operation of law or otherwise from making or causing to be made those payments without deduction, the principal or (as the case may be) interest, fees or other amounts due under this Agreement shall be increased to such amount as may be necessary so that IFC receives the full amount it would have received (taking into account any Taxes payable on amounts payable by the Co-Borrowers under this subsection) had those payments been made without that deduction.

(d) If Section 2.14(c) applies and IFC so requests, the Co-Borrowers shall deliver to IFC official tax receipts evidencing payment (or certified copies of them) within 30 days of the date of that request.

(e) Section 2.14(a) and Section 2.14(b) do not apply to Taxes which directly result from a Participant (or, as the case may be, a participant with a comparable participation in the Loan) having its principal office in the Countries or having or maintaining a permanent office or establishment in the Countries, if and to the extent that such permanent office or establishment acquires the relevant Participation (or a comparable participation in the Loan).

Section 2.15. Expenses. (a) The Co-Borrowers shall pay or, as the case may be, reimburse IFC or its assignees any amount paid by them on account of, all taxes (including stamp taxes), duties, fees or other charges payable on or in connection with the execution, issue, delivery, registration or notarization of the IFC Financing Documents and any other documents related to this Agreement or any other IFC Financing Document.

(b) The Co-Borrowers shall pay to IFC or as IFC may direct:

(i) the fees and expenses of IFC's International Legal Advisor and Local Legal Advisors in the Countries, which have been pre-approved by any Co-Borrower, incurred in connection with:

(A) the preparation of the investment by IFC provided for under this Agreement and any other IFC Financing Document;

- (B) the preparation and/or review, execution and, where appropriate, translation and registration of the IFC Financing Documents and any other documents related to them;
 - (C) the giving of any legal opinions required by IFC under this Agreement and any other IFC Financing Document;
 - (D) the administration by IFC of the investment provided for in this Agreement or otherwise in connection with any amendment, supplement or modification to, or waiver under, any of the IFC Financing Documents; and
 - (E) the registration (where appropriate) and the delivery of the evidences of indebtedness relating to the Loan and its disbursement.
- (ii) the fees and expenses of IFC's International Legal Advisor and Local Legal Advisors in the Countries, incurred in connection with:
 - (A) the occurrence of any Event of Default or Potential Event of Default; and
 - (B) the release of the IFC Security following repayment in full of the Loan.
 - (iii) the costs and expenses incurred by IFC in relation to efforts to enforce or protect its rights under any IFC Financing Document, or the exercise of its rights or powers consequent upon or arising out of the occurrence of any Event of Default or Potential Event of Default, including legal and other professional consultants' fees on a full indemnity basis.

Section 2.16. Illegality of Participation. If IFC has sold a Participation in the Loan and after the date of this Agreement, any change made in any applicable law or regulation or official directive (or its interpretation or application by any Authority charged with its administration) (herein the "Relevant Change") makes it unlawful for the Participant acquiring that Participation to continue to maintain or to fund that Participation:

(a) the Co-Borrowers shall, upon request by IFC (but subject to any applicable Authorization having been obtained), on the earlier of (x) the next Interest Payment Date and (y) the date that IFC advises the Co-Borrowers is the latest day permitted by the Relevant Change, prepay in full that part of the Loan that IFC advises corresponds to that Participation;

(b) concurrently with the prepayment of the part of the Loan corresponding to the Participation affected by the Relevant Change, the Co-Borrowers shall pay all interest accrued in accordance with this Agreement, Increased Costs (if any) on that part of the Loan (and, if that prepayment is not made on an Interest Payment Date, any amount payable in respect of the prepayment under Section 2.11 (*Unwinding Costs*)); and

(c) the Co-Borrowers agree to take all reasonable steps to obtain, as quickly as possible after receipt of IFC's request for prepayment, the Authorization referred to in Section 2.16(a) if any such Authorization is then required.

ARTICLE III

Representations and Warranties

Section 3.01. Representations and Warranties. Each of the Obligors represents and warrants that:

(a) Organization and Authority. Each Obligor and each of its Subsidiaries is a company limited by shares or a joint stock company (as applicable) duly incorporated and validly existing under the laws of the relevant jurisdiction and has the corporate power – and has obtained all required Authorizations - to own its assets, conduct its business as presently conducted and to enter into, and comply with its obligations under, the IFC Financing Documents to which it is a party or will, in the case of any IFC Financing Document not executed as at the date of this Agreement, when that IFC Financing Document is executed, have the corporate power to enter into, and comply with its obligations under, that IFC Financing Document;

(b) Validity. Each IFC Financing Document to which any Obligor or any of its Restricted Subsidiaries is a party has been, or will be, duly authorized and executed by such Person and constitutes, or will, when executed constitute, a valid and legally binding obligation of such Person, enforceable in accordance with its terms;

(c) No Conflict. Neither the making of any IFC Financing Document to which any Obligor or any of its Restricted Subsidiaries is a party nor (when all the Authorizations referred to in Section 4.01(d) (*Authorization*) have been obtained) the compliance with its terms will conflict with or result in a breach of any of the terms, conditions or provisions of, or constitute a default or require any consent under, any indenture, mortgage, agreement or other instrument or arrangement to which such Person is a party or by which it is bound, or violate any of the terms or provisions of such Person's Charter or any Authorization, judgment, decree or order or any statute, rule or regulation applicable to such Person;

(d) Status of Authorizations. To the best of its knowledge after due inquiry, the Authorizations specified in Annex B contain all the Authorizations (other than Authorizations that are of a routine nature and are obtained in the ordinary course of business) needed by each of the Obligors and each of its Restricted Subsidiaries to conduct its business, carry out the Transaction and comply with its obligations under this Agreement and each of the other IFC Financing Documents to which it is a party and (i) those Authorizations specified in Annex B have all been obtained and are in full force and effect; and (ii) if not yet obtained, the relevant Obligor has applied (or is making arrangements to apply) for such Authorizations specified in Annex B applicable to it, and has no reason to believe that it will not obtain those Authorizations in a timely manner;

(e) No Amendments to Charter.

- (i) Kazyon Morocco's Charter has not been amended since May 16, 2024;
- (ii) Kazyon Egypt's Charter has not been amended since 1 September 2024;
- (iii) Kazyon UK Charter has not been amended since 25 March 2022;
- (iv) Kazyon BVI Charter has not been amended since 16 July 2020;
- (v) Favorixx's Charter has not been amended since its incorporation; and
- (vi) Kazyon Cayman Islands Charter has not been amended since 02 October 2024.

(f) No Immunity. No Obligor nor any of its Restricted Subsidiaries nor any of their respective property enjoys any right of immunity from set-off, suit or execution with respect to their respective assets or their respective obligations under any IFC Financing Document;

(g) Disclosure. The Information Memorandum dated March 2024 relating to any Obligor and its Subsidiaries and the Transaction was and continues to be true and accurate (other than for projections and other forward-looking statements contained in that Information Memorandum which such Obligor believes to be reasonable) and does not contain any information which is misleading in any material respect nor does it omit any information the omission of which makes the information contained in it misleading in any material respect;

(h) Financial Condition. Since 31 December 2023, no Obligor nor any of its Subsidiaries (i) has suffered any change that has a Material Adverse Effect or incurred any substantial loss or liability; (ii) has undertaken or agreed to undertake any substantial obligation;

(i) Financial Statements. The Consolidated and consolidating financial statements of the Obligors and their respective Subsidiaries for the period ending on 31 December 2023:

(i) have been prepared in accordance with the Accounting Standards, and give a true and fair view of the financial condition of the Obligors and their Restricted Subsidiaries as of the date as of which they were prepared and the results of the operations of the Obligors' and each of their Restricted Subsidiaries' during the period then ended;

(ii) disclose all liabilities (contingent or otherwise) of the Obligors and each of their Restricted Subsidiaries, and the reserves, if any, for such liabilities and all unrealized or anticipated liabilities and losses arising from commitments entered into by the Obligors and each of their financial statements);

(j) Employee Benefit Plans. Each of the Obligors and each of their respective Subsidiaries is in compliance in all material respects with its respective obligations relating to all employee benefit plans established, maintained or contributed to by it and does not have outstanding any liabilities with respect to any such employee benefit plans;

(k) Title to Assets and Permitted Liens. (i) Each Obligor and each of its Subsidiaries has good and marketable title to all of the assets purported to be owned by it and possesses a valid leasehold interest in all assets which it purports to lease, in all cases free and clear of all Liens, other than Permitted Liens, and no contracts or arrangements, conditional or unconditional, exist for the creation by the relevant Obligor or its Restricted Subsidiaries of any Lien, except for the IFC Security and (ii) the Liens set forth in Annex C;

(l) IFC Security. (i) The provisions of each Security Document (other than, until the expiry of the relevant timeline specified in Section 4.04 (*Conditions Subsequent*), each of such Security Documents set forth in Section 4.04 (*Conditions Subsequent*)) are effective to create, in favor of IFC, legal, valid and enforceable Liens on or in all of the IFC Security (other than, until the expiry of the relevant timeline specified in Section 4.04 (*Conditions Subsequent*), each of such Security Documents set forth in Section 4.04 (*Conditions Subsequent*)); and (ii) all recordings and filings have been made in all public offices, all necessary consents obtained and all other action has been taken (including, upon entering of the Cayman Islands Share Pledge or an Additional Favorixx Share Pledge by Kazyon Cayman Islands in accordance with Section 4.04 (*Conditions Subsequent*), the registration of the security interest created pursuant to the Cayman Islands Share Pledge in the register of members of Kazyon Cayman Islands; and the security interest created pursuant to such Additional Favorixx Share Pledge in the register of mortgages and charges of Kazyon Cayman Islands) so that the Liens created by each such Security Document, shall on and from the date of the first Disbursement (and in relation to each of such Security Documents set forth in Section 4.04 (*Conditions Subsequent*), on and from the relevant date specified in Section 4.04 (*Conditions Subsequent*)) for its creation and perfection, constitute perfected Liens on the IFC Security with the priority specified in the relevant Security Documents;

(m) Financial Debt. Annex D sets forth all Financial Debt of the Obligors and their Subsidiaries, and there exists no outstanding default thereunder;

(n) Taxes. All tax returns and reports of each Obligor and its Subsidiaries required by law to be filed have been duly filed and all Taxes, obligations, fees and other governmental charges upon each Obligor, or its properties, or its income

or assets, which are due and payable or to be withheld, have been paid or withheld, other than those presently payable without penalty or interest or otherwise challenged in good faith in accordance with the laws applicable thereto;

(o) Litigation.

(i) No Obligor nor any of its Subsidiaries is engaged in nor threatened by, any litigation, arbitration or administrative proceedings, the outcome of which could reasonably be expected to have a Material Adverse Effect; and

(ii) no final non-appealable judgment or order has been issued which has or may reasonably be expected to have a Material Adverse Effect;

(p) Compliance with Law. No Obligor nor any of its Subsidiaries is in violation of any statute or regulation of any Authority in any material respect in connection with the conduct of their respective business or ownership of their respective property;

(q) Environmental Matters. There are no material environmental or social risks or issues in respect of Kazyon Morocco's or any of its Subsidiaries' Operations other than those identified by the E&SA;

(r) Labor Matters. There are no ongoing threatened, strikes, slowdowns or work stoppages by employees of any of the Obligors or its Subsidiaries which would reasonably be expected to have a Material Adverse Effect;

(s) Use of Proceeds. The proceeds of the Loan shall be utilized be utilized for the Transaction;

(t) Subsidiaries. The entities listed on Annex E are the only Subsidiaries of the Obligors, and Annex E correctly sets forth, as of the date hereof and the date of the first Disbursement, (i) the percentage ownership (direct and indirect) of each Obligor in each class of capital stock or share capital (as applicable) of each of its Subsidiaries, and the direct owner thereof and (ii) the structure chart at Annex E showing the relationship between the Obligor and) all of their respective Subsidiaries, as at the date of this Agreement is true, complete and accurate in all material respects;

(u) Governing Law and Enforcement. The choice of English law as the governing law of the IFC Financing Documents which purport to be governed thereby will be recognized and enforced in the Countries. Any arbitral award obtained in England in relation to a IFC Financing Document will be recognized and enforced in the Countries;

(v) Sanctionable Practices. No Obligor, nor any of its Subsidiaries or Affiliates, nor (to the knowledge of the Obligors) any Person acting on its or any of their behalf, has committed or engaged in, with respect to any of their respective operations or any transaction contemplated by this Agreement, any Sanctionable Practice;

(w) UN Security Council Resolutions. No Obligor has entered into any transaction nor engaged in any activity prohibited by any resolution of the United Nations Security Council under Chapter VII of the United Nations Charter; and

(x) No Material Omissions. None of the representations and warranties in this Section 3.01 omits any material matter the omission of which makes any of such representations and warranties misleading.

Section 3.02. IFC Reliance. Each of the Obligors acknowledges that it makes the representations and warranties in Section 3.01 with the intention of persuading IFC to enter into this Agreement and the other IFC Financing Documents and that IFC enters into this Agreement and the other IFC Financing Documents on the basis of, and in full reliance on, each of such representations and warranties.

ARTICLE IV

Conditions of Disbursement

Section 4.01. Conditions of First Disbursement. The obligation of IFC to make the first Disbursement is subject to the fulfillment prior to or concurrently with the making of that first Disbursement of the following conditions:

(a) Transaction and other Documents. The IFC Financing Documents (other than, until the expiry of the relevant timeline specified in Section 4.04 (*Conditions Subsequent*), each of such Security Documents set forth in Section 4.04 (*Conditions Subsequent*)), each in form and substance satisfactory to IFC, have been entered into by all parties to them and have become (or, as the case may be, remain) unconditional and fully effective in accordance with their respective terms (except for this Agreement having become unconditional and fully effective, if that is a condition of any of those agreements), and IFC has received a copy of each of those agreements to which it is not a party;

(b) Certificate of Incumbency and Authority. IFC has received a Certificate of Incumbency and Authority from each of the Obligors, dated the date of the first Disbursement, together with copies of the Charter, by-laws (if any), resolutions and powers of attorney referred to in such Certificate of Incumbency and Authority, and all of the foregoing shall be in form and substance satisfactory to IFC;

(c) Security. IFC has received (a) evidence of (i) due creation, perfection and/or registration of the IFC Security in accordance with applicable laws, (ii) payment of applicable registration/perfection fees in relation to the relevant IFC Security, (iii) delivery of notices and acknowledgments and the making of entries and annotations in corporate registers in each as required pursuant to the relevant Security Document and (iv) filing and/or registration of the relevant IFC Security with any appropriate Authority, and (b) such other evidence of perfection and/or registration of the IFC Security as first ranking or sole security interests in all assets and rights subject to the Security Documents, in each case, other than, until the expiry of the relevant timeline specified in Section 4.04 (*Conditions Subsequent*), in relation to each of such Security Documents set forth in Section 4.04 (*Conditions Subsequent*).

(d) Authorizations. The Obligors have obtained, and provided to IFC copies of, all Authorizations listed in Annex B (other than those required to be delivered on a date which falls after the first Disbursement), and such other Authorizations that may become necessary for:

- (i) the Loan;
- (ii) any Obligor's operations;
- (iii) the implementation of the Financial Plan;
- (vii) the due execution, delivery, validity and enforceability of, and performance by each Obligor and each of its Restricted Subsidiaries of their respective obligations under, this Agreement and the other IFC Financing Documents, and any other documents necessary or desirable to the implementation of any of the IFC Financing Documents; and
- (iv) the remittance to IFC or its assigns in Dollars of all monies payable with respect to the IFC Financing Documents; and all those Authorizations are in full force and effect;

(f) Legal Opinions. IFC has received a legal opinion: (i) in a form and substance acceptable to IFC, from each Local Legal Advisor; and (ii) a legal opinion from the International Legal Advisor in a form and substance acceptable to IFC, with regard to the English law aspects of the Financing Documents;

(g) Kazyon UK's Certificate. IFC has received a certification from the executive chairman and chief financial officer of Kazyon UK confirming that, as at a date within 60 days prior to the date of first Disbursement, the Obligors and

each of their respective Subsidiaries are in compliance with the provisions of Section 5.01(c) (*Affirmative Covenants*) and containing a brief description of the systems and records in place;

(h) Insurance. IFC has received copies of all insurance policies required to be obtained pursuant to Section 5.04 (*Insurance*) and Annex F prior to the date of first Disbursement, and a certification of the Co-Borrowers' insurers or insurance agents confirming that such policies are in full force and effect and all premiums then due and payable under those policies have been paid;

(i) Fees. IFC has received the fees which Section 2.07 (*Fees*) requires to be paid before the date of the first Disbursement and all other amounts then due under this Agreement including but not limited to, reimbursement of all invoiced fees and expenses of IFC's counsel, if IFC so requires;

(j) Legal Fees and Expenses. IFC has received the reimbursement of all invoiced fees and expenses of IFC's counsel as provided in Section 2.15(b)(ii) or confirmation that those fees and expenses have been paid directly to that counsel;

(k) Authorization of Auditors. IFC has received a copy of the authorization to the Auditors referred to in Section 5.01(f) (*Affirmative Covenants*);

(l) Solvency. IFC has received a solvency certificate in the form of Schedule 5 from the chief financial officer of the Obligors and their respective Restricted Subsidiaries;

(m) Environmental Matters. (i) Kazyon Morocco has completed an E&SA and delivered to IFC an Action Plan, each in form and substance acceptable to IFC, (ii) the Co-Borrowers and IFC have agreed on the form of Annual Monitoring Report, and (iii) Kazyon Morocco is in compliance with the Action Plan; and

(n) Certificates of non-banrkuptcy. IFC has received certificates of non-bankruptcy and non-protesto certificates issued by the relevant court no later than 20 days prior to the date of this Agreement in relation to Kazyon Egypt and Favorixx.

Section 4.02. Conditions of All Disbursements. The obligation of IFC to make any Disbursement, including the first Disbursement, is also subject to the conditions that:

(a) No Default. No Event of Default and no Potential Event of Default has occurred and is continuing;

(b) Use of Proceeds. The proceeds of that Disbursement are, at the date of the relevant request, needed by the Co-Borrowers for the purposes described in Section 3.01(s) and are not in reimbursement of, or to be used for, expenditures in the territories of any country that is not a member of the World Bank or for goods produced in or services supplied from any such country;

(c) No Material Adverse Effect. Since the date of this Agreement nothing has occurred which has or could reasonably be expected to have a Material Adverse Effect;

(d) No Material Loss or Liability. Since the date of this Agreement, no Obligor nor any of its Subsidiaries has incurred any material loss or liability (except such liabilities as may be incurred in accordance with Section 5.02 (*Negative Covenants*));

(e) Representations and Warranties. The representations and warranties made in Article III are true and correct in all material respects on and as of the date of that Disbursement with the same effect as if those representations and warranties had been made on and as of the date of that Disbursement (but in the case of Section 3.01(c) (*Representations and Warranties*), without the words in parentheses);

(f) Legal Opinions. IFC has received (if it so requires) a legal opinion or opinions in form and substance satisfactory to IFC, of the Local Legal Advisors, with respect to any matters relating to that Disbursement.

(g) No Violations. After giving effect to that Disbursement, the Obligors would not be in violation of:

- (i) its Charter;
- (ii) any material provision contained in any document to which it is a party (including this Agreement) or by which it is bound; or
- (iii) any law, rule, regulation, Authorization in any material respect or any material provision of an agreement or other document binding on it directly or indirectly limiting or otherwise restricting its borrowing or guarantee power or authority or its ability to borrow or guarantee;

(h) Financial Ratios. IFC has received, in form and substance satisfactory to it, a certificate from jointly the chairman and the chief executive officer (in his or her capacity as such and not in any other capacity) of Kazyon Egypt and the chief financial officer (in his or her capacity as such and not in any other capacity) of Kazyon UK, together with reasonable supporting evidence and calculations, if required by IFC, confirming that after taking into account the amount of that Disbursement, Kazyon Egypt is in compliance with Section 5.01(n) (*Financial Ratios*);

(i) Legal Fees and Expenses. IFC has received the reimbursement of all invoiced fees and expenses of IFC's counsel as provided in Section 2.15(b)(ii) or confirmation that those fees and expenses have been paid directly to that counsel; and

(j) Environmental Matters. Kazyon Morocco is in compliance with the Action Plan.

Section 4.03. Obligors' Certification. The Obligors shall deliver to IFC with respect to each request for Disbursement:

(a) certifications, in the form included in Schedule 2, relating to the conditions specified in Section 4.02 (*Conditions of All Disbursements*) (other than the condition in Section 4.02(g)) expressed to be effective as of the date of that Disbursement; and

(b) such evidence as IFC may reasonably request of the proposed utilization of the proceeds of that Disbursement or the utilization of the proceeds of any prior Disbursement.

Section 4.04. Conditions Subsequent. (a) The Obligors shall deliver or (as applicable) procure the delivery of the following Security Documents and other evidence, in each case, in a form and substance satisfactory to IFC and, in relation to such IFC Security, IFC shall have received legal opinion or opinions in form and substance satisfactory to IFC, of the relevant Local Legal Advisor:

- (i) by no later than the date which is 20 Business Days following the date of the first Disbursement (or such later date as IFC may agree in writing), duly executed Additional Kazyon Egypt Share Pledges by the shareholders of Kazyon Egypt (other than Kazyon BVI) and evidence that such Additional Kazyon Egypt Share Pledges have been duly created and perfected as first ranking security in favour of, and for the benefit of, IFC.
- (ii) by no later than the date which is 20 Business Days following the date of the first Disbursement (or such later date as IFC may agree in writing), duly executed Additional Favorixx Share Pledges by the shareholders of Favorixx (other than Kazyon Egypt or Kazyon Cayman Islands) and evidence that such Additional Favorixx Share Pledges have been duly created and perfected as first ranking security in favour of, and for the benefit of, IFC.

- (iii) by no later than the first anniversary of the date of the registration of the relevant land(s) with the competent Notary Public, duly executed Kazyon Egypt Mortgages and evidence that the Kazyon Egypt Mortgages have been duly created and perfected as first ranking security in favour of, and for the benefit of, IFC.
- (iv) by no later than the first anniversary of the date of the registration of the relevant land(s) with the competent Notary Public, duly executed Favorixx Mortgage and evidence that the Favorixx Mortgage has been duly created and perfected as first ranking security in favour of, and for the benefit of, IFC.
- (v) following the first Disbursement, by no later than 20 Business Days after the occurrence of the Favorixx Share Increase,
 - (A) the Additional Favorixx Share Pledge to be entered into by Kazyon Cayman Islands has been duly created and perfected as first ranking security in favour of, and for the benefit of, IFC in accordance with applicable law, and
 - (B) the Cayman Islands Share Pledge to be entered into by the shareholder(s) of Kazyon Cayman Islands has been duly created and perfected as first ranking security in favour of, and for the benefit of, IFC in accordance with applicable law,

provided that if Favorixx Share Increase has not occurred following a Favorixx Share Acquisition, the Co-Borrowers shall ensure each of foregoing Security Document is created and perfected as first ranking security in favour of, and for the benefit of, IFC in accordance with applicable law by no later than the date which is 20 Business Days following the date of the Favorixx Share Acquisition.

(b) The Obligors shall procure that the full value of the issued capital and the Shares (as defined in Kazyon Egypt Share Pledge) will be paid up by no later than 30 June 2025.

(c) Kazyon Morocco, shall by no later than 20 Business Days following the date of this Agreement, deliver to IFC, in a form and substance satisfactory to IFC, the Moroccan Foreign Exchange Office authorisation required in connection with the Guarantee under this Agreement and the Kazyon Morocco Share Pledge.

Section 4.05. Conditions for IFC Benefit. The conditions in Section 4.01 through Section 4.04 are for the benefit of IFC and may be waived only by IFC in its sole discretion.

ARTICLE V

Particular Covenants

Section 5.01. Affirmative Covenants. Unless IFC otherwise agrees in writing, each Obligor shall (and, as applicable, shall procure that its officers, directors, employees, agents, contractors, subcontractors and each of its Subsidiaries (except where otherwise expressly specified herein), shall):

(a) Corporate Existence; Conduct of Business. Do all things necessary to maintain its existence and keep in full force and effect its material rights, franchises, licenses, permits, copyrights, trademarks and patents, comply with its Charter, conduct its operations with due diligence and efficiency and in accordance with sound grocery retail, financial and business practices;

(b) Use of Proceeds; Compliance with Law. (i) Apply the proceeds of the Loan exclusively as set forth in the Financial Plan, and (ii) ensure that each Obligor and each of their respective Subsidiaries comply in all material respects (or, in the case of Applicable E&S Law, in all respects) with all applicable law, statutes, regulations and orders of, and all

applicable restrictions imposed by, all Authorities in respect of its operations and the ownership of its property (including applicable law, statutes, regulations, orders and restrictions relating to environmental standards and controls);

(c) Accounting and Financial Management. Maintain an accounting and control system, management information system and books of account and other records, which together adequately reflect truly and fairly the financial condition of each Obligor and its Subsidiaries and the results of their respective operations in conformity with the Accounting Principles;

(d) Taxes. Pay and discharge, all taxes, assessments and governmental charges or levies imposed upon it or upon its income or profits or upon any properties belonging to it; provided that no Obligor nor any of their respective Subsidiaries shall be required to pay any such tax, assessment, charge, levy or claim which is being contested in good faith and by proper proceedings if it has maintained adequate reserves with respect thereto in accordance with the Accounting Principles;

(e) Auditors. (i) Maintain at all times the Auditors as auditors of the Obligors and each of their respective Subsidiaries unless such firm is replaced by a firm of independent public accountants acceptable to IFC or any of the following entities PricewaterhouseCoopers, Ernst & Young, Klynveld Peat Marwick Goerdeler (KPMG) or Deloitte.

(f) Authorization to Auditors. Irrevocably authorize, in the form of Schedule 6, the Auditors (whose fees and expenses shall be for the account of the relevant Obligor) to communicate directly with IFC at any time regarding that Obligor's or any of its Subsidiary's accounts and operations, and provide to IFC a copy of that authorization, and, no later than 30 days after any change in Auditors, issue a similar authorization to the new Auditors and provide a copy thereof to IFC;

(g) CAO Access. Upon request from IFC, permit representatives of IFC and the CAO, to, during working hours of a Business Day,:

- (i) visit any of the sites and premises where the business of any of Kazyon Morocco is conducted;
- (ii) inspect any sites, facilities, plants and equipment of Kazyon Morocco;
- (iii) have access to the books of account and all records of Kazyon Morocco (including electronic and hard copy files); and
- (iv) have access to those employees, agents, contractors and subcontractors of Kazyon Morocco who have or may have knowledge of matters with respect to which IFC or CAO seeks information;

in each case upon reasonable prior notice and subject to any applicable laws and regulations; provided that such access shall be for the purpose of carrying out the CAO's role under the CAO Policy, and provided further that in carrying out its work, the CAO may disclose information gathered during its activities, subject to the provisions of the CAO Policy;

(h) Social & Environmental Requirements. Undertake the Operations in compliance with (i) all Applicable E&S Law, (ii) the Action Plan and (iii) the Performance Standards;

(i) Annual Monitoring Report. (i) Annually review the form of the Annual Monitoring Report and, following such review, (ii) consult with IFC as to whether revision of the form is necessary or appropriate in light of changes to the Operations, or in light of environmental or social risks identified by Kazyon Morocco's E&S Management System; and (iii) revise the form, if necessary or appropriate, as agreed with IFC;

(j) E&S Management System. Ensure the continuing implementation and operation of the E&S Management System to assess and manage environmental and social performance of Kazyon Morocco's and its Subsidiaries' Operations in compliance with (i) all Applicable E&S Law, (ii) the Action Plan, and (iii) the Performance Standards;

(k) Authorizations. (i) obtain and maintain in force (and where appropriate, renew in a timely manner) the Authorizations specified in Annex B not later than the deadline set out therein (where applicable) and all other material Authorizations which are necessary for the implementation of the Transaction, the carrying out of the business and operations of the Obligors and their Subsidiaries generally and the compliance by the Obligors and their Subsidiaries with all their respective obligations under the IFC Financing Documents; and (ii) comply with all the conditions and restrictions contained in, or imposed on the Obligors or any of their Subsidiaries by, those Authorizations;

(l) Security; Further Assurances. (i) From time to time, execute, acknowledge and deliver or cause to be executed, acknowledged and delivered such further instruments as may reasonably be requested by IFC for perfecting or maintaining in full force and effect the IFC Security or for re-registering the IFC Security or otherwise and, if necessary, create and perfect additional Security, to enable the Obligors and their Subsidiaries to comply with their respective obligations under the IFC Financing Documents; and (ii) promptly deliver to IFC all such documents and things (including wet ink signatures) as IFC may from time to time require which it confirms are, in its reasonable opinion, necessary or desirable to ensure that the IFC Financing Documents are properly executed, binding and enforceable in all relevant jurisdictions provided that in relation to each of such Security Documents set forth in Section 4.04 (*Conditions Subsequent*), the foregoing shall apply no earlier than the relevant date specified in Section 4.04 (*Conditions Subsequent*) for the satisfaction of the conditions subsequent obligation in relation to such Security Document;

(m) Pension Plans. Comply with all material requirements relating to any pension or employee benefit plans; and

(n) Financial Ratios. With respect to Kazyon Egypt and its Subsidiaries, maintain at all times the following ratios on a Consolidated Basis:

- (A) an Adjusted Financial Debt to Adjusted EBITDA Ratio (disregarding from the numerator, any intercompany Financial Debt between Obligors) of not more than 4.0; and
- (b) a Prospective Debt Service Coverage Ratio (disregarding from the denominator, any intercompany Financial Debt between Obligors) of not less than 1.2;

(o) Debt Service Reserve Requirements. Ensure that the credit of the Debt Service Reserve Account is equal at the relevant times to an amount no less than the DSR Required Balance; and

(q) Transfer Pricing. Ensure, using reasonable endeavors, that on and from the date Deloitte delivers its final report in relation to the transfer pricing policy and processes of the Obligors, which shall be a date no later than 30 June 2025, the implementation of the findings in such report in relation to the transfer pricing policy and processes of the Obligors to the extent permissible under applicable law.

Section 5.02. Negative Covenants. Unless IFC otherwise agrees in writing, each Obligor shall not, and shall cause each of its Subsidiaries (except where otherwise expressly specified) not to:

(a) Restricted Payments. Declare or pay any Restricted Payment, except that:

- (i) any Excluded Subsidiary may declare or pay any Restricted Payment;
- (ii) any Restricted Subsidiary of any Obligor may declare and pay cash Restricted Payments to the relevant Obligor or to any wholly-owned Restricted Subsidiary of such Obligor (or in the case of a Restricted Subsidiary incorporated in Egypt, such Restricted Subsidiary whose up to 90% or more of its entire share capital is owned by such Obligor);
- (iii) any partially-owned Restricted Subsidiary may declare and pay cash Payments to its stockholders, provided that the relevant Obligor and its Restricted Subsidiaries must receive at least their proportionate share of any Restricted Payments paid by such Subsidiary;

- (iv) any of the Obligors (other than Kazyon UK) or any Restricted Subsidiary of an Obligor may declare and pay cash dividends required to be paid under applicable law; and
- (v) any of the Obligors (other than Kazyon UK) or any Restricted Subsidiary of an Obligor may declare and pay cash Restricted Payments if, after giving effect to such Restricted Payment (i) no Potential Event of Default or Event of Default shall be continuing or would result therefrom, (ii) Kazyon Egypt is in compliance with all financial covenants set forth in Section 5.01(n) on a Pro Forma Basis, (iii) such Restricted Payment is made out of retained earnings and (iv) such Obligor delivers to IFC a certification substantially in the form of Schedule 7,

provided that in relation to sub-sections (ii) to (v) of this Section 5.02(a), Kazyon Egypt shall not declare nor pay any Restricted Payment or dividend unless otherwise agreed in writing by IFC;

(b) Capital Expenditures. Incur expenditures or commitments for expenditures for fixed or other non-current assets other than (i) those required for carrying out the Transaction, (ii) or expenditures or commitments for expenditures for fixed or other non-current assets incurred by any Excluded Subsidiary for itself, or (iii) expenditures or commitments incurred by any Obligor and its Restricted Subsidiaries if, after giving effect thereto, Kazyon Egypt is in compliance with all financial covenants set forth in Section 5.01(n) on a Pro Forma Basis, provided that no Obligor nor its Restricted Subsidiary may incur expenditures or commitments in any Excluded Subsidiary unless by way of new equivalent equity injection by Kazyon UK existing shareholders or by a third party investor;

(c) Permitted Financial Debt. Incur, assume or permit to exist any Financial Debt except:

- (i) the Loan; and
- (ii) any Permitted Intercompany Financial Debt;

(d) Derivative Transactions. Enter into any Derivative Transaction or assume the obligations of any party to any Derivative Transaction unless such Derivative Transaction is for non-speculative hedging in the ordinary course of business on terms and conditions which are the then applicable market terms and solely for the purposes of protecting any Obligor and its Restricted Subsidiaries from interest rate or foreign exchange risk related to the Loan;

(e) Guarantees and Other Obligations. Enter into any agreement or arrangement to guarantee or, in any way or under any condition, assume or become obligated for all or any part of any financial or other obligation of another Person other than as provided under the IFC Financing Documents and by Kazyon Egypt in relation to the UEFCON SPA Guarantee;

(f) Permitted Liens. Create or permit to exist any Lien on any property, revenues or other assets, present or future, of any Obligor or any of its Restricted Subsidiaries, except for the following (collectively, "Permitted Liens"):

- (i) the IFC Security;
- (iii) any Lien arising from any tax, assessment or other governmental charge or other Lien arising by operation of law, in each case if the obligation underlying any such Lien is not yet due or, if due, is being contested in good faith by appropriate proceedings so long as:
 - (A) those proceedings do not involve any substantial danger of the sale, forfeiture or loss of any material asset(s), title thereto or any interest therein, nor interfere in any material respect with the use or disposition thereof or the implementation of the Transaction or the carrying on of the business or operations of the Obligors and their Subsidiaries; and

- (B) the relevant Obligor has set aside adequate reserves sufficient to promptly pay in full any amounts that such Obligor may be ordered to pay on final determination of any such proceedings; and

(iii) any Lien set forth in Annex C of this Agreement;

(g) Arm's Length Transactions. Enter into any transaction except in the ordinary course of business on the basis of arm's length arrangements (including, without limitation, transactions whereby such Obligor or its Subsidiary might pay more than the ordinary commercial price for any purchase or might receive less than the full ex-works commercial price (subject to normal trade discounts) for its products;

(h) Permitted Investments. (i) Make or permit to exist loans or advances to, or deposits (except commercial bank deposits in the ordinary course of business) with, other Persons or investments in any Person or enterprise (each of the foregoing are "Investment" and, collectively, "Investments") other than that, subject to Section 5.02(c)(ii),

- (i) any Obligor and its Subsidiaries may make loans and advances to another Obligor or a Subsidiary of any Obligor, **provided that**, (x) no Event of Default or Potential Event of Default shall have occurred at the time of, or after giving effect to, such transaction, and (y) both at the time of making and after giving effect to such transaction, Kazyon Egypt is in compliance with the financial ratios set forth in Section 5.01(n);
- (ii) any Obligor and its Subsidiaries may make or permit any Investment to be made in any Excluded Subsidiary or Kazyon Morocco if such Investment is financed by way of new equivalent equity injection in Kazyon UK by the existing shareholders of Kazyon UK or by a third-party investor; and
- (ii) Kazyon UK may make any Investment in Al Dukan, Kazyon Morocco or any new business if such Investment is financed by the proceeds of any dividend, distribution or return of any equity capital received in cash by Kazyon UK from any Excluded Subsidiary.

(i) Fundamental Changes. Change (i) its Charter in any manner which would be inconsistent with the provisions of any IFC Financing Document; or (ii) change its Financial Year;

(j) Amendments, Waivers, Etc. of Material Agreements. Terminate, amend or grant any waiver with respect to any provision of:

- (i) any IFC Financing Document; or
- (ii) any agreement or other instrument evidencing or relating to Financial Debt;

(k) Nature of Business. Engage directly or indirectly in any business other than the businesses engaged in by the Obligors and their respective Subsidiaries as of the date hereof and reasonable extensions thereof and businesses ancillary or complementary thereto; or engage in any business or own any significant assets or have any material liabilities relating to any Prohibited Activity;

(l) Winding Up, Liquidation, Merger or Consolidation. Wind up, liquidate or dissolve its affairs or enter into any partnership, joint venture or transaction of merger or consolidation, except that any Subsidiary of an Obligor (other than any Subsidiary who is an Obligor) may merge or consolidate with and into, or be dissolved or liquidated into, that Obligor or any wholly-owned Subsidiary of that Obligor (or in the case of a Subsidiary incorporated in Egypt, such Subsidiary whose up to 90% or more of its entire share capital is owned by such Obligor), so long as (A) such Obligor or such Subsidiary is the surviving or continuing entity of any such merger, consolidation, dissolution or liquidation and (B) any security interests granted to IFC pursuant to the Security Documents in the assets of such Subsidiary shall remain in full force and

effect and perfected (to at least the same extent as in effect immediately prior to such merger, consolidation, dissolution or liquidation) and all actions required to maintain said perfected status have been taken;

(m) Asset Sales. Sell, transfer, lease or otherwise dispose of all or any part of its property or assets (other than sales of business assets, products and inventory in the ordinary course of business), whether in a single transaction or in a series of transactions, related or otherwise, except that:

- (i) any Obligor and its Subsidiaries may dispose of inventory, obsolete or worn-out property, or sale of assets and products in the ordinary course of business;
- (ii) any Obligor and its Subsidiaries may sell assets (other than the capital stock or other equity interests of any Subsidiary if, after giving effect to such sale, the entity would no longer be a Subsidiary), so long as (A) no Event of Default or Potential Event of Default then exists or would result therefrom, (B) each such sale is made on an arm's-length basis and such Obligor or the respective Subsidiary receives at least fair market value, as determined in good faith by the board of directors of such Obligor or Subsidiary, (C) the consideration received by such Obligor or such Subsidiary consists solely of cash and is paid at the time of the closing of such sale, (D) the Net Sale Proceeds therefrom are applied to the prepayment of the Loan and/or reinvested as (and to the extent) required by Section 2.06(c) and (E) such assets are not subject to the lien of the Security Documents;
- (iii) each of Obligors and their respective Subsidiaries may grant licenses, sublicenses, leases or subleases to other Persons not materially interfering with the conduct of the business of such Obligor or any of its Subsidiaries, in each case so long as no such grant otherwise affects IFC's security interest in the asset or property subject thereto;
- (iv) any Obligor or any of its Subsidiary may convey, sell or otherwise transfer all or any part of its business, properties and assets to such Obligor or to any wholly-owned Subsidiary of such Obligor (or in the case of a Subsidiary incorporated in Egypt, such Restricted Subsidiary whose up to 90% or more of its entire share capital is owned by such Obligor) so long as any security interests granted to IFC pursuant to the Security Documents in the assets so transferred shall remain in full force and effect and perfected (to at least the same extent as in effect immediately prior to such transfer) and all actions required to maintain said perfected status have been taken; and
- (v) any Obligor and any of its Subsidiaries may liquidate or otherwise dispose of cash equivalents in the ordinary course of business, in each case for cash at fair market value;

(n) Asset Purchases. Purchase or otherwise acquire (in one or a series of related transactions) any part of the property or assets (other than purchases or other acquisitions of inventory, materials and equipment in the ordinary course of business) of any Person, except that expenditures for fixed or other non-current assets by any Obligor and its Subsidiaries shall be permitted to the extent not in violation of Section 5.02(b) (*Negative Covenants*);

(o) Sale-Leaseback Transactions. Enter into any sale-leaseback transaction;

(p) Use of Proceeds. Use the proceeds of any Disbursement in the territories of any country that is not a member of the World Bank or for reimbursements of expenditures in those territories or for goods produced in or services supplied from any such country;

(q) Amendment of Action Plan. Amend the Action Plan in any material respect without the prior written consent of IFC;

(r) Distributions from Subsidiaries. Directly or indirectly, create or otherwise cause or suffer to exist or become effective any encumbrance or restriction on the ability of any Subsidiary of any Obligor to (a) pay dividends or make any

other distributions on its capital stock or any other equity interest or participation in its profits owned by such Obligor or any of its Subsidiaries, or to pay any Financial Debt owed to such Obligor or any of its Subsidiaries, (b) make loans or advances to such Obligor or any of its Subsidiaries or (c) transfer any of its properties or assets to such Obligor or any of its Subsidiaries, except for such encumbrances or restrictions existing under or by reason of (i) applicable law, (ii) the IFC Financing Documents, (iii) customary provisions restricting subletting or assignment of any lease governing any leasehold interest of any of such Obligor's Subsidiaries, (v) customary provisions restricting assignment of any licensing agreement (in which any of such Obligor's Subsidiaries is the licensee) or other contract entered into by any of such Obligor's Subsidiaries in the ordinary course of business, (vi) restrictions on the transfer of any asset pending the closing of the sale of such asset, and (vii) restrictions on the transfer of any asset subject to a Permitted Lien;

(s) UN Security Council Resolutions. Enter into any transaction or engage in any activity prohibited by any resolution of the United Nations Security Council under Chapter VII of the United Nations Charter; and

(t) Sanctionable Practices. Engage in (and no Obligor nor any of its Subsidiaries shall authorize or permit any Affiliate or any other Person acting on its behalf to engage in) with respect to its operations or any transaction contemplated by this Agreement, any Sanctionable Practices. The Obligors further covenant that should IFC notify the Obligors of its concerns that there has been a violation of the provisions of this Section or of Section 3.01(v) of this Agreement, they shall cooperate and they shall cause each relevant Subsidiary to cooperate, in good faith with IFC and its representatives in determining whether such a violation has occurred, and shall respond promptly and in reasonable detail to any notice from IFC, and shall furnish documentary support for such response upon IFC's request.

Section 5.03. Reporting Requirements. Unless IFC otherwise agrees, the Co-Borrowers shall:

(a) (1) Quarterly Financial Statements and Reports. As soon as available but in any event within 45 days after the end of each quarter of each Financial Year, deliver to IFC:

- (i) 2 copies of each Co-Borrower's (other than Kayzon BVI and Kazyon Cayman Islands) and each of its Subsidiaries' complete unaudited financial statements for such quarter prepared, on a Consolidated Basis, in accordance with the Accounting Standards and on a basis consistent with each Co-Borrower's (other than Kayzon BVI and Kazyon Cayman Islands) audited financial statements, in each case, certified by the chief financial officer of the relevant Co-Borrower;
- (ii) a report (in the form pre-agreed by IFC) by the Co-Borrowers (other than Kayzon BVI and Kazyon Cayman Islands) on their operations during that quarter, in the form of, and addressing the topics listed in, Schedule 8;
- (iii) a report (in a form pre-agreed by IFC), signed by Kazyon Egypt's chairman and the chief executive officer and Kazyon UK's chief financial officer, (in each case, in his or her capacity as such and not in any other capacity), concerning compliance with the financial covenants in this Agreement (using the methodology of calculation in respect of such covenants set forth in Annex H); and
- (iv) a report (in a form pre-agreed by IFC), detailing all intercompany transactions (including settlements and balances) existing between Obligors, any Obligor and its Subsidiary or the Subsidiary of another Obligor and/or between Subsidiaries of the Obligors. For the avoidance of doubt, "Subsidiary" as used in this section shall include the Excluded Subsidiaries and any new Subsidiaries of the Obligors from time to time.

(2) As soon as available but in any event within 30 days after the end of each quarter of each Financial Year, deliver to IFC, negative pledge certificates in relation to real properties and assets to be secured under the Real Estate Mortgages.

(b) Annual Financial Statements and Reports. As soon as available but in any event within 90 days after the end of each Financial Year, deliver to IFC:

- (i) 2 copies of each Co-Borrower's (other than Kayzon BVI and Kazyon Cayman Islands) and each of its Subsidiaries' complete and audited financial statements for that Financial Year (which are in agreement with its books of account and prepared, on both a Consolidated Basis and an unconsolidated basis, in accordance with the Accounting Principles, together with an unqualified audit report on them from the Auditors, all in form satisfactory to IFC;
- (ii) in relation to each Co-Borrower (other than Kayzon BVI and Kazyon Cayman Islands), a management letter and such other communication from the Auditors commenting, with respect to that Financial Year, on, among other things, the adequacy of such Co-Borrower's financial control procedures, accounting systems and management information system;
- (iii) a report (in a pre-agreed form) signed by the chairman and the chief financial officer of Kazyon Egypt (in his or her capacity as such and not in any other capacity) and the chief financial officer of Kazyon UK (in his or her capacity as such and not in any other capacity), certifying that, on the basis of its financial statements Kazyon Egypt was in compliance with the covenants in Section 5.01(n) (*Affirmative Covenants*) (using the methodology of calculation in respect of such covenants set forth in Annex H):

and, where applicable, detailing any non-compliance; and

- (iv) a report by the Co-Borrowers (other than Kayzon BVI and Kazyon Cayman Islands) on their operations during that Financial Year, in the form of, and addressing the topics listed in, Schedule 8;
- (v) a capital and operating budget for the then-current Financial Year; and
- (vi) a statement by the Co-Borrowers of all transactions between any Co-Borrower and/or their Subsidiaries and each of their respective Affiliates, if any, during that Financial Year, and a certification by the Co-Borrowers' chief financial officers that those transactions were on the basis of arm's-length arrangements;

(c) Management Letters. Deliver to IFC, promptly following receipt, a copy of any management letter or other communication sent by the Auditors (or any other accountants retained by the the Co-Borrower (other than Kayzon BVI and Kazyon Cayman Islands)), the Co-Borrowers (other than Kayzon BVI and Kazyon Cayman Islands) or its management in relation to the Co-Borrowers' (other than Kayzon BVI's and Kazyon Cayman Islands') financial, accounting and other systems, management or accounts, if not provided pursuant to Section 5.03(b)(ii);

(d) Annual Monitoring Report. Within 90 days after the end of each Financial Year, deliver to IFC the Annual Monitoring Report (i) confirming compliance with the Action Plan and the environmental and social covenants set forth in Sections 5.01 and 5.02 and Applicable E&S Law or, as the case may be, identifying any non-compliance or failure, and the actions being taken to remedy any such deficiency and a summary of the key actions taken by Kazyon Morocco in connection with environmental, social matters during the relevant Financial Year;

(e) Notice of Accidents, Etc. Within three days after its occurrence, notify IFC of any social, labor, health and safety, security or environmental incident, accident or circumstance having, or which could reasonably be expected to have, a Material Adverse Effect or material adverse impact on the implementation of the Transaction or on carrying on of Operations by Kazyon Morocco and/or any of its Subsidiaries in accordance with the Performance Standards, specifying in each case the nature of the incident, accident, or circumstance and any effect resulting or likely to result therefrom, and the measures Kazyon Morocco and/or the relevant Subsidiary are taking or plans to take to address them and to prevent any future similar event; and keep IFC informed of the on-going implementation of those measures and plans;

(f) Changes to Business; Material Adverse Effect. Promptly notify IFC of any proposed change in the business or operations of an Obligor or any of its Subsidiaries and of any event or condition that has had or could reasonably be expected to have a Material Adverse Effect;

(g) Litigation, Etc. Promptly upon becoming aware of any litigation or administrative proceedings before any Authority or arbitral body which has had or, if determined adversely, could reasonably be expected to have, a Material Adverse Effect, notify IFC by electronic mail of that event specifying the nature of that litigation or those proceedings and the steps any Obligor and/or any of its Subsidiaries are taking or proposes to take with respect thereto;

(h) Default. Promptly upon the occurrence of an Event of Default or Potential Event of Default, notify IFC by electronic mail specifying the nature of that Event of Default or Potential Event of Default and any steps any Obligor and/or any of its Subsidiaries is taking to remedy it;

(i) Development Impact Indicators. Within sixty (60) days after the end of each calendar year (January to December), deliver to IFC certain Transaction related information as reasonably required to measure the ongoing development impact of the Transaction against the development impact indicators specified in Schedule 10 hereto and which Transaction related information IFC may hold and use in accordance with the Policy on Disclosure of Information. The data for development impact indicators, as described further in Schedule 10 hereto, shall correspond to the previous calendar year (January to December);

(j) Other Information. Promptly provide to IFC such other information as IFC from time to time requests about any Obligor, any of their Subsidiaries, their respective assets and operations and the Transaction, including without limitation information that IFC requests on behalf of the Participants for the Participants to satisfy requirements under applicable laws and regulations, including those concerning anti-money laundering and combatting the financing of terrorism (AML/CFT);

(k) Valuation Report. Commencing from the date which is the second anniversary of the date of the first Disbursement and on a bi-annual basis afterwards, deliver to IFC a valuation report in relation to the property covered under the Real Estate Mortgage, in a form and substance satisfactory to IFC; and

(l) Public Stores' Licence. Kazyon Egypt shall, (i) by no later than 30 June 2025, in relation to each of the Distribution Centres described in paragraphs (a) and (b) of the definition of "Distribution Centre", procure and maintain at all times a public stores' licence issued by the competent Egyptian Authority to Kazyon Egypt in respect of the operations of each of such Distribution Centres; and (ii) by no later than 31 January 2026, in relation to the Distribution Centre described in paragraph (c) of the definition of "Distribution Centre", procure and maintain at all times a public stores' licence issued by the competent Egyptian Authority to Kazyon Egypt in respect of the operations of such Distribution Centre.

Section 5.04. Insurance.

(a) Insurance Requirements and Co-Borrowers' Undertakings. Unless IFC otherwise agrees, the Co-Borrowers and each of their respective Restricted Subsidiaries shall:

- (i) insure and keep insured, with financially sound and reputable insurers, its assets which are necessary to the conduct of its business on a basis no less than as described in Annex F;
- (ii) ensure that IFC is named as an additional insured and/or loss payee on all insurance policies except insurance required by law;
- (iii) ensure that on every insurance policy on any Co-Borrower's assets which are the subject of the IFC Security, IFC is named as loss payee for any claim, or any series of claims arising with respect to the same event, whose aggregate amount is the equivalent of US\$1,000,000 or more;

- (iii) promptly following receipt of a notice from IFC, in order to cover a material change in an identified risk exposure of any Co-Borrower and/or a Restricted Subsidiary of any Co-Borrower, obtain additional insurance coverage, and/or make modifications to the terms, conditions, amounts or deductible to address such risk exposure (including inflationary and other relevant factors);
 - (iv) promptly notify the relevant insurer of any claim under any policy written by that insurer and diligently pursue that claim;
 - (v) comply with all warranties under each insurance policy;
 - (i) not vary, rescind, terminate, cancel or cause a material change to any insurance policy required in Annex F (to the extent such variation, termination, cancellation or change would result in a reduction in coverage); and
 - (ii) The policy cancellation notice period either by insured or by the insurance company shall be a minimum of 30 days.
- (b) Reporting Requirements. Unless IFC otherwise agrees, the Co-Borrowers shall provide to IFC the following:
- (i) as soon as possible after its occurrence, notice of any event which entitles any Co-Borrower and/or any of its Restricted Subsidiaries to claim for an aggregate amount exceeding the equivalent of US\$1,000,000 under any one or more insurance policies;
 - (ii) notification of any material change in an identified risk exposure of the Co-Borrowers and/or any of their Restricted Subsidiaries; and
 - (iii) within thirty (30) days of renewal, a copy of each required insurance policy in Annex F (other than Section 3 of such Annex).

ARTICLE VI

Events of Default

Section 6.01. Acceleration after Default. If any Event of Default occurs and is continuing (whether it is voluntary or involuntary, or results from operation of law or otherwise), IFC may, by notice to the Obligors, require the Obligors to repay the Loan or such part of the Loan as is specified in that notice. On receipt of any such notice, the Obligors shall immediately repay the Loan (or that part of the Loan specified in that notice) and pay all interest accrued on it in accordance with this Agreement, the prepayment premium specified in Section 2.06 on the amount of the Loan whose payment is accelerated and any other amounts then payable under this Agreement and the other IFC Financing Documents. The Obligors waive any right they might have to further notice, presentment, demand or protest with respect to that demand for immediate payment.

Section 6.02. Events of Default. It shall be an Event of Default if:

- (a) Failure to Pay Principal or Interest. (i) The Co-Borrowers fail to pay when due any part of the principal of, or interest (in accordance with this Agreement) on, the Loan and such failure continues for a period of five days; or (ii) The Obligors (other than in their capacity as Co-Borrowers) fails to pay when due any amounts payable by it under this Agreement and such failure continues for a period of five days;

(b) Failure to Pay Other IFC Loans. The Obligors or any of their Affiliates fail to pay when due any part of the principal of, or interest on, any loan from IFC other than the Loan and any such failure continues for the relevant period of grace provided for in the agreement providing for that loan;

(c) Failure to Comply with Obligations. An Obligor or any of its Affiliates fail to comply with any of its obligations under this Agreement or any other IFC Financing Document to which it is a party or any other agreement between such Person and IFC (other than those referred to in clauses (a), (b) or (q) of this Section 6.02), and any such failure continues for a period of 30 days after the date on which IFC notifies the Obligors of that failure;

(d) Misrepresentation. Any representation or warranty made in Article III or in connection with the execution of, or any request (including a request for Disbursement) under, this Agreement or (ii) any other IFC Financing Document is incorrect in any material respect;

(e) Expropriation, Nationalization, Etc. Any Authority condemns, nationalizes, seizes, or otherwise expropriates all or any substantial part of the property or other assets of any Obligor, or any of its Subsidiaries (other than Al Dukan) or of any of their respective share capital, or assumes custody or control of that property or other assets or of the business or operations of any Obligor or any of its share capital, or takes any action for the dissolution or disestablishment of any Obligor or any of its Subsidiaries (other than Al Dukan) or any action that would prevent any Obligor or any of its Subsidiaries (other than Al Dukan) or their respective officers from carrying on all or a substantial part of their respective business or operations;

(f) Voluntary Proceedings. Any Obligor or any of its Restricted Subsidiaries:

- (i) takes any step (including petition, giving notice to convene or convening a meeting) for the purpose of making, or proposes or enters into, any arrangement, assignment or composition with or for the benefit of its creditors;
- (ii) ceases or threatens to cease to carry on its business or any substantial part of its business, except for liquidation or dissolution of a Restricted Subsidiary for the purpose of a solvent reorganization; or
- (iii) is unable, or admits in writing its inability to pay its Liabilities as they fall due or otherwise becomes insolvent;

(g) Involuntary Proceedings. An order is made or an effective resolution passed or analogous proceedings taken for winding up, bankruptcy or dissolution of any Obligor or any of its Restricted Subsidiaries, except for liquidation or dissolution of a Restricted Subsidiary for the purpose of a solvent reorganization, or a petition is presented or analogous proceedings taken for the winding up or dissolution of any Obligor or any of its Restricted Subsidiaries;

(h) Appointment of Liquidator; Attachment. Any encumbrancer lawfully takes possession, or a liquidator, judicial custodian, receiver, administrative receiver or trustee or any analogous officer is appointed, of the whole or any material part of the undertaking or assets of any Obligor or any of its Restricted Subsidiaries or an attachment, sequestration, distress or execution (or analogous process) is levied or enforced upon or issued against any of the assets or property of any Obligor or any of its Restricted Subsidiaries for an amount in excess of the equivalent of US\$1,000,000 and is not discharged within 30 days; or

(i) Analogous Events to Bankruptcy. Any other event occurs which under any applicable law would have an effect analogous to any of those events listed in Section 6.02(f), Section 6.02(g) and Section 6.02(h);

(j) Cross-Default. Any Obligor or any of its Restricted Subsidiaries fails to pay any of its Liabilities (other than the Loan or any other loan from IFC to the Obligors) in an amount exceeding the equivalent of US\$1,000,000 or to perform any of its obligations under any agreement pursuant to which there is outstanding any Liability in excess of

US\$1,000,000 , and any such failure continues for more than any applicable period of grace or any such Liability becomes prematurely due and payable or is placed on demand;

(k) Failure to Maintain Authorizations. Any Authorization necessary for any Obligor or any of its Restricted Subsidiaries to perform and observe its obligations under any IFC Financing Document, or to carry out the Transaction or its operations, is not obtained when required or is rescinded, terminated, lapses or otherwise ceases to be in full force and effect, including with respect to the remittance to IFC or its assignees, in the Loan Currency, of any amounts payable under any IFC Financing Document, and is not restored or reinstated within 30 days of notice by IFC to any Obligor requiring that restoration or reinstatement;

(l) Revocation, Etc. of Security Documents. Any Security Document or any of its provisions:

- (i) is revoked, terminated or ceases to be in full force and effect or ceases to provide the security intended, without, in each case, the prior consent of IFC;
- (ii) becomes unlawful or is declared void; or
- (iii) is repudiated or its validity or enforceability is challenged by any Person and any such repudiation or challenge continues for a period of 60 days during which period such repudiation or challenge has no effect;

(m) Revocation Etc. of IFC Financing Documents. Any IFC Financing Document (other than a Security Document) or any of its provisions:

- (i) is revoked, terminated or ceases to be in full force and effect without, in each case, the prior consent of IFC, and that event, if capable of being remedied, is not remedied to the satisfaction of IFC within 30 days of IFC's notice to the Co-Borrowers; or
- (ii) becomes unlawful or is declared void; or
- (iii) is repudiated or the validity or enforceability of any of its provisions at any time is challenged by any Person and such repudiation or challenge is not withdrawn within 30 days of IFC's notice to any Co-Borrower requiring that withdrawal; provided that no such notice shall be required or, as the case may be, the notice period shall terminate if and when such repudiation or challenge becomes effective;

(n) Judgments. A final judgment, order or arbitral award for the payment of money in excess of US\$1,000,000 is rendered against any Obligor, any of its Subsidiaries or any of such Person's properties and that judgment, order or arbitral award continues to be unsatisfied for a period of thirty (30) consecutive days;

(o) Employee Benefit Plans. A material breach in respect of any pension or employee benefit plans of any Obligor or any of its Restricted Subsidiaries;

(p) Change of Control. A Change of Control occurs; and

(q) Failure to Satisfy the Conditions Subsequent. The Obligors fail to deliver any of the documents and other evidence listed in Section 4.04 (*Conditions Subsequent*) by the relevant deadline.

Section 6.03. Bankruptcy. If any Co-Borrower is liquidated or declared bankrupt, the Loan, all interest accrued on it in accordance with this Agreement and any other amounts payable under this Agreement will become immediately due and payable without any presentment, demand, protest or notice of any kind, all of which the Obligors waive.

ARTICLE VII

Miscellaneous

Section 7.01. *Saving of Rights.* (a) The rights and remedies of IFC in relation to any misrepresentation or breach of warranty on the part of the Obligor or any other Person shall not be prejudiced by any investigation by or on behalf of IFC into the affairs of the Obligor or any other Person, by the execution or the performance of this Agreement, any other IFC Financing Document or by any other act or thing which may be done by or on behalf of IFC in connection with this Agreement, any other IFC Financing Document and which might prejudice such rights or remedies.

(b) No course of dealing or waiver by IFC in connection with any condition of Disbursement of the Loan under this Agreement or any other IFC Financing Document shall impair any right, power or remedy of IFC with respect to any other condition of Disbursement, or be construed to be a waiver thereof; nor shall the action of IFC with respect to any Disbursement affect or impair any right, power or remedy of IFC with respect to any other Disbursement.

(c) Unless otherwise notified to the Obligor by IFC and without prejudice to the generality of Section 7.01(b), the right of IFC to require compliance with any condition under this Agreement or any other IFC Financing Document that may be waived by IFC with respect to any Disbursement is expressly preserved for the purposes of any subsequent Disbursement.

(d) No course of dealing and no failure or delay by IFC in exercising, in whole or in part, any power, remedy, discretion, authority or other right under this Agreement, any other IFC Financing Document or any other agreement shall waive or impair, or be construed to be a waiver of, such or any other power, remedy, discretion, authority or right under this Agreement or any other IFC Financing Document, or in any manner preclude its additional or future exercise; nor shall the action of IFC with respect to any default, or any acquiescence by it therein, affect or impair any right, power or remedy of IFC with respect to any other default.

(e) Kazyon Morocco acknowledges and agrees that in accordance with Article 6 of the Order of the Minister of Finances 947-10 dated 17 March 2010 and Article 8 of the Bank Al Maghrib Circular No. 04/G/10 dated 12 May 2010, a borrower may have the option to require a fixed interest rate to be converted into a variable interest rate and vice versa on terms to be negotiated between the parties and Kazyon Morocco expressly and irrevocably waives such option voluntarily.

Section 7.02. *Notices.* (a) Any notice, request or other communication to be given or made under this Agreement shall be in writing. Subject to Section 5.03(h) and Section 5.03(g) (*Reporting Requirements*), Section 7.02(b) (*Notices*) and Section 7.05 (*Applicable law, Arbitration and Jurisdiction*), any such communication may be delivered by hand, airmail, electronic mail, or established courier service to the party's address specified below or at such other address as such party notifies to the other party from time to time, and will be effective upon receipt.

For Kazyon Morocco:

3 Dr. Taha Hussein street
Yamama Center, Fifth Floor
Commercial Center
Zamalek, Cairo
Egypt

E-mail: Hassan Heikal (Hassan.Heikal@seafox.com), Omar Bebars (omar.bebars@kazyon.com),
Mohamed Mostafa (Mohamed.mostafa@kazyon.com)

For Kazyon Egypt:

3 Dr. Taha Hussein street
Yamama Center, Fifth Floor
Commercial Center
Zamalek, Cairo
Egypt

E-mail: Hassan Heikal (Hassan.Heikal@seafox.com), Omar Bebars (omar.bebars@kazyon.com),
Mohamed Mostafa (Mohamed.mostafa@kazyon.com)

For Kazyon UK:

3 Dr. Taha Hussein street
Yamama Center, Fifth Floor
Commercial Center
Zamalek, Cairo
Egypt

E-mail: Hassan Heikal (Hassan.Heikal@seafox.com), Omar Bebars (omar.bebars@kazyon.com),
Mohamed Mostafa (Mohamed.mostafa@kazyon.com)

For Kazyon BVI:

3 Dr. Taha Hussein street
Yamama Center, Fifth Floor
Commercial Center
Zamalek, Cairo
Egypt

E-mail: Hassan Heikal (Hassan.Heikal@seafox.com), Omar Bebars (omar.bebars@kazyon.com),
Mohamed Mostafa (Mohamed.mostafa@kazyon.com)

For Favorixx:

3 Dr. Taha Hussein street
Yamama Center, Fifth Floor
Commercial Center
Zamalek, Cairo
Egypt

E-mail: Hassan Heikal (Hassan.Heikal@seafox.com), Omar Bebars (omar.bebars@kazyon.com),
Mohamed Mostafa (Mohamed.mostafa@kazyon.com)

For Kazyon Cayman Islands:

3 Dr. Taha Hussein street
Yamama Center, Fifth Floor
Commercial Center
Zamalek, Cairo
Egypt

E-mail: Hassan Heikal (Hassan.Heikal@seafox.com), Omar Bebars (omar.bebars@kazyon.com),
Mohamed Mostafa (Mohamed.mostafa@kazyon.com)

For IFC:

International Finance Corporation
2121 Pennsylvania Avenue, N.W.
Washington, D.C. 20433
United States of America

E-mail: Notifications@ifc.org

Attention: Director, Manufacturing, Agribusiness and Services, Africa

With a copy (in the case of communications relating to payments) for the attention of the Director, Financial Operations.

(b) IFC has a secured document sharing website called "AccessIFC", located at accessifc.ifc.org. Provided that the Co-Borrowers have agreed to all the terms and conditions provided by IFC to access and use AccessIFC, IFC may, in its discretion, grant to the Co-Borrowers access to AccessIFC. In the event the Co-Borrowers have been granted access to AccessIFC, the Co-Borrowers shall deliver via AccessIFC the reports required in Sections 5.03 (a) (*Quarterly Financial Statements & Reports*), (b) (*Annual Financial Statements & Reports*), (c) (*Management Letters*), (d) (*Annual Monitoring Report*), (f) (*Shareholder Matters*) and any other reporting requirements as may be mutually agreed between the Co-Borrowers and IFC.

Section 7.03. English Language. (a) All documents to be provided or communications to be given or made under this Agreement or any other IFC Financing Document (other than in relation to the Real Estate Mortgages and the powers of attorney to be issued by each of Kazyon Egypt and Favorixx) shall be in the English language or in dual text format with English being one of the languages.

(b) To the extent that the original version of any document to be provided, or communication to be given or made, to IFC under this Agreement or any other IFC Financing Document is in a language other than English, that document or communication shall be accompanied by an English translation certified by an Authorized Representative to be a true and correct translation of the original. IFC may, if it so requires, obtain an English translation of any document or communication received in a language other than English at the cost and expense of the Co-Borrowers. IFC may deem any such English translation to be the governing version between the Obligor and IFC.

Section 7.04. Term of Agreement. This Agreement shall continue in force until all monies payable under it have been fully paid in accordance with its provisions.

Section 7.05. Applicable Law, Arbitration and Jurisdiction. (a) This Agreement is governed by and shall be construed in accordance with the laws of England.

(b) Any dispute, controversy or claim arising out of or relating to (i) this Agreement or (ii) the breach, termination or invalidity hereof (a "**Dispute**"), shall be settled by arbitration in accordance with the UNCITRAL Arbitration Rules as at present in force. The arbitral tribunal shall consist of three (3) arbitrators. The claimant(s), irrespective of number, shall nominate jointly one arbitrator; the respondent(s), irrespective of number, shall nominate jointly the second arbitrator, and a third arbitrator (who shall act as Chairman) shall be appointed by the arbitrators nominated by the claimant(s) and respondent(s) or, in the absence of agreement on the third arbitrator within thirty (30) days of the appointment of the second arbitrator, by the LCIA Court (as defined in the Arbitration Rules of the London Court of International Arbitration (LCIA)). The seat and place of arbitration shall be London, England and the English language shall be used throughout the arbitral proceedings. The parties hereby waive any rights under the Arbitration Act 1996 or otherwise to appeal any arbitration award to, or to seek determination of a preliminary point of law by, the courts of England. The arbitral tribunal shall not be authorized to grant, and each Obligor agrees that it shall not seek from any judicial authority, any interim measures or pre-award relief against IFC, any provisions of the UNCITRAL Arbitration Rules notwithstanding. The arbitral tribunal shall have authority to consider and include in any proceeding, decision or award any further Dispute properly brought before it by IFC (but no other party) insofar as such Dispute arises out of this Agreement or any other agreement contemplated hereby, but, subject to the foregoing, no other parties or other Disputes shall be included in, or consolidated with, the arbitral proceedings. In any arbitral proceeding, the certificate of IFC as to any amount due to IFC under this Agreement shall be prima facie evidence of such amount.

(c) The parties acknowledge and agree that no provision of this Agreement in any way constitutes or implies a waiver, renunciation, termination or modification by IFC of any of its privileges, immunities or exemptions granted in the Articles of Agreement establishing IFC, under international conventions or applicable law and IFC expressly reserves all its privileges, immunities and exemptions thereunder.

(d) To the extent that any Obligor may be entitled in any jurisdiction to claim for itself or its assets immunity with respect to its obligations under this Agreement, from any suit, execution, attachment (whether provisional or final, in aid of execution, before judgment or otherwise) or other legal process or to the extent that in any jurisdiction that immunity (whether or not claimed), may be attributed to it or its assets, such Obligor irrevocably and unconditionally waives and agrees not to claim any such immunity to the fullest extent permitted now or in the future by the laws of such jurisdiction, and agrees to ensure that no such claim is made on its behalf.

(e) Each Obligor also consents with respect to any Dispute to the giving of any relief or the issue of any process in connection with such Dispute including, without limitation, the making, enforcement or execution against any property whatsoever (irrespective of its use or intended use) of any order or judgment which may be made or given in such proceedings.

(f) To the extent that any Obligor may be entitled in any proceedings relating to a Dispute or in any proceedings arising out of or in connection with this Agreement (including any Dispute regarding non-contractual obligations and any Dispute regarding the existence, validity or termination of this Agreement), to apply for or to require that IFC post any security for the costs of such Obligor or for any other matter, such Obligor agrees that it will not apply or impose that requirement and, accordingly, it irrevocably waives any such entitlement that it may otherwise have to the fullest extent permitted by applicable law.

Section 7.06. Disclosure of Information (a) IFC may disclose any documents or records of, or information about, this Agreement or any other IFC Financing Document, or the assets, business, operations or affairs of the Obligors to:

- (i) its outside counsel, auditors and rating agencies,
- (ii) any Participant or any Person who intends to purchase a Participation in a portion of the Loan, or any sub-participant, credit insurer, or any other party that is seeking to acquire or has acquired an economic interest in the Loan, whether funded or unfunded, and, if a Participant or such a Person is an investment fund, any investors in such investment fund, and

- (iii) any other Person as IFC may deem appropriate in connection with the administration of the Loan, including any proposed sale, transfer, assignment or other disposition of IFC's rights under this Agreement or any IFC Financing Document or otherwise for the purpose of exercising any power, remedy, right, authority, or discretion relevant to this Agreement or any other IFC Financing Document.

(b) The Obligors acknowledge and agree that, notwithstanding the terms of any other agreement between the Obligors and IFC, a disclosure of information by IFC in the circumstances contemplated by Section 7.06 (a) does not violate any duty owed to the Obligors under this Agreement or under any such other agreement.

(c) The Co-Borrowers acknowledge that IFC in its absolute discretion may fund the Loan in whole or in part with proceeds from IFC thematic bond programs, such as green bonds or social bonds. In such event, the Co-Borrowers agree that for the duration of the Loan: (i) IFC may disclose non-confidential ex-ante estimates related to the Loan and its expected development impact in public reports to IFC's bond investors, including the annual impact report for IFC's green bond program and other similar publications, and (ii) if requested by IFC, the Co-Borrowers will confirm the details of any such estimates within 14 Business Days of receiving the request.

Section 7.07. Indemnification; No Consequential Damage. (a) Each Co-Borrower shall, within three Business Days of demand, indemnify IFC and each Participant and their respective officers, directors, affiliates, employees, agents and representatives (each, an "**Indemnatee**") against any cost, loss or liability (including legal fees and other professional costs and expenses) arising out of or in connection with:

- (i) the occurrence of:
 - (A) any Event of Default or Potential Event of Default; or
 - (B) any actual or alleged non-compliance by a Co-Borrower (or any Person acting on its or their behalf) with any law, any Applicable E&S Law and/or the Performance Standards, in each case in respect of the Transaction;
- (ii) funding, or making arrangements to fund, its participation in a Disbursement requested by a Co-Borrower in a request for Disbursement but not made by reason of the operation of any one or more of the provisions of this Agreement;
- (iii) a Loan (or part of a Loan) not being prepaid in accordance with a notice of prepayment given by a Co-Borrower; and/or
- (iv) the execution, delivery or performance of any IFC Financing Document or any other agreement or instrument contemplated hereby or thereby or the consummation of the Transaction or any other transactions contemplated hereby or thereby (including any breach of, or failure to perform, any of the representations, warranties, covenants, or obligations in any IFC Financing Document or other agreement or instrument contemplated thereby);

including, in each case, any cost, loss or liability arising out of or in connection with any actual or prospective claim, action, suit, litigation, investigation or proceeding relating to any of the foregoing, whether based on contract, tort or any other theory and regardless of whether any Indemnatee is party thereto; **provided that**, in any case, such indemnity will not be available to any Indemnatee to the extent that such loss, cost or liability resulted directly from such Indemnatee's gross negligence or willful misconduct (as determined by a final, non-appealable determination of a court or arbitral tribunal of competent jurisdiction).

(b) Each Co-Borrower's indemnity obligations in this Section are independent of and in addition to any rights of any Indemnatee in connection with any loss, cost or liability (provided, however, that no Indemnatee shall be entitled to recover an amount twice in respect of the same lost, cost or liability), and such obligations shall survive the execution, modification, and amendment of this Agreement and each other IFC Financing Document, the expiration, cancellation, or termination of IFC's or any Participant's commitment, and the disbursement and repayment of the Loan.

(c) To the maximum extent permitted by law, the Borrower shall not assert, and hereby agrees to waive, any claim against any Indemnitee, on any theory of liability, for special, indirect, consequential, contingent, or punitive damages arising out of, in connection with, or relating to, this Agreement or any agreement or instrument contemplated hereby, the Loan or the use of the proceeds thereof.

(d) In respect of any claim, action, suit, litigation, investigation or proceeding in connection with a cost, loss or liability, IFC and each Indemnitee shall have the right but not the obligation to control its, his, or her defense; provided, however, that IFC and each Indemnitee shall, in respect of any decision to settle any such claim, action, suit, litigation, investigation or proceeding, consult in good faith with the Co-Borrowers.

Section 7.08. Successors and Assignees. This Agreement binds and benefits the respective successors and assignees of the parties. However, the Obligors may not assign or delegate any of their rights or obligations under this Agreement without the prior written consent of IFC.

Section 7.09. Amendments, Waivers and Consents. Any amendment or waiver of, or any consent given under, any provision of this Agreement shall be in writing and, in the case of an amendment, signed by the parties.

Section 7.10. Counterparts. This Agreement may be executed in several counterparts, each of which is an original, but all of which together constitute one and the same agreement.

Section 7.11. Third Party Rights. (a) Subject to paragraph (b), this Agreement is for the sole benefit of IFC and the Obligors and is not intended to, nor shall it be interpreted, and does not, provide or create any third party beneficiary rights or any other rights of any kind to any Person who, or entity that, is not a party to it. to enforce any of its terms, including, but not limited to, under the *English Contract (Rights of Third Parties) Act 1999*.

(b) This Section 7.11 shall not apply to any Person who is defined as an Indemnitee in Section 7.07 (*Indemnification; No Consequential Damages*), except and only to the extent that any such Indemnitee (while not a party to this Agreement) is entitled to enforce the provisions of Section 7.07 (*Indemnification; No Consequential Damages*).

Section 7.12. Personal Data. If an Obligor or anyone acting on its behalf discloses any information relating to individuals to IFC in connection with the Loan or any of the IFC Financing Documents, other than names and contact details of either Obligor personnel involved in the Loan, such Obligor shall ensure that:

(a) unless IFC has requested or agreed to provision of the information in personally identifiable form, the information is redacted or anonymized so that no individual is identifiable; and

(b) if any individuals are identifiable from the information:

- (i) the disclosure complies with any data protection or data privacy laws applicable to the Borrower (such as any requirements to provide information to, or obtain consents from, those individuals), taking full account of IFC's expected use of the information, including its inclusion in any IFC Financing Document, its disclosure in accordance with Section 7.06 or as set forth in IFC's Products and Services Privacy Notice (ifc.org/privacy/productnotice);
- (ii) reasonable steps are taken to ensure that the information is accurate, and proportionate to the purposes of disclosure, and that the disclosure is fair to the individuals concerned; and
- (iii) the information is protected by appropriate security measures in transmission.

Section 7.13. Independence of the Obligors. Each Obligor confirms that:

(a) it has engaged legal, tax, regulatory and accounting advisors, and such other professional advisors as it deems appropriate, with respect to all matters in connection with the Loan and the IFC Financing Documents; and

(b) it has, upon its own due diligence as to all matters pertinent hereto with the assistance of its professional advisors, and notwithstanding any involvement of or consultation with IFC or any member of the World Bank Group, independently evaluated, and fully understands, acknowledges, and accepts, all risks arising or potentially arising under or in connection with the Loan and each IFC Financing Document.

Section 7.14. Role of IFC. (a) Notwithstanding anything to the contrary provided under the IFC Financing Documents, it is specifically understood and agreed that IFC is acting solely as lender and is not, and shall not be deemed or construed to act as, agent, advisor or fiduciary for the Obligors, or for any other Person pursuant to the IFC Financing Documents.

(b) Except as expressly assumed by IFC under the IFC Financing Documents, IFC shall have no liability or obligation whatsoever to the Obligors, or any other Person with respect to the transactions contemplated by the IFC Financing Documents (including, without limitation, for any oversight or monitoring, or any lack of oversight or monitoring, exercised by IFC in respect of, or the manner in which IFC may implement (or refrain from implementing), comply with (or refrain from complying with), any IFC policy (including the Action Plan and Performance Standards) or any Applicable E&S Law and the Obligors assume full responsibility in respect of any action they take (or fail to take) in connection with any recommendation, instruction or advice that IFC may or may not give from time to time in connection with the Operations or any IFC Financing Document.

(c) Any reviews, approvals, or due diligence undertaken by IFC is for the sole benefit of IFC alone and not for the benefit of any third party, foreseen or unforeseen, or the Obligors and shall create no fiduciary or other obligation in any respect to any third party, foreseen or unforeseen, or the Obligors.

Section 7.15. Acknowledgment of CAO. The Obligors hereby acknowledge and agree that the CAO is IFC's independent accountability mechanism for environmental and social concerns; and it has reviewed additional information about the CAO, including the CAO Policy, which is available at <http://www.cao-ombudsman.org/>.

ARTICLE VIII

Guarantee and Indemnity

Section 8.01. Guarantee. In consideration of IFC making available the Loan to the Co-Borrowers, each Guarantor hereby irrevocably, absolutely and unconditionally:

(a) guarantees to IFC the due and punctual payment of each and every Guaranteed Obligation or any unpaid portion thereof whether at stated maturity, upon acceleration or otherwise; and

(b) undertakes that whenever any Co-Borrower does not pay any amount of the Guaranteed Obligations when due, the Guarantor will, upon demand by IFC, pay that amount to IFC, in the Loan Currency, and otherwise in the same manner in all respects as such Guaranteed Obligations are required to be paid by such Co-Borrower under this Agreement or the relevant IFC Financing Document.

Section 8.02. Indemnity. Each Guarantor hereby irrevocably, absolutely and unconditionally agrees, as a primary obligation, to indemnify IFC from time to time on demand from and against any loss incurred by IFC as a result of any of the Guaranteed Obligations being or becoming void, voidable, unenforceable or ineffective against any Co-Borrower for any reason whatsoever, whether or not known to IFC, the amount of such loss being the amount which IFC would otherwise have been entitled to recover from any Co-Borrower had such Guaranteed Obligations not become void, voidable, unenforceable or ineffective.

Section 8.03. Continuing Guarantee (a) The guarantee and indemnity contained in this Section 8 is each a continuing, separate and independent obligation of the Guarantor, notwithstanding any settlement of account or the occurrence of any other event or thing, and shall:

- (i) remain in full force and effect until the Guaranteed Obligations have been fully and irrevocably paid in strict accordance with the provisions of IFC Financing Documents, regardless of any intermediate payment or discharge in whole or in part (other than the irrevocable discharge of the whole of the Guaranteed Obligations); and
- (ii) survive the termination of the IFC Financing Documents.

(b) If for any reason the Guarantee ceases to be a continuing security, IFC may either continue any then existing account(s) or open new account(s) for the Borrower, but in any case, the Guarantor's obligations under this Agreement shall be unaffected by, and shall be calculated without regard to, any payment into or out of any such account after the Guarantee has ceased to be a continuing security.

Section 8.04. No Set-off. All payments which the Guarantors are required to make pursuant to the Guarantee under this Agreement shall be made without any set-off, counterclaim, deduction or condition.

Section 8.05. Taxes. (a) The Guarantors shall pay or cause to be paid all present and future taxes (other than taxes, if any, payable on the overall income of IFC), duties, fees and other charges of whatsoever nature, if any, now or in the future levied or imposed by any Authority or by any organization of which the Countries is a member or any jurisdiction through or out of which a payment is made on or in connection with the payment of any and all amounts due pursuant to the Guarantee under this Agreement.

(b) All payments due pursuant to the Guarantee under this Agreement shall be made without deduction for or on account of any such taxes, duties, fees or other charges.

(c) If any Guarantor is prevented by operation of law or otherwise from making or causing to be made such payments without deduction, the amounts due pursuant to the Guarantee under this Agreement shall be increased to such amount as may be necessary so that IFC receives the full amount it would have received (taking into account any such taxes, duties, fees or other charges payable on amounts payable by such Guarantor under this Section 8.05(c)) had such payments been made without such deduction.

(d) If Section 8.05(c) applies and IFC so requires, such Guarantor shall deliver to IFC an original receipt or a certified copy thereof issued by the relevant Authority evidencing payment to that Authority of all amounts required to be deducted in respect of payments due pursuant to the Guarantee under this Agreement.

Section 8.06. Currency and Place of Payment by Guarantors. (a) The Guarantors shall make all payments of any amount due to IFC pursuant to the Guarantee under this Agreement in the Loan Currency, in same day funds, to the account of IFC at the bank and in the place specified by IFC in its demand for such payments.

(b) The tender or payment of any amount payable pursuant to the Guarantee under this Agreement s(whether or not by recovery under a judgment) in any currency other than the Loan Currency shall not novate, discharge or satisfy the obligation of the Guarantors to pay in the Loan Currency all amounts payable pursuant to the Guarantee under this Agreement except to the extent that (and as of the date when) IFC actually receives funds in the Loan Currency in the account referred to in Section 8.06(a).

(c) Notwithstanding the provisions of Section 8.06(a) and Section 8.06(b), IFC may require the Guarantors to pay (or reimburse IFC) for any Guaranteed Obligations in the currency in which they are payable pursuant to the Guarantee under this Agreement or other IFC Financing Documents, if other than the Loan Currency.

(d) The Guarantors shall indemnify IFC against any losses resulting from a payment being received or an order or judgment being given pursuant to the Guarantee under this Agreement in any currency other than the Loan Currency or such other currency prescribed in this Agreement or in the relevant IFC Financing Document for any of the Guaranteed Obligations or any place other than the account specified pursuant to Section 8.06(a). The Guarantors shall, as a separate obligation, pay such additional amount as is necessary to enable IFC to receive, after conversion to the Loan Currency or such other currency prescribed in this Agreement or in the relevant IFC Financing Document for any of the Guaranteed Obligations at a market rate and the transfer to that account, the full amount due to IFC pursuant to the Guarantee under this Agreement in the Loan Currency or such other currency prescribed in the relevant IFC Financing Document for any of the Guaranteed Obligations and in the account specified pursuant to Section 8.06(a).

(e) Other than as set forth in Section 8.06(c) and Section 8.06(d), in no circumstances whatsoever will the Guarantors have the right to make payments hereunder in any currency other than the Loan Currency in respect of Guaranteed Obligations that have been re-denominated into a currency other than the Loan Currency as a result of the application of any law, order, decree or regulation in any jurisdiction other than the United States of America, and in such circumstances the Guaranteed Obligations shall, for purposes of the Guarantee, be deemed to remain denominated and payable to IFC in the Loan Currency. The Guarantors hereby irrevocably, absolutely and unconditionally waive any legal or equitable defence it may have to the payment of any of the Guaranteed Obligations in a currency other than the Loan Currency.

Section 8.07. Certificate Conclusive. A certificate of IFC delivered any Guarantor stating:

- (a) any amount due and payable by such Guarantor pursuant to the Guarantee under this Agreement; or
- (b) the amount of the Guaranteed Obligations, whether currently due and payable or not,

shall be conclusive in the absence of manifest error.

Section 8.08. Allocation. If at any time, IFC receives less than the full amount then due and payable to IFC pursuant to the Guarantee under this Agreement, IFC may allocate and apply:

- (a) any amounts received by it or recovered under any security and any other document or agreement which is a security for any of the Guaranteed Obligations; or
- (b) any amount received from or on behalf of any Guarantor pursuant to the Guarantee under this Agreement,

in each case, in any manner and for such purposes in respect of this Agreement or any other IFC Financing Document as IFC, in its sole discretion determines, notwithstanding any instruction that any Guarantor or any Co-Borrower may give to the contrary.

Section 8.09. Guarantee Limitation. (a) In the case of a Guarantor incorporated in Morocco ("**Moroccan Guarantor**"), its obligations under this Section 8.09 shall apply only insofar as required to:

- (i) guarantee the payment obligations under the IFC Financing Documents of its direct or indirect Subsidiaries which are or become Co-Borrowers or Guarantors from time to time under the IFC Financing Documents and incurred by those Subsidiaries as Co-Borrowers or as Co-Borrowers and/or Guarantors; and
- (ii) guarantee the payment obligations of Co-Borrowers or Guarantors which are not direct or indirect Subsidiaries of that Moroccan Guarantor, provided that in such case such guarantee shall be limited: (A) to the payment obligations of such Co-Borrowers or Guarantors but (B) not exceeding an amount equal to the aggregate of all amounts borrowed directly (as Co-Borrower) or indirectly (by way of intra-group loans directly or indirectly from any other Co-Borrower) by such other Co-Borrowers or Guarantors under the IFC Financing Documents and on-lent directly or indirectly to that Moroccan Guarantor and outstanding from time to time (the "**Maximum Guaranteed Amount**"); it being specified that any payment made by such Moroccan Guarantor under this

Section 8.09 in respect of the obligations of any other Co-Borrowers or Guarantors shall reduce pro tanto the outstanding amount of the intercompany loans (if any) due by such Moroccan Guarantor to that Co-Borrower or Guarantor under the intercompany loan arrangements referred to above.

(b) For the avoidance of doubt, any payment made by a Moroccan Guarantor in respect of Co-Borrowers or Guarantors referred to in paragraph (a)(ii) of this Section 8.09 shall reduce the Maximum Guaranteed Amount.

(c) Notwithstanding any other provision of this Section 8.09 no Moroccan Guarantor shall secure liabilities under the IFC Financing Documents which would result in such Moroccan Guarantor not complying with Moroccan financial assistance rules as set out in Articles 280 and 402 of the Moroccan 17-95 law on joint stock companies and/or would constitute a misuse of corporate assets within the meaning of article 384 of the Moroccan 17-95 law on joint stock companies or any other law or regulations having the same effect, as interpreted by Moroccan courts.

ARTICLE IX

Saving Provisions

Section 9.01. Waivers of Defences. Each Guarantor's obligations pursuant to the Guarantee under this Agreement and IFC's rights under pursuant to the Guarantee under this Agreement shall not be discharged, impaired, waived or precluded for additional or future exercise, by any act, omission, circumstance, matter or thing (other than irrevocable payment in full of the Guaranteed Obligations) which, but for this provision, would reduce, release or prejudice any of the Guarantor's obligations or IFC's rights pursuant to the Guarantee under this Agreement or which might otherwise constitute a legal or equitable discharge or defence of a surety or a guarantor, or otherwise discharge, impact or affect the obligations of such Guarantor or the rights of IFC, including (whether or not known to such Guarantor or to IFC):

- (a) any time, waiver, composition, forbearance or concession given to any Co-Borrower or any other person;
- (b) any assertion of, or failure to assert, or delay in asserting, any right, power or remedy against any Co-Borrower or any other person, in respect of any security for the obligations of any Co-Borrower under this Agreement or any IFC Financing Document or of such Guarantor pursuant to the Guarantee under this Agreement;
- (c) any amplification, amendment (however fundamental), variation or replacement of the provisions of any IFC Financing Document or of any other agreement between IFC and any Co-Borrower or of any security granted to IFC;
- (d) any failure of any Co-Borrower or any Guarantor to comply with any requirement of any law, regulation or order;
- (e) the dissolution, liquidation, reorganization or other alteration of the legal status or structure of any Co-Borrower or any Guarantor;
- (f) any purported or actual assignment by IFC of the Loan or other rights of IFC under this Agreement or any other IFC Financing Document to any other party;
- (g) this Agreement or any other IFC Financing Document being in whole or in part illegal, void, voidable, invalid, unenforceable or otherwise not in full force and effect; or
- (h) any failure by IFC to take, enforce, release, discharge, exchange or substitute, or to realise the full value of, any security taken in respect of the Guaranteed Obligations.

Section 9.02. Immediate Recourse. Each Guarantor waives any right it may have of first requiring IFC (or any trustee, agent, receiver or other person acting on IFC's behalf), and IFC shall not be required at any time, to:

- (a) give any notice to, make a demand upon, or take any action against any Co-Borrower;

(b) give any prior notice to such Guarantor with regard to any default by any Co-Borrower; or

(c) proceed against, obtain a judgment, file a proof in a winding-up or dissolution of any Co-Borrower, enforce any other rights or security or make a demand or claim payment from any person,

before making a claim against such Guarantor pursuant to the Guarantee under this Agreement.

Section 9.03. Non-Competition. If any amounts have become payable or have been paid by the Guarantors pursuant to the Guarantee under this Agreement, the Guarantors shall not, in respect of such amounts, seek to enforce repayment, obtain the benefit of any security, be indemnified or receive collateral from the Co-Borrowers or a contribution from any other person, or exercise any other rights or legal remedies of any kind which may accrue to the Guarantors against the Co-Borrowers in respect of such amounts, including in any proceeding of the type referred to in Section 9.04, and whether by way of subrogation, offset, counterclaim or otherwise, in respect of the amount so payable or so paid (or in respect of any other monies for the time being due to the Guarantors from the Co-Borrowers) if and for so long as any of the Guaranteed Obligations have not been irrevocably paid in full. The Guarantors shall hold in trust for, and forthwith pay or transfer to, IFC any payment or distribution or benefit of security received by it contrary to this Section 9.03, including where (notwithstanding Section 9.04) such payment, distribution or benefit was received by the Guarantors in any proceeding of the type referred to in Section 9.04.

Section 9.04. Bankruptcy or Liquidation of the Borrower. If any Co-Borrower becomes bankrupt, insolvent, enters into a composition or makes any arrangement with its creditors, or is dissolved, liquidated or wound up, or anything equivalent or analogous to any of the foregoing occurs in respect of such Co-Borrower, the Guarantors shall not claim, rank, prove or vote as a creditor of such Co-Borrower or its estate in competition with IFC, in respect of any amounts owing to the Guarantors by the Co-Borrowers on any account whatsoever, but instead shall give IFC the benefit of any such proof and of all amounts to be received in respect of that proof until and to the extent that all of the Guaranteed Obligations have been irrevocably fully paid.

Section 9.05. Appropriation of Monies. Until all of the Guaranteed Obligations have been irrevocably paid in full, IFC (or any trustee, agent, receiver or other person acting on IFC's behalf) may in its discretion:

(a) refrain from applying or enforcing any other monies, security or rights held or received by IFC (or such trustee, agent, receiver or other person) in respect of the Guaranteed Obligations, or apply and enforce the same in such manner and order as it sees fit and the Guarantors shall not be entitled to the benefit of the same; and

(b) hold and keep any monies received, recovered or realized pursuant to the Guarantee under this Agreement, to the credit either of the Guarantors or of any suspense or impersonal account pending their application from time to time in or towards the discharge of the Guarantee.

Section 9.06. Reinstatement. (a) Where any discharge (whether in respect of the obligations to IFC of the Co-Borrowers, the Guarantors or any security for those obligations or otherwise) is made in whole or in part or any arrangement is made on the basis of any payment, security or other disposition which is subsequently avoided or must be restored as a result of any applicable insolvency, liquidation, bankruptcy or equivalent proceedings or otherwise, then the liability of the Guarantors under this Agreement shall continue or shall be reinstated (as the case may be) as if such discharge or arrangement had not occurred.

(b) Section 9.06(a) shall be unaffected by any concession or compromise by IFC (or any trustee, agent or other person acting on IFC's behalf) of any claim that any payment, security or other disposition is liable to avoidance or restoration.

Section 9.07. Additional Security. The Guarantee is in addition to, and is not in any way prejudiced by, any collateral or other security now or hereafter held by IFC for the Guaranteed Obligations, nor shall such collateral or other security held by IFC or the liability of any person for all or any part of the Guaranteed Obligations be in any manner prejudiced or affected by the Guarantee.

IN WITNESS WHEREOF, the parties have caused this Agreement to be signed in their respective names as of the date first above written.

KAZYON RETAIL SARLAU

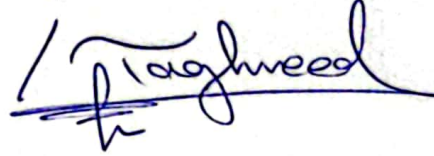
By: Mohammed
Name: BENMEZOUARA
Title: C.E.O

TAWFEER FOR FOOD PRODUCTS (KAZYON)

By:

Name: Mohamed Mustafa / Taghreed Khattab

Title: Chairman / Board Member



KAZYON LIMITED

By: _____

Name: ONAR BEBARS

Title: Authorized signatory

A handwritten signature in blue ink, appearing to be 'Onar Bebars', written over a horizontal line.

TAWFEER VENTURES LIMITED

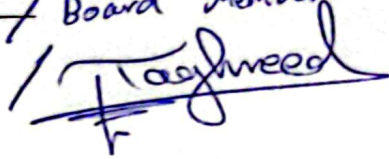
By: _____

Name: OMAR BEBARS

Title: Director

A handwritten signature in blue ink, appearing to be 'Omar', with a large, stylized initial 'O' and a checkmark-like flourish at the end.

FAVORRIXX FOOD INDUSTRIAL

By: _____
Name: ~~Mohamed Mustafa~~ / Taghreed Khattab
Title: ~~Chairman~~ / Board member
 / 

FAVORIXX LIMITED

By: _____

Name: Omar Bebars

Title: Director

A handwritten signature in blue ink, appearing to be 'Omar Bebars', written over a horizontal line.

INTERNATIONAL FINANCE CORPORATION

By: Ifeoma Ezeokafor
Name: Ifeoma Ezeokafor
Title: Regional Industry Manager

TRANSACTION COST AND FINANCIAL PLAN

Project	Amount Required	Financial Plan	
Acquisition of up to 750 new stores and up to 2 distribution centres in Morocco by Kazyon Morocco	US\$74,000,000	Previous equity raise	US\$24,000,000
		New Equity Raise	US\$20,000,000
		Loan	US\$30,000,000
TOTAL FINANCING AVAILABLE	US\$74,000,000		US\$74,000,000

OBLIGORS'/TRANSACTION AUTHORIZATIONS

(See Sections 3.01 (d) and 4.01 (d) of the Loan Agreement)

Authorizations to be Obtained Prior to First Disbursement

1. For Kayzon BVI:

- (a) A copy of its Charter (including memorandum and articles of association, certificate of incorporation, register of members, register of directors, private register of charges and any other constitutional documents).
- (b) A copy of a resolution of its board of directors:
 - (i) approving the terms of, and the transactions contemplated by, the IFC Financing Documents to which it is a party and resolving that it execute the IFC Financing Documents to which it is a party;
 - (ii) confirming that its entry into, and the transactions contemplated by the IFC Financing Documents to which it is a party, and any ancillary documents as may be contemplated therein or required to be entered into in connection with the IFC Financing Documents to which it is a party, will promote the success of the company for the benefit of its members as a whole;
 - (iii) authorising a specified person or persons to execute the IFC Financing Documents to which it is a party on its behalf; and
 - (iv) authorising a specified person or persons, on its behalf, to sign and/or despatch all documents and notices to be signed and/or despatched by it under or in connection with the IFC Financing Documents to which it is a party.
- (c) A registered agent's certificate/certificate of incumbency issued by Kazyon BVI's registered agent.
- (d) A copy of the certificate of good standing issued by the British Virgin Islands Registrar of Corporate Affairs.

2. For Kazyon UK:

- (a) A copy of its Charter (including memorandum and articles of association, certificate of incorporation, and any other constitutional documents).
- (b) A copy of a resolution of its board of directors:
 - (i) approving the terms of, and the transactions contemplated by, the IFC Financing Documents to which it is a party and resolving that it execute the IFC Financing Documents to which it is a party;
 - (ii) confirming that its entry into, and the transactions contemplated by the IFC Financing Documents to which it is a party, and any ancillary documents as may be contemplated therein or required to be entered into in connection with the IFC Financing Documents to which it is a party, will promote the success of the company for the benefit of its members as a whole;
 - (iii) authorising a specified person or persons to execute the IFC Financing Documents to which it is a party on its behalf; and

- (iv) authorising a specified person or persons, on its behalf, to sign and/or despatch all documents and notices to be signed and/or despatched by it under or in connection with the IFC Financing Documents to which it is a party.

3. For Kazyon Morocco

- (a) A copy of the Charter (including its articles of association, the certificates of registration and good standing (Modèle 7 and Modèle 14) of Kazyon Morocco dated less than one month prior to the first Disbursement;
- (b) A copy of a unanimous resolution of its shareholders:
 - (i) approving the terms of, and the transactions contemplated by, the IFC Financing Documents to which it is a party and resolving that it execute the IFC Financing Documents to which it is a party;
 - (ii) confirming that its entry into, and the transactions contemplated by the IFC Financing Documents to which it is a party, and any ancillary documents as may be contemplated therein or required to be entered into in connection with the IFC Financing Documents to which it is a party, will promote the success of the company for the benefit of its members as a whole;
 - (iii) authorising a specified person or persons to execute the IFC Financing Documents to which it is a party on its behalf; and
 - (iv) authorising a specified person or persons, on its behalf, to sign and/or despatch all documents and notices to be signed and/or despatched by it under or in connection with the IFC Financing Documents to which it is a party.
- (c) Evidence of submission to the competent Moroccan Authority an application for the Moroccan Foreign Exchange Office authorisation to enter into the Kazyon Morocco Share Pledge and the Guarantee.

4. For Kazyon Egypt:

- (a) A copy of its Charter (including memorandum and articles of association, certificate of incorporation, register of members, register of directors, private register of charges and any other constitutional documents).
- (b) A copy of a unanimous resolution of its shareholders:
 - (i) approving the terms of, and the transactions contemplated by, the IFC Financing Documents to which it is a party and resolving that it execute the IFC Financing Documents to which it is a party;
 - (ii) confirming that its entry into, and the transactions contemplated by the IFC Financing Documents to which it is a party, and any ancillary documents as may be contemplated therein or required to be entered into in connection with the IFC Financing Documents to which it is a party, will promote the success of the company for the benefit of its members as a whole; and
 - (iii) authorising a specified person or persons to execute the IFC Financing Documents to which it is a party on its behalf.

For Favorixx:

- (a) A copy of its Charter (including memorandum and articles of association, certificate of incorporation, register of members, register of directors, private register of charges and any other constitutional documents).

- (b) A copy of a unanimous resolution of its shareholders:
 - (i) approving the terms of, and the transactions contemplated by, the IFC Financing Documents to which it is a party and resolving that it execute the IFC Financing Documents to which it is a party;
 - (ii) confirming that its entry into, and the transactions contemplated by the IFC Financing Documents to which it is a party, and any ancillary documents as may be contemplated therein or required to be entered into in connection with the IFC Financing Documents to which it is a party, will promote the success of the company for the benefit of its members as a whole; and
 - (iii) authorizing a specified person or persons to execute the IFC Financing Documents to which it is a party on its behalf.
- 5. For Kazyon Cayman Islands:
 - (a) A copy of its Charter (including memorandum and articles of association, certificate of incorporation, register of directors and officers, register of mortgages and charges and a certificate of good standing).
 - (b) A copy of a resolution of its board of directors:
 - (i) approving the terms of, and the transactions contemplated by, the IFC Financing Documents to which it is a party and resolving that it execute the IFC Financing Documents to which it is a party;
 - (ii) confirming that its entry into, and the transactions contemplated by the IFC Financing Documents to which it is a party, and any ancillary documents as may be contemplated therein or required to be entered into in connection with the IFC Financing Documents to which it is a party, will promote the success of the company for the benefit of its members as a whole;
 - (iii) authorising a specified person or persons to execute the IFC Financing Documents to which it is a party on its behalf; and
 - (iv) authorising a specified person or persons, on its behalf, to sign and/or despatch all documents and notices to be signed and/or despatched by it under or in connection with the IFC Financing Documents to which it is a party.

LIENS

Any Lien granted to NUCA, pursuant to the allocation agreements entered into in connection with the Distributions Centres, and granting NUCA liens over the Distribution Centres, as well as all constructions and movables established thereon, to secure the full payment of all amounts due to NUCA in accordance with the provisions of Law No. 59 of 1979 and its executive regulations and amendments.

EXISTING FINANCIAL DEBT

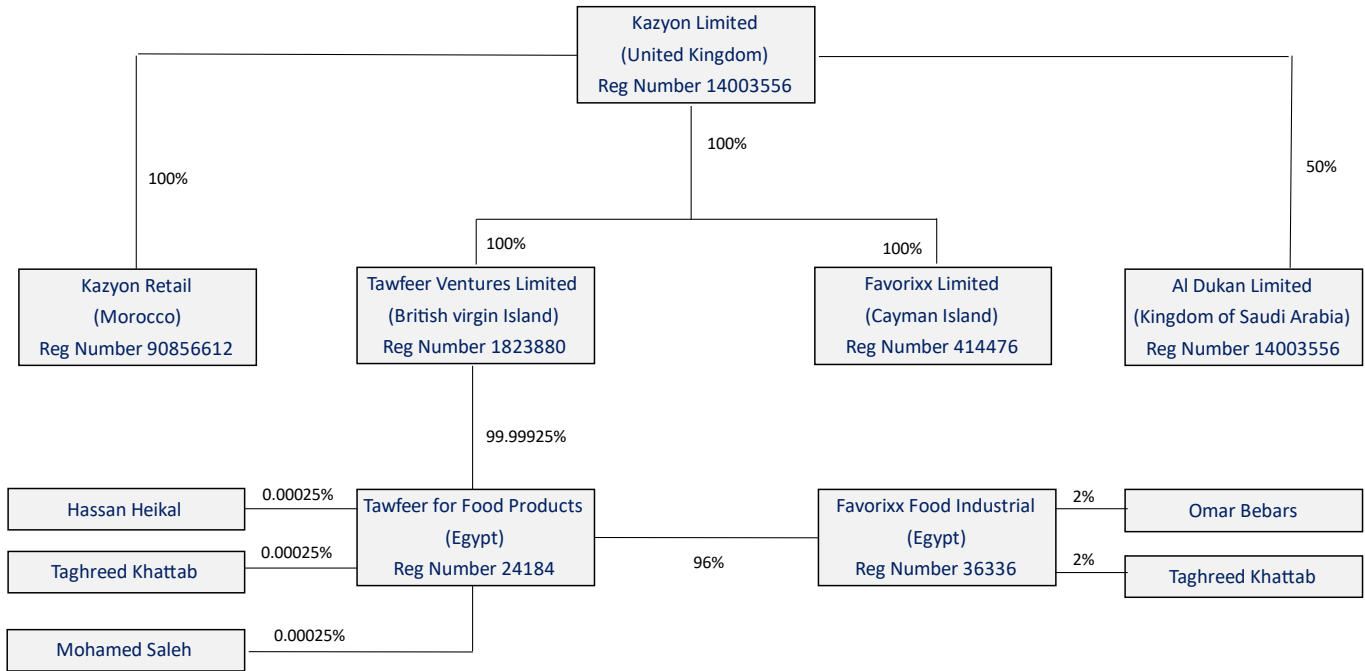
Entity	Existing Finance Debt
Kazyon Egypt	None
Kazyon Morocco	None
Kazyon UK	None
Favorixx	None
Kazyon BVI	None
Kazyon Cayman Islands	None
Al Dukan	USD 19,710,873

*The Financial Debt of Al Dukan, an Excluded Subsidiary, is a shareholder loan.

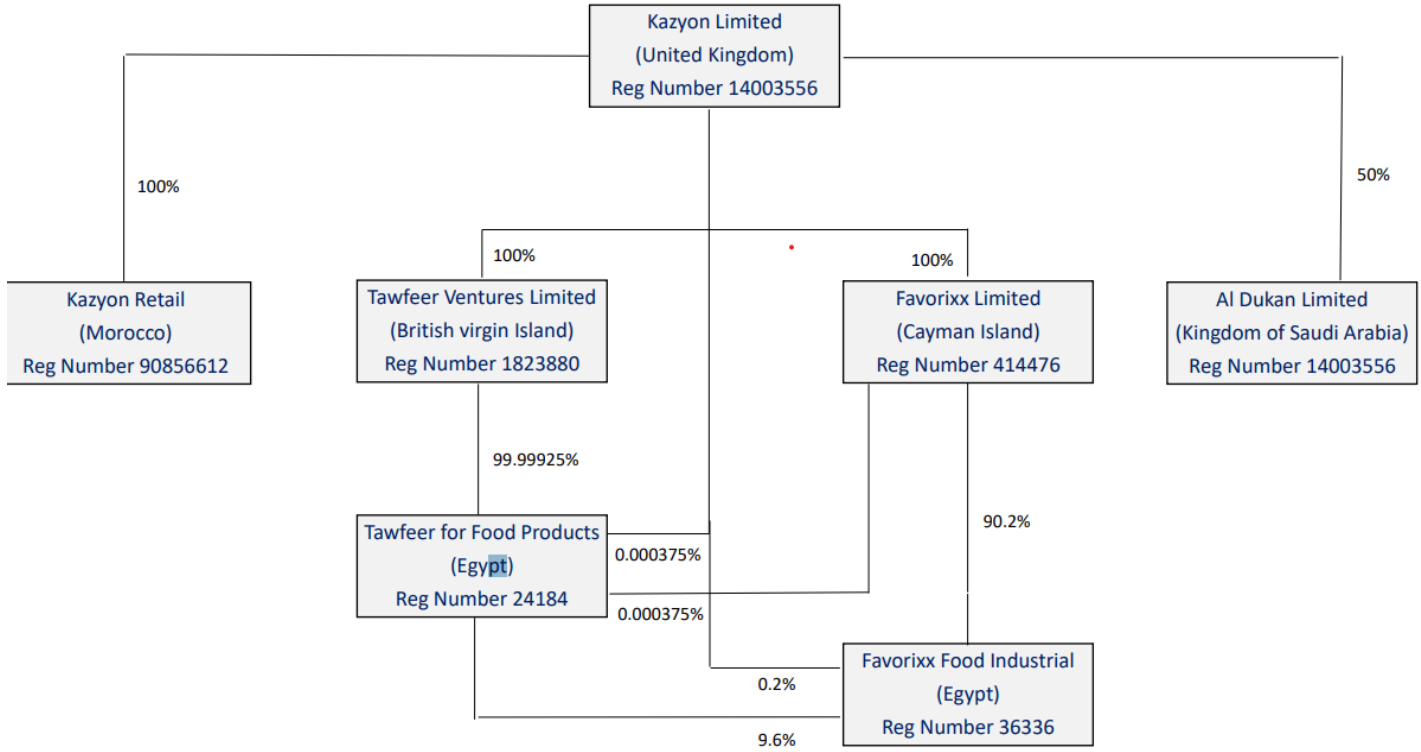
* Excluded Intercompany Transactions are not contained in this Annex D.

GROUP STRUTURE CHART AND LIST OF SUBSIDIARIES

PRE FAVORIXX SHARE INCREASE



POST FAVORIXX SHARE INCREASE



MINIMUM INSURANCE REQUIREMENTS

(See Section 5.04(a) of the Loan Agreement)

1. CONSTRUCTION WORKS (only when applicable)

- a) Erection/Construction All Risks, owner-controlled, based on full contract value and including for all assets as security against loan.
 - i) Strike, Riot & Civil Commotion (SRCC)
 - ii) Debris Removal
 - iii) Extra Expenses
 - iv) Extended Maintenance Period
 - v) Third Party Liability
- b) Marine Cargo

2. ONGOING OPERATIONS

- a) All Risk (Property Damage) including all natural perils such earthquake, flood, windstorm including SRCC based on new replacement value.
- b) Machinery Breakdown
- c) Third Party Liability with a minimum limit of liability of US\$1,000,000
- d) Products Liability with a minimum limit of liability with worldwide coverage.

3. AT ALL TIMES

- a) All other insurances as required by applicable laws and regulations.

METHODOLOGY FOR FINANCIAL RATIO CALCULATIONS

1. Financial Ratios Calculation Methodology

1) Adjusted Financial Debt to Adjusted EBITDA Ratio (A is divided by B)	[]
Adjusted Financial Debt	[]
IFC Loan	[]
Add: Financial Debt as defined (Including Financial Leases)	[]
Ratio Numerator (A)	[]
Adjusted EBITDA	
Net Income after Minorities	[]
Add: Income Attributed to Minorities	[]
Add: Tax Expense	[]
Add: Impairment Losses	[]
Add: Foreign Exchange Losses (Gains)	[]
Add: Depreciation, Amortization and Provisions	[]
Add: Finance Costs*	[]
Add: Other Non-Operating Losses (Gains)	[]
Less: Interest Income (Including Interest Income from Investment in Treasuries)	[]
Less: Gain on Sale of Investment in Associates	[]
Less: Share of Gains from Investment in Associates	[]
Less: Actual Rent Expense**	[]
Ratio Denominator (B)	[]

* Finance Costs include interest expense, interest on lease liabilities and bank charges.

** Actual rent expense for Kazyon Egypt's stores, distribution centers and headquarters, as per the relevant leasing contract

2) Prospective Debt Service Coverage Ratio (C is divided by D)	[]
Cash Flow Available for Debt Service	
Net Income of the past four (4) quarters	[]
Add: Non-cash Items, of the past four (4) quarters	[]
Add: Finance Costs of the past four (4) quarters *	[]
Add/Less: Change in Working Capital of the past four (4) quarters ***	[]
Less: Capex of the past four (4) quarters	[]
Less: Actual Rent Expense of the past four (4) quarters**	[]
Ratio Numerator (C)	[]
Debt Service	
Scheduled Repayments of Long-Term Debt and Financial Leases, of next (4) quarters	[]
Add: Interest Expense and Other Finance Costs, of next (4) Quarters	[]
Ratio Denominator (D)	[]

* Finance Costs include interest expense, interest on lease liabilities and bank charges.

** Actual rent expense for Kazyon Egypt's stores, distribution centers and headquarters, as per the relevant leasing contract

*** Change in Working Capital is the sum of: (i) Change in Inventory, (ii) Change in Trade Receivables, (iii) Change in Trade Payables, (iv) Change in Advance Payments to Suppliers, (v) Change in Down Payments from Customers, (vi) Change in Accrued Expenses.

PROHIBITED ACTIVITIES

- Production or activities involving harmful or exploitative forms of forced labor/harmful child labor.
- Production or trade in any product or activity deemed illegal under host Countries laws or regulations or international conventions and agreements.
- Production or trade in weapons and munitions.
- Production or trade in alcoholic beverages (excluding beer and wine).
- Production or trade in tobacco.
- Gambling, casinos and equivalent enterprises.
- Trade in wildlife or wildlife products regulated under Convention on International Trade in Endangered Species of Wild Fauna and Flora
- Production or trade in radioactive materials.
- Production or trade in or use of unbonded asbestos fibers.
- Commercial logging operations or the purchase of logging equipment for use in primary tropical moist forest (prohibited by the Forestry policy).
- Production or trade in products containing PCBs.
- Production or trade in pharmaceuticals subject to international phase outs or bans.
- Production or trade in pesticides/herbicides subject to international phase out.
- Production or trade in ozone depleting substances subject to international phase out.
- Drift net fishing in the marine environment using nets in excess of 2.5 km in length.
- Knowingly provide or permit to be provided any product or services (or any text, pictures, graphics, sound, video, or other data in connection with any services) that:
 1. infringe on any third party's copyright, patent, trademark, trade secret or other proprietary rights or rights or publicity of privacy;
 2. violate any law, statute, ordinance or regulation (including, without limitation, the laws and regulations governing export control);
 3. are defamatory, trade libelous, unlawfully threatening or harassing;
 4. are obscene or pornographic or contain child pornography;
 5. violate any laws regarding competition, privacy, anti-discrimination or false advertising; or

6. contain any viruses, Trojan horses, worms, time-bombs, cancel bots or other computer routines that are intended to damage, detrimentally interfere with, surreptitiously intercept or expropriate any system, data or personal information.

ANTI-CORRUPTION GUIDELINES FOR IFC TRANSACTIONS

The purpose of these Guidelines is to clarify the meaning of the terms "Corrupt Practices", "Fraudulent Practices", "Coercive Practices," "Collusive Practices" and "Obstructive Practices" in the context of IFC operations.

1. CORRUPT PRACTICES

A "Corrupt Practice" is the offering, giving, receiving or soliciting, directly or indirectly, of anything of value to influence improperly the actions of another party.

INTERPRETATION

- A. Corrupt practices are understood as kickbacks and bribery. The conduct in question must involve the use of improper means (such as bribery) to violate or derogate a duty owed by the recipient in order for the payor to obtain an undue advantage or to avoid an obligation. Antitrust, securities and other violations of law that are not of this nature are excluded from the definition of corrupt practices.
- B. It is acknowledged that foreign investment agreements, concessions and other types of contracts commonly require investors to make contributions for bona fide social development purposes or to provide funding for infrastructure unrelated to the project. Similarly, investors are often required or expected to make contributions to bona fide local charities. These practices are not viewed as Corrupt Practices for purposes of these definitions, so long as they are permitted under local law and fully disclosed in the payor's books and records. Similarly, an investor will not be held liable for corrupt or fraudulent practices committed by entities that administer bona fide social development funds or charitable contributions.
- C. In the context of conduct between private parties, the offering, giving, receiving or soliciting of corporate hospitality and gifts that are customary by internationally-accepted industry standards shall not constitute corrupt practices unless the action violates applicable law.
- D. Payment by private sector persons of the reasonable travel and entertainment expenses of public officials that are consistent with existing practice under relevant law and international conventions will not be viewed as Corrupt Practices.
- E. The World Bank Group does not condone facilitation payments. For the purposes of implementation, the interpretation of "Corrupt Practices" relating to facilitation payments will take into account relevant law and international conventions pertaining to corruption.

2. FRAUDULENT PRACTICES

A "Fraudulent Practice" is any action or omission, including misrepresentation, that knowingly or recklessly misleads, or attempts to mislead, a party to obtain a financial or other benefit or to avoid an obligation.

INTERPRETATION

- A. An action, omission, or misrepresentation will be regarded as made recklessly if it is made with reckless indifference as to whether it is true or false. Mere inaccuracy in such information, committed through simple negligence, is not enough to constitute a "Fraudulent Practice" for purposes of World Bank Group sanctions.
- B. Fraudulent Practices are intended to cover actions or omissions that are directed to or against a World Bank Group entity. It also covers Fraudulent Practices directed to or against a World Bank Group member country in connection with the award or implementation of a government contract or concession in a project financed by the World Bank Group. Frauds on other third parties are not condoned but are not specifically sanctioned in IFC, MIGA, or PRG operations. Similarly, other illegal behavior is not condoned, but will not be sanctioned as a Fraudulent Practice under the World Bank sanctions program as applicable to IFC, MIGA and PRG operations.

3. COERCIVE PRACTICES

A "Coercive Practice" is impairing or harming, or threatening to impair or harm, directly or indirectly, any party or the property of the party to influence improperly the actions of a party.

INTERPRETATION

- A. Coercive Practices are actions undertaken for the purpose of bid rigging or in connection with public procurement or government contracting or in furtherance of a Corrupt Practice or a Fraudulent Practice.
- B. Coercive Practices are threatened or actual illegal actions such as personal injury or abduction, damage to property, or injury to legally recognizable interests, in order to obtain an undue advantage or to avoid an obligation. It is not intended to cover hard bargaining, the exercise of legal or contractual remedies or litigation.

4. COLLUSIVE PRACTICES

A "Collusive Practice" is an arrangement between two or more parties designed to achieve an improper purpose, including to influence improperly the actions of another party.

INTERPRETATION

Collusive Practices are actions undertaken for the purpose of bid rigging or in connection with public procurement or government contracting or in furtherance of a Corrupt Practice or a Fraudulent Practice.

5. OBSTRUCTIVE PRACTICES

An "Obstructive Practice" is (i) deliberately destroying, falsifying, altering or concealing of evidence material to the investigation or making of false statements to investigators, in order to materially impede a World Bank Group investigation into allegations of a corrupt, fraudulent, coercive or collusive practice, and/or threatening, harassing or intimidating any party to prevent it from disclosing its knowledge of matters relevant to the investigation or from pursuing the investigation, or (ii) acts intended to materially impede the exercise of IFC's access to contractually required information in connection with a World Bank Group investigation into allegations of a corrupt, fraudulent, coercive or collusive practice.

INTERPRETATION

Any action legally or otherwise properly taken by a party to maintain or preserve its regulatory, legal or constitutional rights such as the attorney-client privilege, regardless of whether such action had the effect of impeding an investigation, does not constitute an Obstructive Practice.

GENERAL INTERPRETATION

A person should not be liable for actions taken by unrelated third parties unless the first party participated in the prohibited act in question.

GUARANTORS

Company
Kazyon Egypt
Kazyon UK
Kazyon Cayman Islands
Kazyon BVI
Kazyon Morocco
Favorixx

ACTION PLAN

Kazyon Morocco 49989			
#	ESAP	Evidence of Completion	Due Date
1	Kazyon Morocco will develop an E&S management system (ESMS), based on the existing ESMS in Egypt, aligned with national laws and IFC PSs including (i) an E&S policy; (ii) identification of risks and impacts including E&S risk screening procedure for the new DCs, stores and suppliers; (iii) management programs, to mitigate the E&S risks, such as for OHS, waste management, transport management plan, security management plan, management plan for refrigeration and cooling agents; (iv) an E&S organization with defined roles and responsibilities; (v) emergency preparedness and response; (vi) stakeholder engagement and community grievance mechanism; and (vii) monitoring, review and reporting of E&S performance. ESMS will cover all activities including the operations in DCs and stores.	a) Environmental Policy b) Risk assessment tools including E&S screening procedure. c) Integrated Waste Management plan d) OHS policy and procedure e) EHS Organization chart and CVs of key personnel, with defined roles and responsibilities f) Emergency preparedness and response plan g) Resource Efficiency Plan h) Life and Fire Safety Plan i) Transport Management Plan j) Security Management Procedure and Plan k) Community Grievance Procedure l) Monitoring and reporting procedures m) Internal Audit Reports	December 2025
2	Kazyon Morocco will appoint an Environment Health and Safety manager (EHS) and will be supported by a team of EHS supervisors for Kazyon DCs and stores in Morocco. Similarly, as the number of staff will grow, Kazyon will hire an HR team in addition to supply chain team	a) EHS Organization chart with hiring plan for EHS team b) CV of EHS c) HR Organization and hiring plan d) Supply Chain Organogram and hiring plan	June 2025
3	Kazyon Morocco will also hire a professional labor specialist to conduct a labor assessment for Morocco operations, to identify social and labor risks (if any) in line with IFC PS2 and national legislation and to provide recommendations to address these gaps (if needed). Within this assessment, Kazyon Morocco will also conduct a baseline assessment to identify Gender-Based Violence and Harassment (GBVH) gaps, risk factors and propose a GBVH risk mitigation plan.	a) ToRs for the labor assessment and GBVH to the satisfaction of IFC b) CV of labor specialist to the satisfaction of IFC c) CV of gender specialist to the satisfaction of IFC d) Labor assessment report and recommendations e) GBVH assessment report and recommendations f) Evidence of closure of the corrective action plans for both assessments to the satisfaction of IFC	December 2025
4	Kazyon Morocco will develop HR policies and procedures in accordance with national law and IFC PS2 requirements. HR policy and procedures will address, but not be limited to, worker code of conduct, labor and working conditions and terms of employment and dismissal, new worker contracts' templates, non-discrimination and equal opportunity, prevention of child and forced labor, worker grievance mechanism (including reporting and	a) HR Policy and procedure b) Worker code of conduct c) Terms of employment and dismissal (with new worker contracts' templates) d) Non-discrimination and equal opportunity policy and procedure e) Child and Forced labor policy and procedure f) Worker Grievance Procedure	June 2025

	investigation of gender-based violence and harassment), prohibition of sexual harassment and abuse, freedom of association and retrenchment. These policies and procedures will be endorsed by senior management and communicated to all company workers, including third party workers, through training and other sensitization activities such as toolbox talks and bulletin boards	g) Prohibition of sexual harassment and abuse policy and procedure h) OHS policy and Procedure i) Freedom of association policy (a commitment in HR policy for freedom of association) j) HR training plan, training material and training attendance sheets k) Retrenchment framework	
5	Kazyon will communicate its new HR policies and procedures to third party workers and will contractually bind all service providers to adhere to them. The contracts will also include audit rights for Kazyon Morocco where service providers will be penalized up to termination of their contract if they are not aligned with IFC PS2 and good international industrial practices.	a) Evidence of communication of HR policies and Procedures to third party workers b) Contracts with third party workers to the satisfaction of IFC	30 September 2025
6	Kazyon Morocco will develop a supplier code of conduct for its Morocco operations including clear prohibition of child labour and forced labour in all of its purchasing procedures. Kazyon Morocco will incorporate contractual clauses in its agreements, with its primary suppliers, requiring them, to comply with its supplier code of conduct and will reserve the right to audit suppliers for their compliance with the code of conduct. Kazyon Morocco will assess current and future primary suppliers against compliance with the updated supplier code of conduct and engage with suppliers to develop corrective actions (if gaps are identified). Kazyon Morocco will develop a contractor management plan in alignment with IFC PS2 and the Good Practice Note for Contractor Management for all contractors to follow while undertaking work Kazyon Morocco. EPC contracts will include clear reference to prohibition of child and forced labor as per IFC PS2 requirements.	a) Supplier Code of conduct in line with IFC PS2 b) Evidence of communication with Suppliers c) Supplier risk assessment d) Sample supplier contracts e) Sample supplier audit reports f) Contractor management plan to the satisfaction of IFC	15 September 2025
7	Kazyon will develop a corporate "Life and Fire Safety (L&FS) Master Plan" for the construction and/or remodelling of the new stores and DCs, that will form part of the "corporate store and DCs design manual". The master plan will consider local legal requirements, and aspects such as occupancy levels, means of egress and systems for fire prevention, detection, and suppression as per the section 3.3 Life and Fire Safety (L&FS) applicability and approach of the General EHS Guidelines.	Life and Fire Safety Master Plan to the satisfaction of IFC	30 September 2025

8	For a group of 10 new stores starting operations in the next 12 months after IFC's investment, Kazyon Morocco will submit to IFC the acceptance reports of L&FS, fire department permits and certifications that each facility is constructed and commissioned in compliance with local building codes, fire department regulations.	Life and fire safety acceptance reports, fire department permits and certifications for 10 new stores	30 September 2025
9	Kazyon Morocco will develop a community grievance mechanism in line with IFC PSs allowing anonymous complaints, and freedom of retaliation statement. Grievance channels will cover touch points with the community including retail stores and DCs, among others. Grievances will be maintained in a log tracking dates of grievances and dates and evidence of closure.	Community Grievance Procedure and Grievance	15 June 2025

FORM OF CERTIFICATE OF INCUMBENCY AND AUTHORITY

(See Section 1.01 and Section 4.01(b) of the Loan Agreement)

[Relevant Co-Borrower Letterhead]

[Date]

International Finance Corporation
2121 Pennsylvania Avenue, N.W.
Washington, D.C. 20433
United States of America

Attention: Director, Manufacturing, Agribusiness and Services, Africa

Ladies and Gentlemen:

Certificate of Authorized Representative

With reference to the Loan Agreement dated _____, 2024 (the "Loan Agreement") between Kazyon Limited, Kazyon Retail Sarlau, Tawfeer for Food Products (Kazyon), Tawfeer Ventures Limited, Favorrixx Food Industrial, Favorrixx Limited as Obligors, I, the undersigned [Chairman/Director] of [name of entity], (the ("[insert "Obligor")], duly authorized to do so, hereby certify that:

1. The persons named below have been duly elected, have duly qualified as and at all times since _____, ●¹ (to and including the date hereof) have been officers of [the relevant Obligor], holding the respective offices below set opposite their names, and the signatures below set opposite their names are their genuine signatures.

<u>Name</u> ²	<u>Office</u>	<u>Signature</u>
_____	_____	_____
_____	_____	_____
_____	_____	_____

¹ Insert a date prior to the time of any corporate action relating to the Loan Agreement.

² Include name, office and signature of each officer who will sign any Document. Designations may be changed at any time by issuing a new Certificate of Incumbency and Authority authorized by the Board of Directors where applicable.

Each such person is authorized to sign the IFC Financing Documents and any other request, notice, certification or other document provided for thereunder and to take any other action required or permitted to be taken thereunder.

2. Attached hereto as Exhibit A is a copy of the [Charter] of [insert entity] as filed with [name of registry] on ●, together with all amendments thereto adopted through the date hereof.

3. Attached hereto as Exhibit B is a true and correct copy of [resolutions/powers of attorney] duly adopted by the [Board of Directors]/[shareholders] of [entity] (certified by a [] notary public) at a meeting on ____, ●, at which a quorum was present and acting throughout, which [resolutions/powers of attorney] have not been revoked, modified, amended or rescinded and are still in full force and effect. Except as attached hereto as Exhibit B, no [resolutions/powers of attorney] have been adopted by the [Board of Directors]/[shareholders] of [entity] which deal with the execution, delivery or performance of any of the IFC Financing Documents.

4. Each copy document relating to the company specified in Annex B and Section 4.01 of the Loan Agreement is correct, complete and in full force and effect and has not been amended or superseded as at a date of this certificate.

IN WITNESS WHEREOF, I have hereunto set my hand this __ day of ●.

[Name of Entity]

Name:

Title:

I, the undersigned, [Secretary/Assistant Secretary] of [entity], DO HEREBY CERTIFY that [Insert name of Person making the above certifications] is the duly elected and qualified [Chief Executive Officer/Chief Financial Officer] of [] and the signature above is his genuine signature.

IN WITNESS WHEREOF, I have hereunto set my hand this __ day of ●.

[Name of Entity]

Name:

Title:

FORM OF REQUEST FOR DISBURSEMENT (LOAN)

(See Section 2.02 and Section 4.03 of the Loan Agreement)

[Relevant Co-Borrowers' Letterhead]

[Date]

International Finance Corporation
2121 Pennsylvania Avenue, N.W.
Washington, D.C. 20433
United States of America

Attention: Director, Manufacturing, Agribusiness and Services, Africa

Ladies and Gentlemen:

Investment No. 49989
Request for Loan Disbursement No. []*

1. Please refer to the Loan Agreement (the "Loan Agreement") dated _____, ___, between, among others, Kazyon Limited, Kazyon Retail Sarl, Tawfeer for Food Products (Kazyon), Tawfeer Ventures Limited, Favorixx Food Industrial and Favorixx Limited (the "Co-Borrowers") and International Finance Corporation ("IFC"). Terms defined in the Loan Agreement have their defined meanings whenever used in this request.

2. The Co-Borrowers irrevocably request the disbursement on _____, ____ (or as soon as practicable thereafter) of the amount of _____ under the Loan (the "Disbursement") in accordance with the provisions of Section 2.02 of the Loan Agreement. You are requested to pay such amount to the account in [New York] of [Name of Co-Borrower] [Name of correspondent Bank], Account No. _____ at [Name and Address of Bank] [for further credit to the Co-Borrower's Account No. _____ at [Name and address of Bank] in the Kingdom of Morocco/Arab Republic of Egypt**.

3. For the purpose of Section 4.02 and Section 4.03 of the Loan Agreement, the Co-Borrowers certify as follows:

(a) no Event of Default and no Potential Event of Default has occurred and is continuing;

(b) the proceeds of the Disbursement are at the date of this request needed by the Co-Borrowers for the purpose of the Transaction;

(c) since the date of the Loan Agreement nothing has occurred which has or could reasonably be expected to have a Material Adverse Effect;

*Each _____ to _____ be _____ numbered _____ in _____ series.

** Account must be of Kazyon Morocco in the Kingdom of Morocco or any other place acceptable to IFC.

(d) since [insert date]** no Co-Borrower nor its Subsidiaries has incurred any material loss or liability (except such liabilities as may be incurred by the Co-Borrower in accordance with Section 5.02 of the Loan Agreement);

(e) the representations and warranties made in Article IV of the Loan Agreement are true on the date of this request and will be true on the date of Disbursement with the same effect as if such representations and warranties had been made on and as of each such date [(but in the case of Section 3.01(c), without the words in parenthesis)];

(f) the proceeds of the Disbursement are not in reimbursement of, or to be used for, expenditures in the territories of any country that is not a member of the World Bank or for goods produced in or services supplied from any such country;

(g) after giving effect to the Disbursement, no Co-Borrower nor any of its Subsidiaries will be in violation of:

- (i) its respective Charter;
- (ii) any provision contained in any document to which such Co-Borrower or such Subsidiary is a party (including the Loan Agreement) or by which such Co-Borrower or such Subsidiary is bound; or
- (iii) any law, rule, regulation, Authorization or agreement or other document binding on such Co-Borrower or such Subsidiary directly or indirectly, limiting or otherwise restricting such Co-Borrower's or such Subsidiary's borrowing or guarantee power or authority or its ability to borrow or guarantee.

** The date should be the same as is used in Section 3.01 (h) & 3.01 (i).

The above certifications are effective as of the date of this Request for Disbursement and shall continue to be effective as of the date of the Disbursement. If any of these certifications is no longer valid as of or prior to the date of the requested Disbursement, the Co-Borrowers undertake to immediately notify IFC.

Yours truly,

KAZYON RETAIL SARLAU**

By _____

Authorized Representative

Yours truly,

TAWFEER FOR FOOD PRODUCTS (KAZYON)

By _____

Authorized Representative

Yours truly,

KAZYON LIMITED

By _____

Authorized Representative

Yours truly,

TAWFEER VENTURES LIMITED

By _____

Authorized Representative

Yours truly,

FAVORRIXX FOOD INDUSTRIAL

By _____

Authorized Representative

FAVORIXX LIMITED

By _____

Authorized Representative

Copy to: Manager, Loan Operations
International Finance Corporation

FORM OF LOAN DISBURSEMENT RECEIPT

(See Section 2.02 of the Loan Agreement)

[The Co-Borrowers' Letterhead]

International Finance Corporation
2121 Pennsylvania Avenue, N.W.
Washington, D.C. 20433
United States of America

Attention: Manager, Financial Operations Unit

Ladies and Gentlemen:

Investment No. 49989
Disbursement Receipt No. []* (Loan)

We, [Name of Co-Borrowers], hereby acknowledge receipt on the date hereof, of the sum of _____ disbursed to us by International Finance Corporation ("IFC") under the Loan of _____ provided for in the Loan Agreement dated _____, _____ between our companies and International Finance Corporation.

Yours truly,³

KAZYON RETAIL SARLAU

By _____

Authorized Representative

Yours truly,

TAWFEER FOR FOOD PRODUCTS (KAZYON)

By _____

Authorized Representative

Yours truly,

KAZYON LIMITED

*To correspond with number of the Disbursement request. See Schedule 2.

**To be signed only by the relevant Co-Borrower that requested the disbursement.

By _____

Authorized Representative

Yours truly,

TAWFEER VENTURES LIMITED

By _____

Authorized Representative

Yours truly,

FAVORRIX FOOD INDUSTRIAL

By _____

Authorized Representative

DFAVORIXX LIMITED

By _____

Authorized Representative

MATTERS TO BE COVERED IN LOCAL COUNSELS' LEGAL OPINION
(Attach Form of Opinion)

(See Section 4.01(e) of the Loan Agreement)

The legal opinion of IFC's counsel in the Countries should cover the following matters:

- (a) the organization, existence and operations of the relevant Obligor and its authorized and subscribed [capital stock]/[share capital];
- (b) the matters referred to in subsection[s] [(a),] [(c),] [(d),] and [(e)] of Section 4.01 of the Loan Agreement;
- (c) the title of the relevant Obligor to, or other interest of the relevant Obligor in, the assets which are the subject of the IFC Security;
- (e) the authorization, execution, validity and enforceability of this Agreement and each of the other IFC Financing Documents and any other documents necessary or desirable to the implementation of any of those agreements or documents;
- (f) non-contravention of Charter, law or material agreements;
- (g) enforceability of foreign judgments;
- (h) the compliance with all obligations referred to in Section 2.15(a) (*Expenses*);
- (i) the priorities or privileges, if any, that creditors of the relevant Obligor, other than IFC, may have by reason of law;
- (j) IFC's repatriation rights in respect of the Loan and the IFC Security; and
- (k) such other matters relating to the transactions contemplated by this Agreement as IFC reasonably requests.

FORM OF SOLVENCY CERTIFICATE

This Solvency Certificate (the "Certificate") of [entity] a [] organized and existing under the laws of [] (the "relevant Obligor"), is delivered pursuant to Section 4.01(k) of the Loan Agreement dated as of [] (as the same may be amended from time to time, the "Loan Agreement") between, amongst, the Obligors and IFC. Unless otherwise defined herein, capitalized terms used in this Certificate shall have the meanings set forth in the Loan Agreement.

I, [NAME], the duly elected, qualified and acting [TITLE] of the [Obligor], DO HEREBY CERTIFY as follows:

1. I have carefully reviewed the Loan Agreement and the other IFC Financing Documents and such other documents as I have deemed relevant and the contents of this Certificate and, in connection herewith, have made such investigation, as I have deemed necessary therefor. I further certify that the financial information and assumptions which underlie and form the basis for the representations made in this Certificate were reasonable when made and were made in good faith and continue to be reasonable as of the date hereof.

2. I have reviewed all financial information delivered to IFC pursuant to Articles III and IV of the Loan Agreement (the "Information"). I am familiar with the financial performance and prospects of the Obligor and hereby confirm that the Information was prepared in good faith and fairly presents the Obligor's consolidated financial condition, based on the information available to the Obligor at the time so furnished.

3. As of the date hereof, after giving effect to the transactions contemplated by the IFC Financing Documents, the fair value (as defined herein) and the present fair salable value (as defined herein) of any and all property of the Obligor is greater than the probable liability on existing debts (as defined herein) of the Obligor as they become absolute and matured.

4. As of the date hereof, after giving effect to the transactions contemplated by the IFC Financing Documents, the Obligor is able to pay its debts (including, without limitation, contingent and subordinated liabilities) as they become absolute and mature (as defined herein).

5. The Obligor does not intend to, nor believes that it will, incur debts that would be beyond its ability to pay as such debts mature.

6. As of the date hereof, after giving effect to the transactions contemplated by the IFC Financing Documents, the Obligor is not engaged in businesses or transactions, nor about to engage in businesses or transactions, for which any property remaining would constitute unreasonably small capital after giving due consideration to the prevailing practice in the industry in which it is engaged.

7. The Obligor does not intend, in consummating the transactions contemplated by the IFC Financing Documents, to hinder, delay or defraud either present or future lenders or any other Person to which the Obligor is or will become, on or after the date hereof, indebted.

8. For purposes of this Certificate, "fair value" means the amount at which the aggregate assets of the Obligor would change hands between a willing buyer and a willing seller within a commercially reasonable period of time, each having reasonable knowledge of the relevant facts, neither being under any compulsion to act, with equity to both. "Present fair salable value" means the amount that may be realized if the aggregate assets of the Obligor are sold with reasonable promptness in an arm's length transaction under present conditions for the sale of assets of comparable business enterprises. The term "debt" means any legal liability, including, without limitation, any contingent, subordinated, absolute, fixed, matured or unmatured, disputed or undisputed, secured or unsecured and liquidated or unliquidated liability. Being "able to pay its debts as they become absolute and mature" means that, assuming transactions contemplated by the IFC Financing Documents have been consummated as proposed and based only upon the Obligor's financial forecasts, the Obligor would have positive cash flow for the period covered by such forecasts after paying its scheduled anticipated indebtedness and current liabilities, including (and after giving effect to) the scheduled principal payments with respect to the Loan under the Loan Agreement as in effect on the date hereof.

IN WITNESS WHEREOF, I have executed this Certificate this [DATE]

By: _____
Name:
Title:

FORM OF LETTER TO OBLIGOR'S AUDITORS

(See Section 4.01(j) and Section 5.01(f) of
the Loan Agreement)

[Relevant Obligor's Letterhead]

[Date]

[NAME OF AUDITORS]

[ADDRESS]

Ladies and Gentlemen:

We hereby authorize and request you to give to International Finance Corporation of 2121 Pennsylvania Avenue, N.W., Washington, D.C. 20433, United States of America ("IFC"), all such information as IFC may reasonably request with regard to the financial statements of the undersigned company, both audited and unaudited. We have agreed to supply that information and those statements under the terms of a Loan Agreement between the undersigned companies and IFC dated _____, 2024 (the "Loan Agreement"). For your information we enclose a copy of the Loan Agreement.

We authorize and request you to send two copies of the audited accounts of the undersigned companies to IFC to enable us to satisfy our obligation to IFC under Section 5.03(b)(i) of the Loan Agreement. When submitting the same to IFC, please also send, at the same time, a copy of your full report on such accounts in a form reasonably acceptable to IFC.

Please note that under Section 5.03(b)(ii) and (iii) and Section 5.03(c) of the Loan Agreement, we are obliged to provide IFC with:

(a) a copy of the annual and any other management letter or other communication from you to the undersigned companies or its respective management commenting on, among other things, the adequacy of the undersigned companies' financial control procedures and accounting and management information system; and

(b) a report by you certifying that, based upon its audited financial statements, each of the undersigned companies was in compliance with the financial covenants contained in Section 5.02 of the Loan Agreement as at the end of the relevant Financial Year or, as the case may be, detailing any non-compliance.

Please also submit each such communication and report to IFC with the audited accounts.

For our records, please ensure that you send to us a copy of every letter that you receive from IFC immediately upon receipt and a copy of each reply made by you immediately upon the issue of that reply.

Yours truly,

[NAME OF RELEVANT OBLIGOR]

By _____
Authorized Representative

[Insert names of relevant Restricted Subsidiaries, if any]

Enclosure

cc: Director
Manufacturing, Agribusiness and Services, Africa
International Finance Corporation
2121 Pennsylvania Avenue, N.W.
Washington, D.C. 20433
United States of America

[FORM OF OBLIGOR'S CERTIFICATION ON DISTRIBUTION OF DIVIDENDS]

(See Section 5.02(a) of the Loan Agreement)
[Relevant Obligor's Letterhead]

International Finance Corporation
2121 Pennsylvania Avenue, N.W.
Washington, D.C. 20433
Attention: _____
[Country/_____]

[Date]

Re: Investment Number 49989

Dear Sirs:

1. Please refer to the Loan Agreement (the "Loan Agreement") dated _____, 2024 between Kazyon Limited, Kazyon Retail Sarlau, Tawfeer for Food Products (Kazyon), Favorrixx Food Industrial, Kazyon BVI, and Favorrixx Limited (the "Obligors") and International Finance Corporation ("IFC"). Terms defined in the Loan Agreement have their defined meanings whenever used in this request.

2. This is to inform you that we [insert name of the relevant Obligor] (the "**Relevant Obligor**") plans a distribution of dividends to its shareholders in the aggregate amount of _____, such distribution to commence on or about _____, _____. Pursuant to Section 5.02 (a) of the Loan Agreement, the Relevant Obligor hereby certifies that, as at the date hereof:

- (a) the proposed distribution will be entirely out of retained earnings and such retained earnings do not include any amount resulting from the revaluation of any of the Relevant Obligor's assets;
- (b) no Event of Default or Potential Event of Default has occurred and is continuing;
- (c) after giving effect to the proposed distribution:

- (B) the Adjusted Financial Debt to Adjusted EBITDA Ratio (disregarding from the numerator, any intercompany Financial Debt between Obligor) of Kazyon Egypt and its Subsidiaries (calculated on a Consolidated Basis) is not more than 4.0; and
- (C) the Prospective Debt Service Coverage Ratio (disregarding from the numerator and the denominator, any intercompany Financial Debt between Obligor) of Kazyon Egypt and its Subsidiaries (calculated on a Consolidated Basis) is not less than 1.2;

3. The Relevant Obligor undertakes not give effect to the proposed distribution or any part thereof if, at the time of so doing or after giving effect to it, the Relevant Obligor could not certify the matters referred to in section 2 of this certification.

Yours truly,

[NAME OF THE RELEVANT OBLIGOR]

By _____
Authorized Representative

**INFORMATION TO BE INCLUDED IN
QUARTERLY AND ANNUAL REVIEW OF OPERATIONS**

(See Sections 5.03 (a) (1) (ii) and (b) (iv) of the Loan Agreement)

A. Quarterly Operating Data

Quarter Ended _____, 20____

Kazyon Egypt:

Key Operating Indicators	Measuring Unit	Current Period	Previous Period
Number of DCs	#		
No. of Stores- End of Period	#		
Net no. of New Stores	#		
Average Basket Size	EGP		
Average Basket Size LFL	EGP		
Average Daily Customers	#		
Average Daily Customers LFL	#		
Average Daily Sales	EGP		
Average Daily Sales LFL	EGP		
Front Margin	%		
Back Margin	%		
Wastes and Shrinkages	%		
Gross Margin	%		
Stores Rent Expense Paid	EGP		
DCs Rent Expense Paid	EGP		
HQ Rent Expense Paid	EGP		
Store EBITDA	EGP		
LFL Store EBITDA	EGP		
Average no. of staff per store	#		
No. of HQ staff	#		
No. of DCs staff	#		
Company Adjusted EBITDA	EGP		
New stores Capex	EGP		
DCs Capex	EGP		
Existing stores maintenance capex	EGP		
Other CAPEX	EGP		

Kazyon Morocco:

Key Operating Indicators	Measuring Unit	Current Period	Previous Period
Number of DCs	#		
No. of Stores- End of Period	#		
Net no. of New Stores	#		
Average Basket Size	MAD		
Average Basket Size LFL	MAD		
Average Daily Customers	#		
Average Daily Customers LFL	#		
Average Daily Sales	MAD		
Average Daily Sales LFL	MAD		
Front Margin	%		
Back Margin	%		
Wastes and Shrinkages	%		
Gross Margin	%		
Stores Rent Expense Paid	MAD		
DCs Rent Expense Paid	MAD		
HQ Rent Expense Paid	MAD		
Store EBITDA	MAD		
LFL Store EBITDA	MAD		
Average no. of staff per store	#		
No. of HQ staff	#		
No. of DCs staff	#		
Company Adjusted EBITDA	MAD		
New stores Capex	MAD		
DCs Capex	MAD		
Existing stores maintenance capex	MAD		
Other CAPEX	MAD		

Favorixx:

	Measuring Unit	Current Period	Previous Period
Pre-operations Indicators:			
Total Investment cost broken down by key item	EGP		
Investment cost paid to date broken down by key item	EGP		
Production lines breakdown by product and planned capacity	unit		
Expected start date	date		
Post-operations Indicators:			
Production Capacity broken down by product	unit		
Actual Production broken down by product	unit		
Sales volume broken down by product & domestic vs export	unit		

Average selling prices by market	EGP		
Fixed cost breakdown	EGP		
Variable cost breakdown	EGP		
Average margin per product	%		
Total number of employees	#		
Direct labor	#		
Administrative staff	#		
Value of export sales	EGP		
Value of domestic sales	EGP		
Value of imported raw material	EGP		

Kazyon Group:

General Operating Indicators	Measuring Unit	Current Period	Previous Period
Intercompany transactions between KE and KM	USD		
Intercompany transactions between KL and KM	USD		
Total Kazyon group intercompany transactions *	USD		

* A detailed breakdown by entity must be provided, including any newly established entities.

Notes:

- (1) The purpose of this report is to provide regular updates on the company's operating cost structure and operating performance.
- (2) All figures must be reported in the relevant local currency, along with the USD equivalent. In addition, the exchange rate used for translation should be disclosed.
- (3) For Kazyon Morocco: Average Basket Size LFL, Average Daily Customers LFL, Average Daily Sales LFL and LFL Store EBITDA will be reported starting from 31 December 2025.

B. Supplemental Annual Operating Information

- (1) Macroeconomic Conditions. Brief description of any material changes that affect the Co-Borrowers directly. For example, changes in corporate taxation, import duties, foreign exchange availability, price controls, other areas of regulation.
- (2) Markets. Brief description of changes in the Co-Borrowers' market conditions (both domestic and export), with emphasis on changes in market share and its competitors' market shares.
- (3) Sponsors and Shareholdings. Information on significant changes in the ownership of the Co-Borrowers, including reasons for changes and the new shareholding structure.
- (4) Management and Technology. Summary of significant changes in the Co-Borrowers' (i) senior management or organizational structure, and (ii) technology, including technical assistance arrangements.

(5) Total number of employees: Provide total number of employees in your institution, specifying: (i) number of direct employees; (ii) number of female direct employees; (iii) number of executive management⁴ positions; and (iv) number of female executive management positions.

(6) Corporate Strategy. Description of any changes to the Co-Borrowers' corporate or operational strategy, including changes in products, degree of integration, or business emphasis.

(7) Operating Performance. Discussion of major factors affecting the year's results, including key operating indicators (e.g.: sales - by volume, value and market, operating costs, margins, capacity utilization).

⁴ Executive management is generally a team of individuals at the highest level of organizational management (usually executive level positions) who have the day-to-day responsibilities of managing a company or corporation. They are often referred to as the "C-suite" and include positions such as Chief Executive Officer – CEO; Chief Financial Officer – CFO; Chief Marketing Officer – CMO; Chief Operations Officer – COO; Chief Information Officer – CIO; Chief Compliance Officer – CCO; Chief Legal Counsel – CLC, etc. Within different corporations, they can also sometimes be referred to as executive management, top management, upper management or senior management.

FORM OF ANNUAL MONITORING REPORT



1. ENVIRONMENTAL, SOCIAL AND GOVERNANCE PERFORMANCE
ANNUAL MONITORING REPORT (AMR)

Kazyon Morocco
Kazyon Debt I
Morocco
IFC Project Number 49989

REPORTING PERIOD: (month/year) through (month/year)

AMR COMPLETION DATE: (day/month/year)

Sustainability and Gender Solution Department
2121 Pennsylvania Avenue, NW
Washington, DC 20433 USA

www.ifc.org/enviro

AMR SECTION I

a) INTRODUCTION

IFC's Investment Agreement requires for the Kazyon Debt I project to prepare a comprehensive Annual Monitoring Report (AMR) on the environmental and social (E&S) performance of its facilities and operations. This document comprises IFC's preferred format for E&S performance reporting. The following template may be supplemented with annexes as appropriate to ensure all relevant information on project performance is reported.

CONTENTS:

- Client's Representation Statement by Sponsor authorized representative
- Summary of Key E&S Aspects during the Reporting Period
- New Development/ Corporate Financing
- E&S Action Plan Status and Update
- Deviations/non-compliances
- Client's Feedback
- Corporate Governance

AMR SECTION II

- 2.
3. Client's Representation Statement by Sponsor authorized representative
- 4.

I (name) in my role of (position) and representing Kazyon Morocco certify that

- a) *The Project is in compliance with all applicable E & S Requirements as described in the investment agreement/contract/.../, and all actions required to be undertaken pursuant to the Environmental and Social Action Plan (ESAP) and any subsequent supplemental action plans. (When applicable: with the exception made for those that have been disclosed in **Section six (VI)** in this report. Section VI is to include any such deviation/non compliance that the client must inform IFC of.)*
- b) Beyond what is reported in this AMR for the current reporting period, in relation to the Project, to the best of my knowledge, after due inquiry, there are no:
 - Circumstances or occurrences that have given or would give rise to violations of E&S and labor Laws or E &S and labor Claims.
 - Social unrest, local population disruption or negative NGO attention due to the project.
 - Material social or environmental risks or issues in relation to the Project other than those identified by the E&S Assessment and the Environmental and Social Review Summary.
 - Existing or threatened complaint, order, directive, claim, citation or notice from any Authority.
 - Any written communication from any Person, in either case, concerning the Project's failure to comply with any matter covered by the Performance Standards.
 - Ongoing or, threatened, strikes, slowdowns or work stoppages by employees of the Borrower or any contractor or subcontractor with respect to the Project.
- c) *All information contained in this AMR is true, complete and accurate in all respects at the time of submission and no such document or material omitted any information the omission of which would have made such document or material misleading.*
- d) *There have not been any new company activities (e.g., expansions, construction works, etc) that could generate adverse environmental effects, and there have been no new ESIA studies, audits, or E&S action plans conducted by or on behalf of the Client/Company), with respect to any Environmental or Social standards/regulation/ applicable to the Project that IFC has not been notified of.*

Signature

Date

AMR SECTION III

5.

6. SUMMARY OF KEY E&S ASPECTS DURING THE REPORTING PERIOD

7.

This section aims to identify the key E&S progress/activities/incidents during the Reporting period (include: Summary of Key Findings for the Reporting Period e.g. non-compliances, significant incidents⁵, social unrest, significant improvements/initiatives regarding E&S performance, etc.)

Project Status

Select the current status of the project and provide a brief description of the developments in relation to the project over the reporting period. For example, has construction been started or completed, has new equipment been installed, has production capacity increased, or is the investment in new projects considered?

☐ Design ☐ Construction ☐ Expansion ☐ Operation ☐ Closure ☐ Other (specify:____)

New investment under development? (Corporate and Investment Funds) ☐ Yes ☐ No

Please provide details in section IV of this AMR.

PS1: Assessment and Management of Environmental and Social Risks and Impacts

A. E&S Management System and Programs

1. Does the company have in place an Environmental and Social Management System (ESMS) based on good international industry practice (GIIP) to address the risks and impacts of the project? Has this ESMS been reviewed and updated during the reporting period?
2. Are there any updates to existing E&S Policies or procedures?
3. Describe the status of E&S management plans or programs. Have any new management plans been developed or discontinued this reporting year?
4. Has the company/project implemented a Management of Change procedure? If so, please provide a list of the project changes with material E&S aspects which have been approved.
5. Were there any changes/updates to the company/project's Emergency Response Plans? If yes, please describe.

B. Environmental permits and certifications

6. Please provide an update on environmental permits / licenses received during this reporting period and provide copies of the valid permits.
7. Please provide details below on the status of any Management system certification schemes applicable to the project.

Table 1: Status of Management System Certification Schemes (as applicable)

⁵ Examples of significant incidents follow. Chemical and/or hydrocarbon materials spills; fire, explosion or unplanned releases, including during transportation; ecological damage/destruction; local population impact, complaint or protest; failure of emissions or effluent treatment; legal/administrative notice of violation; penalties, fines, or increase in pollution charges; negative media attention; chance cultural finds; labor unrest or disputes; local community concerns.

Certification Scheme	Future Consideration	Planning to Implement	Successfully Implemented	Date of certification / re-certification

C. E&S Assessments

8. Have any Environmental Impact Assessment (EIA) or Environmental and Social Impact Assessment (ESIA) been carried out during the reporting period or currently underway? If so, please provide copy of the study and relevant approvals if already obtained.
9. Has the project E&S risk and impacts identification been updated during this reporting year based on existing or predicted company and contractor / subcontractor activities?
10. Has the company identified any project E&S risks associated with climate change? Has the company/project taken preventive actions or incorporated mitigation or adaptation measures to address this risk? Please describe.
11. Has the company identified new project risks associated with gender-based violence, abuse, and harassment? If so, have you taken any preventive or remedial actions? Please describe.
12. If the project did/is planning a social impact assessment, did this assessment include women stakeholders, gender-specific activities and analysis?

D. E&S Due Diligence

13. Has the company carried out any E&S due diligence for assets or company acquisitions during this reporting period?
14. During this reporting period, has there been any expansion or change of the project or acquisition that could have modified the area of influence? If yes, have all the risks and impacts of this expansion or land acquisition been addressed in line with IFC requirements? Please explain how.
15. Is there any greenfield project / CAPEX planned? Has the company/project assessed the potential E&S risk associated with this new development and mitigation put in place to address foreseen risks and impacts? Provide details.
16. Briefly describe new initiatives implemented during the reporting period or additional managerial efforts on E&S aspects (e.g., Energy/water savings, sustainability report, waste minimization, OHS, etc.)

E. E&S Organization and Competence

17. Please describe the current E&S organization of the company/project including reporting lines to management and senior management. Were there any changes in the organization to staff responsible for the management of E&S risks and impacts? Please describe the reasons for these changes.
18. Were there E&S training activities provided to personnel and contractors / subcontractors this reporting year to build capacity, knowledge, and skills necessary for the implementation of E&S management system including its management plans and procedures? Please describe.

F. Monitoring and Review (here including auditing, significant E&S events, non-compliances/fines/violations reporting, management review)

19. Please provide details of any external and internal E&S audits completed this year, listing non-compliances and how they were resolved.
20. Please describe the company's/projects' s current environmental and social monitoring program to assure adequate E&S performance?
21. What are the company's/project's current plans/programs to ensure continuous E&S improvement? Which E&S indicators and metrics are used? Please describe.
22. During the reporting period, are you aware of any events that may have caused damage; brought about injuries or fatalities or other health problems; attracted the attention of outside parties; affected project labor or adjacent populations; affected cultural property; or created liabilities for your company/project?

Table 2: Overview of events during reporting period – M&R

Date	Event	Explain what happened	Explain how it was resolved

23. Please provide details of any E&S violations and fines received from the regulatory authorities / inspectors

G. Contractor Management

24. Does the company include E&S criteria for the pre-qualification and selection of contractors? Unless you provided this information before, please describe.
25. Did the company/project hire new contractors this year? If yes, has the company/project included E&S contractual provisions in the contract including requirements for the contractor to manage and oversee the E&S performance of its subcontractors?
26. Have the contractors been trained on company/project E&S policies and code of conduct, including regarding any training on policies against GBV, sexual harassment, abuse, or exploitation? If so, please provide evidence.
27. How was the company/project contractor's E&S performance assessed this year? Does the company/project issue any performance report that you can share?
28. Was the E&S performance of subcontractors assessed / reported by the main contractor? Were there any corrective actions / measures put in place to assure proper oversight and supervision?

Section II: External Grievance Mechanism and Stakeholder Engagement

A. Stakeholder engagement / Grievance mechanism

29. Has the company/project received any E&S relevant external complaints and/or improvement/prohibition notice from regulatory authority? Please describe.
30. How has the company ensured that communities are aware of the grievance mechanism? Please describe.
31. Does the grievance mechanism allow for affected community⁶ members to report allegations of sexual exploitation and abuse perpetrated by an employee or contractor? Please share document.
32. Has the company/project received any grievance from the neighboring communities or other key stakeholders? Were there any complaints specific to exploitation, abuse, or harassment? Please describe together with the process of closing the grievances received in the table below. Alternatively, please attach the grievance log and copy of the grievance mechanism.

Table 3: Overview of Grievances received

Date	Grievance from (Describe each briefly)	# Open	# Closed	# Issue	Corrective Measures (Describe each)

33. Has the company disclosed information to Affected Communities this year?
- If so, through which process of consultation and to whom.
 - Was this information disclosure made available to the community in accessible formats (Braille, Large text etc.)
 - Are there efforts to specifically engage with women and under-represented groups such as youth, elders, people with disabilities, etc.?
 - Have consultations been undertaken with community and local groups that advocate for the rights of women, children, and adolescents? Which actions were taken this year?
 - Please complete the table below.

Table 4: Overview of Engagements

⁶ Affected community means the local residents or workers living or working, and owners of businesses operating, in proximity to the project site, who are, or may be, directly impacted by the conditions at the project site, or by any response action. Please refer to IFC Performance Standard 1 and its Guidance Note.

Date	Type of Engagement	Date of Meeting	Reason for Meeting/Issue raised	Action from meeting	Completed

34. Has the company/project engaged this year with neighbor communities on the concerns and commitments agreed in the past? Please describe.
35. Has the company reviewed third party⁷ activities or actions that may pose E&S risks to the project for alignment with project E&S requirements? Please describe the process and any corrective actions taken to assure this alignment (Contractors retained or acting on behalf of the company are not third parties).

PS2: Labor and Working Conditions

Section I – Workforce Statistics

1. Provide the following information regarding your workforce⁸ disaggregated by sex in the table below:

Table 5: Workforce statistics

Site	# of direct workers	# M/F/Non-binary direct workers	# direct workers terminated by M/F/Non-binary	# direct workers hired by M/F/ Non-binary	# contracted workers M/F/ Non-binary	# of workers with disabilities M/F/ Non-binary

Section II – Human Resources Policy, Procedure, and Plans

2. Have you changed or updated or issued new Human Resources (HR) policies, procedures or plans during the reporting period? Please provide details.
3. Has there been any changes in national law or external policy environment with respect to labor and working conditions, including aspects covered under Performance Standards? If so, to what extent is the project in compliance with such laws and which actions have been undertaken?

Section III – Non-Discrimination and Equal Opportunity

4. Please update on implementation of equal opportunity/gender policy/affirmative action or special measures (e.g., a plan to recruit and retain women and underrepresented groups such as persons with disabilities, sexual and gender minorities, ethnicity, age in the workforce or in particular occupations)

⁷ A third party may be a government agency as a regulator or contract party, a contractor or supplier with whom the project has a substantial involvement, or an operator of an associated facility. Please refer to Performance Standard 1 and its Guidance Note.

⁸ See Performance Standard 2 and its Guidance Note for definitions regarding type of employment relationship between the client and the worker: workers directly engaged by the client (direct workers), workers engaged through third parties to perform work related to core business processes of the project for a substantial duration (contracted workers), as well as workers engaged by the client's primary suppliers (supply chain workers).

5. Have the personnel accountable for implementing equal opportunity received training on how to implement the policy?
6. Please provide update if any changes to family friendly workplace practices, childcare support, or facilities such as lactation rooms for women employees.
7. If your employees work in shifts, can you provide gender-disaggregated shift data?

Section IV – Working Conditions and Terms of Employment, including Workers’ Accommodation

8. Please provide an update on working conditions and terms of employment if any change occurred during the reporting period.
9. If accommodation for workers is provided, please provide an update regarding how many staff use it, any improvements carried out over the course of the reporting period and if there is an option for gender-segregated accommodation? Please provide photographs to show it is in line with the requirements regarding accessibility, safety, decency, hygiene, and comfort.
10. Have any specific concerns (e.g., accessibility, safety, decency, hygiene, and comfort) been raised by women employees or accommodation staff? If so, please describe any remedial action.

Section V – Workers’ Organizations, Retrenchment, and Grievance Mechanism

11. Please provide an update on workers’ organizations, Freedom of Association (FoA), unions which are active, number of workers unionized, and any labor action occurred within the reporting period.
12. Have there been any strikes or significant labor actions this year?
13. Did any retrenchment take place this year? If so, please attach the retrenchment plan or provide the relevant details and data relevant to the affected employees, disaggregated by function and by gender.
14. Please provide additional information on unresolved grievances such as there are any labor or retrenchment court cases or labor claims or disputes. Have there been any strikes or significant labor actions this year?
15. Please indicate the number of closed and open grievances, disaggregated by gender and by direct / contracted workers:

Table 6: Grievance register

Grievance (Describe each briefly)	# Open	# Closed	# Court case	Corrective measures (Describe each briefly)

16. Please provide additional information on unresolved grievances and details on any labor court cases or labor claims or disputes.

Section VI – Sexual Harassment

17. Please provide progress updates on implementation of system (policies, training, grievance mechanism) to prevent and respond to discrimination and harassment (including sexual), intimidation, and/or exploitation, especially in regard to women in the workplace.

- a. Does the grievance mechanism provide the flexibility to talk to a person of any gender of the employee's preference?
- b. Is there an anonymous reporting channel for cases of sexual harassment?
- c. Have dedicated trained focal point/s to receive reports on incidents of sexual harassment been identified and trained?
- d. Are managers/ HR staff trained on how to respond to incidents of sexual harassment?
- e. # Employees, contractors, and suppliers trained on code of conduct in reporting period
- f. *If workers are required to wear a uniform, is the uniform culturally appropriate and appropriate for genders?*

Section VII – Occupational Health and Safety (OHS)

18. What system and arrangements are in place to monitor and mitigate significant safety issues among Company's primary suppliers?
19. Has the Company conducted a workplace health and safety audit? Does the audit take into account gender-related risks? Please provide a copy of the report.
20. Please provide a copy of the Project's OHS Risk Register.
21. Describe the main initiatives and/or changes implemented to improve overall performance in Occupational Health and Safety (OHS) during the reporting period. Provide a copy of an OHS Improvement Plan where available.
22. Please provide details of OHS training to management, supervisors, direct workers, and contractor employees conducted in the reporting period.

Table 7: OHS training

Training Description	Person Type (Management Supervisors, Direct employees, Contractor employees)	Nature of Training (General awareness, Initial, Refresher and Specialized)	Contract Duration (Hours)

23. Please provide details of OHS performance parameters in the table below.

Performance Parameter	Direct Employees	Contractor employees	Reporting period – Previous year	
			Direct Employees	Contractor Employees

24. Workplace Air Quality, Noise and Vibrations Levels

- a. Was data collected from all established monitoring points? Was this data collected following approved / agreed sampling methodologies?
- b. Were there any exceedances of these monitoring points with established project EHS standards. If so, please provide further details:
- c. Were any mitigants or controls put in place to address current exceedances of limits? If so, please explain.

25. Other Workplace Environment Data (Temperature, Lighting, etc.)

- a. Was data collected from all established monitoring points? Was this data collected following approved / agreed sampling methodologies?
- b. Were there any exceedances of these monitoring points with established project EHS standards. If so, please provide further details.
- c. Were any mitigants or controls put in place to address current exceedances of limits? If so, please explain.

26. Please provide details of all work-related serious injuries and fatalities (for all project locations). Please attach copies of incident investigation reports.

Company employee or Contractor employee	Total Workdays lost	Description of Injury (Fatality of Serious Injury)	Root Cause of accident	Corrective Measures to prevent reoccurrence

27. Please calculate the Lost time injury frequency rate (LTIFR). LTIFR should be calculated using the formula below:

$$LTIFR = \frac{\text{Number of lost time injuries} \times 1,000,000}{\text{Total manhours worked}}$$

28. Where Lost time injury frequency rate (LTIFR) is above the international sectoral benchmark, provide actions taken and planned to reduce the LTIFR rate.

29. Have you identified any concerns for safety of female employees while traveling to and from work? If so, please describe any remedial action.

30. If you provide transportation to and from work, please provide gender-disaggregated transportation data.

Section VIII – Emergency Preparedness and Response

31. Please provide details of any material changes, revisions and updates on the existing emergency preparedness and response arrangements including information on the type and number of drills against plan for the reporting period.
32. Does guidance regarding evacuations take into consideration needs of pregnant women?

Section IX – Supply Chain

33. Please provide details of any changes to your supply chain during the past year and whether checks were made to ensure suppliers are not using child or forced labor.

PS3. Resource Efficiency and Pollution Prevention

Section I: Resource Efficiency

1. Provide a short description of any measures/efforts implemented during the reporting year by the company and/or each subsidiary and/or the Project to improve resource efficiency.
2. For the reporting year, provide the total amount (in tons) of fuel consumed (e.g., diesel oil, residual fuel oil, natural gas, coal, coke, etc.).
3. Provide a short description of any measures/efforts being implemented by the company/project to minimize fuel, electricity, water, and other resources consumption and/or minimize air emissions and reduce.
4. For the reporting year, provide the total amount of electricity consumed (in kWh) broken down by renewable/nonrenewable.
5. For the reporting year, please provide the total water consumption. Has the company/project taken any steps to reduce the amount of water consumed (reuse, recycling, etc.)? Are there ongoing efforts to look at opportunities to reduce the amount of water used by the project? If so, please explain.

Section II: Energy Generation

6. If power is generated on site, please describe the power generation facility, including the amount generated per year and share of nonrenewable.

Section III: Greenhouse Gas Emissions (and flaring as relevant)⁹

7. Quantify and report annual greenhouse gas (GHG) emissions from the Company's facilities and operations, including both direct (on-site fossil fuel combustion and fleet fuel consumption) and indirect (electricity consumption) emissions. Quantification of GHG emissions to be conducted in accordance with internationally recognized methodologies. Report whether the GHG emissions have been disclosed through corporate reports, or through other voluntary disclosure mechanisms.
8. Report GHG emissions in ton/year of CO₂ equivalent, by scope 1 and scope 2. Also indicate if the company quantifies scope 3 and if so, include details.

⁹ GHG emissions must be reported according to an internationally recognized methodology.

9. Describe the actions taken during this reporting period for the reduction of GHG emissions, if any.

Section IV: Pollution Prevention

10.

11. Ambient air quality

- i. Was data collected from all established monitoring points? Was this data collected following approved / agreed sampling methodologies?
- ii. Were there any exceedances of these monitoring points with established project EHS standards.
- iii. Were any mitigants or controls put in place to address current exceedances of limits or guideline values? If so, please explain.

12. Section V: Solid and Hazardous Waste and Materials

13. Provide an updated description of the current procedures/practices to manage hazardous and non-hazardous wastes, including monitoring and records associated to these procedures. Highlight any changes to previous reporting year.
14. Please describe ongoing efforts to reduce the amounts of solid or hazardous waste including reusing and recycling.
15. Describe any significant waste management incident/accident, including spills or improper disposal activity, and corrective measures undertaken.
16. Provide a description of waste (hazardous and non-hazardous) type, annual quantity, and management methods.
17. Provide information relevant to audits/inspections carried out at third party waste management and disposal facilities and operations.
18. Provide a description of hazardous material used.
19. Provide details of quantities of hazardous materials used.
20. Provide details of storage facilities, containment, etc. of hazardous materials

Section VI: Pesticides Use and Management

21. Provide details of pesticides¹⁰ and fertilizers used and confirm they are in line with WHO guidelines.
22. Provide quantities of pesticides and fertilizers used.
23. Provide details of storage facilities of pesticides and fertilizers.

Section VII: Exceedance Summary

¹⁰ The client will not purchase, store, use, manufacture, or trade in products that fall in WHO Recommended Classification of Pesticides by Hazard Class Ia (extremely hazardous); or Ib (highly hazardous). The client will not purchase, store, use, manufacture, or trade in Class II (moderately hazardous) pesticides, unless the project has appropriate controls on manufacture, procurement, or distribution and/or use of these chemicals. These chemicals should not be accessible to personnel without proper training, equipment, and facilities to handle, store, apply, and dispose of these products properly.

24. If any WBG EHS guideline level or Country standard level is exceeded, provide details as per table in the table in section IV (highlight any changes to previous reporting year).

ANNEXES**DATA COLLECTION TABLES****TABLE 1: FUEL CONSUMPTION**

FUEL TYPE	AMOUNT CONSUMED (L)
DIESEL	
RESIDUAL FUEL OIL	
GAS	
COAL	
COKE	

TABLE 2: ELECTRICITY CONSUMPTION

ELECTRICITY TYPE	SOURCE	AMOUNT CONSUMED (kWh)
NON-RENEWABLE		
RENEWABLE		

TABLE 3: WATER CONSUMPTION

WATER SOURCE	AMOUNT CONSUMED (L)
CITY	
OWN RESERVOIR	
OWN WELL	

TABLE 4: AIR EMISSION AND AIR QUALITY MONITORING – CURRENT REPORTING PERIOD**(*Highlight any changes to previous reporting year)**

Site	Air Emission Names/Types (generator, boiler stack, flare stack, vents, etc.)	Air Emissions quantity	Control System	Comments

TABLE 5: AMBIENT AIR QUALITY MONITORING**(*Provide average monitoring results)**

TABLE 6: ELECTRICITY GENERATION

ELECTRICITY	TYPE	Amount generated (kWh)
Non-Renewable		
Renewable		

TABLE 7: GHG EMISSIONS PRODUCTION

SCOPE TYPE	SOURCE	Amount generated (kWh)
Scope 1		
Scope 2		
Scope 3		

TABLE 8: SOLID WASTE AND MATERIALS

Waste Type	Annual Quantity	Method of Storage, Handling and/or Treatment	Method of Recycling, Reuse, or Disposal ¹¹

TABLE 9: HAZARDOUS WASTE AND MATERIALS

Hazardous Material	Class or Division ¹²	Annual Quantity	Maximum Quantity Stored on Site
HAZARDOUS MATERIALS USED			
HAZARDOUS MATERIALS PRODUCED			

TABLE 10: PESTICIDES AND FERTILIZERS

¹¹ Describe disposal method (e.g., landfill, incineration, land farming, reuse, etc.) Provide name and location of disposal facility used; state if waste is sold as byproduct, scrap, or a material to be used by others; state name and business of purchaser. Provide additional sheets as needed to fully describe disposal, organizations involved in waste management, facility permits, and agency authorizations.

¹² UN Classification (1. Explosives; 2. Gases; 3. Flammable liquids; 4. Flammable solids; 5. Oxidizing substances; 6. Toxic and infectious substances; 7. Radioactive material; 8. Corrosive substances; 9. Miscellaneous hazardous materials)

PESTICIDE/FERTILIZER TYPE	Amount Consumed (Tonnes)

PS4 - Community Health, Safety and Security

Section I: Community Health and Safety

1. List and briefly describe any new programs implemented in relation to community health and safety during the reporting period. Include new and/or modified infrastructure and equipment, hazardous materials and safety management, road transportation and exposure to disease.

Table 1: Community health and safety programs

Description of Mitigation Measure Program	Expected/Actual date of Implantation	Planned future mitigation efforts

2. Have you carried out an assessment of the risks of gender-based violence, exploitation, abuse, or harassment being perpetrated by your employees or contractors in Affected Communities and/or similar risks associated with your primary suppliers?
3. Does the company, as needed supported by external specialists, organize discussions with local community groups, especially women groups on the risks of gender-based violence, exploitation, abuse or harassment in affected communities? Please describe.
4. As applicable, has a Life and Fire Safety (LFS) audit taken place during the reporting period? If so, please provide details of the audit and how any non-conformities were handled.
5. Provide information on the maintenance and testing of the LFS systems in your facilities (e.g., fire detection and alarm systems, fire suppression extinguishers, emergency lighting, emergency power, smoke control systems).
6. Have the facilities been modified (i.e., architectural layout, additions, changes of equipment or materials) that could have been altered the original LFS features of the building?
 - a. Provide information of the changes with the associated LFS risk mitigation measures.
 - b. Was a new fire clearance permit required for the changes made? Provide copy of the permit.
7. During the reporting period, have any emergency drills been conducted with affected community participation? Are the communities aware of the emergency response plans?
8. Has the project undergone any technical engineering and safety audits by competent authorities or professionals during the period under review? If yes, please share the assessment results with IFC.

9. Have there been any safety-related incidents including severe injuries and fatalities to Affected Communities or other third parties during project-related activities, including, but not limited to, movement or transportation activities of personnel or equipment? Please provide incident investigation report(s).
10. Has the project undergone any safety audits focused on gender-differentiated risks during the reporting period?
11. Has there been any stakeholder engagements that have taken place during the year regarding health and safety issues or incidents? Please explain. Have these been reported back to the team responsible for Stakeholder Engagement?
12. During the reporting period, did the project carry out transportation of workers, materials, or activities by contractors/subcontractors? If yes, has a transportation risk assessment been conducted to assess safety risks for Affected Communities and adequate controls put in place to avoid, minimize, and mitigate these risks? Please explain.
13. Have you screened new contractors for past complaints of gender-based violence or harassment?
14. If your project involves trucking routes, have you assessed the risks of gender-based violence or harassment being perpetrated by truck drivers?

Section II: Security Personnel

15. Does the client use private security firm or government security forces on their premises? If yes, has the client performed due diligence on the service provider to screen against any past incidents that may have been violent or abusive?
16. Please describe any changes in the Company's engagement with private/public security forces during the reporting period and any corresponding agreements.

Table 2: Use of Security Forces (if several providers are used, please add a row for each one)

	Amount of armed security forces retained (Current Year)	Amount of armed security forces retained (Previous Year)	Amount of unarmed security forces (Current Year)	Amount of unarmed security forces retained (Previous Year)	Name of security firm/public service (army police, military police etc)
Public Security Forces					
Private Security Forces					
Private Security Forces					

Table 3: Security Incidents for each security provider (if several providers are used, please add a row for each one)

	Amount of Security Incidents (Current Year)	Amount of Security Incidents (Previous Year)
Input name of security provider		
Input name of security provider		
Input name of security provider		

17. Have security personnel been properly trained in appropriate conduct and gender-based violence and harassment prevention? Please describe and fill in table below:

Table 4: Training session provided on topics such as appropriate conduct and use of force, Human Rights, Gender Based Violence and harassment prevention this reporting year

	# Of Training sessions provided (add topic)	# Of Training sessions provided (add topic)	# Of Training sessions provided (add topic)
Input name of security provider			
Input name of security provider			
Input name of security provider			

AMR SECTION V

E&S ACTION PLAN STATUS AND UPDATE

Please update us in the current status of the E&S action plan (ESAP), define the dates when pending actions will be implemented. Please refer to the initial ESAP for the indicators and deliverables.

Kazyon Morocco 49989			
#	ESAP	Evidence of Completion	Due Date
1	Kazyon Morocco will develop an E&S management system (ESMS), based on the existing ESMS in Egypt, aligned with national laws and IFC PSs including (i) an E&S policy; (ii) identification of risks and impacts including E&S risk screening	m) Environmental Policy m) Risk assessment tools including E&S screening procedure. m) Integrated Waste Management plan	December 2025

	procedure for the new DCs, stores and suppliers; (iii) management programs, to mitigate the E&S risks, such as for OHS, waste management, transport management plan, security management plan, management plan for refrigeration and cooling agents; (iv) an E&S organization with defined roles and responsibilities; (v) emergency preparedness and response; (vi) stakeholder engagement and community grievance mechanism; and (vii) monitoring, review and reporting of E&S performance. ESMS will cover all activities including the operations in DCs and stores.	m) OHS policy and procedure m) EHS Organization chart and CVs of key personnel, with defined roles and responsibilities m) Emergency preparedness and response plan m) Resource Efficiency Plan m) Life and Fire Safety Plan m) Transport Management Plan m) Security Management Procedure and Plan m) Community Grievance Procedure m) Monitoring and reporting procedures m) Internal Audit Reports	
2	Kazyon Morocco will appoint an Environment Health and Safety manager (EHS) and will be supported by a team of EHS supervisors for Kazyon DCs and stores in Morocco. Similarly, as the number of staff will grow, Kazyon will hire an HR team in addition to supply chain team	d) EHS Organization chart with hiring plan for EHS team d) CV of EHS d) HR Organization and hiring plan d) Supply Chain Organogram and hiring plan	JUNE 2025
3	Kazyon Morocco will also hire a professional labor specialist to conduct a labor assessment for Morocco operations, to identify social and labor risks (if any) in line with IFC PS2 and national legislation and to provide recommendations to address these gaps (if needed). Within this assessment, Kazyon Morocco will also conduct a baseline assessment to identify Gender-Based Violence and Harassment (GBVH) gaps, risk factors and propose a GBVH risk mitigation plan.	f) ToRs for the labor assessment and GBVH to the satisfaction of IFC f) CV of labor specialist to the satisfaction of IFC f) CV of gender specialist to the satisfaction of IFC f) Labor assessment report and recommendations f) GBVH assessment report and recommendations f) Evidence of closure of the corrective action plans for both assessments to the satisfaction of IFC	December 2025
4	Kazyon Morocco will develop HR policies and procedures in accordance with national law and IFC PS2 requirements. HR policy and procedures will address, but not be limited to, worker code of conduct, labor and working conditions and terms of employment and	k) HR Policy and procedure k) Worker code of conduct k) Terms of employment and dismissal (with new worker contracts' templates)	JUNE 2025

	dismissal, new worker contracts' templates, non-discrimination and equal opportunity, prevention of child and forced labor, worker grievance mechanism (including reporting and investigation of gender-based violence and harassment), prohibition of sexual harassment and abuse, freedom of association and retrenchment. These policies and procedures will be endorsed by senior management and communicated to all company workers, including third party workers, through training and other sensitization activities such as toolbox talks and bulletin boards	k) Non-discrimination and equal opportunity policy and procedure k) Child and Forced labor policy and procedure k) Worker Grievance Procedure k) Prohibition of sexual harassment and abuse policy and procedure k) OHS policy and Procedure k) Freedom of association policy (a commitment in HR policy for freedom of association) k) HR training plan, training material and training attendance sheets k) Retrenchment framework	
5	Kazyon will communicate its new HR policies and procedures to third party workers and will contractually bind all service providers to adhere to them. The contracts will also include audit rights for Kazyon Morocco where service providers will be penalized up to termination of their contract if they are not aligned with IFC PS2 and good international industrial practices.	b) Evidence of communication of HR policies and Procedures to third party workers b) Contracts with third party workers to the satisfaction of IFC	30 September 2025
6	Kazyon Morocco will develop a supplier code of conduct for its Morocco operations including clear prohibition of child labour and forced labour in all of its purchasing procedures. Kazyon Morocco will incorporate contractual clauses in its agreements, with its primary suppliers, requiring them, to comply with its supplier code of conduct and will reserve the right to audit suppliers for their compliance with the code of conduct. Kazyon Morocco will assess current and future primary suppliers against compliance with the updated supplier code of conduct and engage with suppliers to develop corrective actions (if gaps are identified).	f) Supplier Code of conduct in line with IFC PS2 f) Evidence of communication with Suppliers f) Supplier risk assessment f) Sample supplier contracts f) Sample supplier audit reports f) Contractor management plan to the satisfaction of IFC	15 September 2025

	Kazyon Morocco will develop a contractor management plan in alignment with IFC PS2 and the Good Practice Note for Contractor Management for all contractors to follow while undertaking work Kazyon Morocco. EPC contracts will include clear reference to prohibition of child and forced labor as per IFC PS2 requirements.		
7	Kazyon will develop a corporate "Life and Fire Safety (L&FS) Master Plan" for the construction and/or remodelling of the new stores and DCs, that will form part of the "corporate store and DCs design manual". The master plan will consider local legal requirements, and aspects such as occupancy levels, means of egress and systems for fire prevention, detection, and suppression as per the section 3.3 Life and Fire Safety (L&FS) applicability and approach of the General EHS Guidelines.	Life and Fire Safety Master Plan to the satisfaction of IFC	30 September 2025
8	For a group of 10 new stores starting operations in the next 12 months after IFC's investment, Kazyon Morocco will submit to IFC the acceptance reports of L&FS, fire department permits and certifications that each facility is constructed and commissioned in compliance with local building codes, fire department regulations.	Life and fire safety acceptance reports, fire department permits and certifications for 10 new stores	30 September 2025
9	Kazyon Morocco will develop a community grievance mechanism in line with IFC PSs allowing anonymous complaints, and freedom of retaliation statement. Grievance channels will cover touch points with the community including retail stores and DCs, among others. Grievances will be maintained in a log tracking dates of grievances and dates and evidence of closure.	Community Grievance Procedure and Grievance	15 June 2025

**TABLE IV: Environmental and Social Action Plan (ESAP) Status Report
(Client completes this report annually)**

Project Name:	
Team Name:	
Country:	

Lead Environmental Specialist (LESS):					
Project ID:					
Region:					
Sector:					
Social Specialist:					
TABLE V: ESAP Status					
Task Title/Description	Anticipated Completion Date	Indicator of Completion*	Completion Date	Status as of DD/MM/YYYY	% Complete

AMR SECTION VI

DEVIATION/NON-COMPLIANCES

The following are the deviations/non-compliances identified in reference to the following:

- (i) IFC's Performance Standards;
- (ii) ESAP;
- (iii) Non-compliance with Applicable E&S Law;
- (iv) Applicable World Bank Group (WBG) EHS Guidelines

If there are deviations or non-compliance, please record and provide additional information if necessary.

TABLE VI: Record of Deviations and Non-Compliances

	Deviations or Non-compliance identified	Corrective Actions	Status of Completion	Completion Date
IFC's Performance Standards				
Environmental and Social Action Plan				
Applicable E&S Law				
Applicable WBG EHS Guidelines				

As applicable, please explain the cause and describe the planned corrective actions to prevent re-occurrence.

AMR SECTION VII

CLIENT'S FEEDBACK

Please check the box that best represent your evaluation of the support received from IFC.

On dealing with E&S aspects of the investment, how diligently in your opinion has IFC been able:

Areas of IFC Assistance	RATING					Comments
	No opinion	Excellent	Above expectations	As reasonably expected	Below expectations	

To help you in the interpretation and applicability of IFC's Performance Standards	c	c	c	c	c	
To provide you with guidance for the implementation of the Environmental and Social Action Plan (ESAP)	c	c	c	c	c	
To share the outcomes of IFC supervision visits to the project and on agreeing in corrective actions	c	c	c	c	c	
To demonstrate flexibility and creativity to guide the Company's management of project's E&S issues.	c	c	c	c	c	

SCHEDULE 10

DEVELOPMENT IMPACT INDICATORS

AIMM Indicator	Indicator Name	Unit of Measure	Baseline Value (2023)	Target Value (2029)
Stakeholder Effects	Number of stores	#	Morocco: 21 Egypt: 898	Morocco: 724 Egypt: 1,887
	Average size of stores ¹³	Square meters	225	225
	Total retail sales	US\$ Million (local currency Million*)	Morocco: US\$ 1 (MAD 10.6) Egypt: US\$ 255 (EGP 7,732)	Morocco: US\$ 439 (MAD 4,434) Egypt: US\$ 681 (EGP 39,773)
	Number of stores in underserved areas	#	N/A	Morocco: 551 Egypt: 526
Economy-wide Effects	Total direct value added (EBITDA + wages)	US\$ Million (local currency Million*)	Morocco: US\$ 0 (MAD 0) Egypt: US\$ 26 (EGP 792)	Morocco: US\$ 36 (MAD 364) Egypt: US\$ 94 (EGP 5,490)
	Total number of direct employees	#	Morocco: 284 Egypt: 7,032	Morocco: 5,731 Egypt: 16,060
Market Effect: Competitiveness	Modern retail penetration	%	Egypt: 25% Morocco: 21%	Egypt: 27% Morocco: 25%
Reporting Indicator	Indicator Name	Unit of Measure	Baseline Value (2023)	Expected Value (2029)
Institution level	Direct employment: operations and maintenance	#	Morocco: 284 Egypt: 7,032	Morocco: 5,731 Egypt: 16,060
	Female direct employment: operations and maintenance	#	Morocco: 37 Egypt: 698	Morocco: 2,293 Egypt: 1,500
	Board composition total	#	7	Track Yearly
	Board composition women	#	1	1
	Number of senior management positions	#	Morocco: 5 Egypt: 13	Track Yearly
	Number of women in senior management	#	Morocco: 3 Egypt: 1	Morocco: 3 Egypt: 1
	Domestic purchases	US\$ Million	Morocco: US\$ 1 (MAD 10)	Track Yearly

¹³ This indicator is not a target but monitored to calculate the sales value per sqm.

		(local currency Million*)	Egypt: US\$ 268.5 (EGP 8,316)	
	Payment to government	US\$ Million (local currency Million*)	Morocco: US\$ 0.7 (MAD 7) Egypt: US\$ 8.6 (EGP 261)	Track Yearly